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Agencies in this issue—

Agricultural Research Service
Agriculture Department
Atomic Energy Commission
Civil Service Commission
Coast Guard
Consumer and Marketing Service
Defense Department
Employment Security Bureau
Federal Aviation Agency
Federal Housing Administration
Federal Power Commission
Interstate Commerce Commission
Land Management Bureau
Maritime Administration
National Bureau of Standards
National Park Service
Navy Department
Securities and Exchange Commission
Small Business Administration
State Department
Veterans Administration

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[Tangelo Reg. 30, Amdt. 1]

PART 905—ORANGES, GRAPEFRUIT, TANGERINES, AND TANGELOS GROWN IN FLORIDA

Limitation of Shipments

Findings. (1) Pursuant to the marketing agreement, as amended, and Order No. 905, as amended (7 CFR Part 905, 31 F.R. 15059), regulating the handling of oranges, grapefruit, tangerines, and tangelos grown in Florida, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the recommendations of the committees established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of tangelos, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, engage in public rulemaking procedure, and postpone the effective date of this amendment until 30 days after publication thereof in the FEDERAL REGISTER (5 U.S.C. 553 (1966)) in that the time intervening between the date when information upon which this amendment is based became available and the time when this amendment must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective upon publication in the FEDERAL REGISTER. Shipments of tangelos are currently regulated pursuant to Tangelo Regulation 30 (31 F.R. 12835) and, unless sooner terminated or modified, will continue to be so regulated until August 1, 1967; determinations as to need for, and extent of, regulation under § 905.52(a) (3) of the order must await the development of the crop and the availability of information about the demand for such fruit; the recommendation and supporting information for limiting the total quantity of fresh tangelos by prohibiting the shipment thereof, pursuant to said section, during the period December 22, through December 28, 1966, as herein provided, were promptly submitted to the Department after an open meeting on November 29, 1966, to consider recommendations for such regulation, after giving due notice of such meeting, and interested persons were afforded an opportunity to submit their views at this meeting; information regarding the provisions of the regulation recommended by the committee has been disseminated among shippers of tangelos grown in the production area, and this regulation, including the effective time thereof, is identical with the recommendation of the committees; it is necessary, in order to effectuate the declared policy of the act, to make this regulation effective during the period hereinafter set forth so as to provide for the continued regulation of the handling of tangelos grown in the production area; and compliance with this regulation will not require any special preparation on the part of persons subject thereto which cannot be completed on or before the effective time hereof. No useful purpose would be served by postponing the effective time hereof to a date later than that of publication in the FEDERAL REGISTER.

Order. In § 905.486 (Tangelo Reg. 30, 31 F.R. 12835), the provisions of paragraph (a) are amended in the following respects: The provisions of subparagraph (1) immediately preceding subdivision (i) thereof are revised and subdivision (iii) is added to read as follows:

§ 905.486 Tangelo Regulation 30.

(a) *Order.* (1) Except as otherwise provided in subdivision (iii), during the period beginning at 12:01 a.m., e.s.t., October 3, 1966, and ending at 12:01 a.m., e.s.t., August 1, 1967, no handler shall ship between the production area and any point outside thereof in the continental United States, Canada, or Mexico:

* * * * *

(iii) During the period beginning at 12:01 a.m., e.s.t., December 22, 1966, and ending at 12:01 a.m., e.s.t., December 29, 1966, no handler shall ship between the production area and any point outside thereof in the continental United States, Canada, or Mexico, any tangelos grown in the production area.

* * * * *

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated December 14, 1966, to become effective upon publication in the FEDERAL REGISTER.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66–13579; Filed, Dec. 16, 1966; 8:48 a.m.]

[Tangerine Reg. 32, Amdt. 2]

PART 905—ORANGES, GRAPEFRUIT, TANGERINES, AND TANGELOS GROWN IN FLORIDA

Limitation of Shipments

Findings. (1) Pursuant to the marketing agreement, as amended, and Order No. 905, as amended (7 CFR Part 905, 31 F.R. 15059), regulating the handling of oranges, grapefruit, tangerines, and tangelos grown in Florida, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the recommendations of the committees established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of tangerines, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, engage in public rulemaking procedure, and postpone the effective date of this amendment until 30 days after publication thereof in the FEDERAL REGISTER (5 U.S.C. 553 (1966)) in that the time intervening between the date when information upon which this amendment is based became available and the time when this amendment must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective upon publication in the FEDERAL REGISTER. Shipments of tangerines are currently regulated pursuant to Tangerine Regulation 32, as amended (31 F.R. 13385, 14735), and, unless sooner terminated or modified, will continue to be so regulated until August 1, 1967; determinations as to need for, and extent of, regulation under § 905.52 (a) (3) of the order must await the development of the crop and the availability of information about the demand for such fruit; the recommendation and supporting information for limiting the total quantity of fresh tangerines by prohibiting the shipment thereof, pursuant to said section, during the period December 22 through December 28, 1966, as herein provided, were promptly submitted to the Department after an open meeting on November 29, 1966, to consider recommendations for such regulation, after giving due notice of such meeting, and interested persons were afforded an opportunity to submit their views at this meeting; information regarding the provisions of the regulation recom-

mended by the committees has been disseminated among shippers of tangerines grown in the production area, and this regulation, including the effective time thereof, is identical with the recommendation of the committee; it is necessary, in order to effectuate the declared policy of the act, to make this regulation effective during the period hereinafter set forth so as to provide for the continued regulation of the handling of tangerines grown in the production area; and compliance with this regulation will not require any special preparation on the part of persons subject thereto which cannot be completed on or before the effective time hereof. No useful purpose would be served by postponing the effective time hereof to a date later than that of publication in the FEDERAL REGISTER.

Order. In § 905.488 (Tangerine Reg. 32; 31 F.R. 13385, 14735), the provisions of paragraph (a) are amended in the following respects: The provisions of subparagraph (1) immediately preceding subdivision (i) thereof are revised and subparagraph (3) is added to read as follows:

§ 905.488 Tangerine Regulation 32.

(a) *Order.* (1) Except as otherwise provided in subparagraph (3), during the period beginning at 12:01 a.m., e.s.t., October 17, 1966, and ending at 12:01 a.m., e.s.t., August 1, 1967, no handler shall, except to the extent otherwise permitted under this paragraph, ship between the production area and any point outside thereof in the continental United States, Canada, or Mexico:

* * * * *

(3) During the period beginning at 12:01 a.m., e.s.t., December 22, 1966, and ending at 12:01 a.m., e.s.t., December 29, 1966, no handler shall ship between the production area and any point outside thereof in the continental United States, Canada, or Mexico, any tangerines grown in the production area.

* * * * *

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated December 14, 1966, to become effective upon publication in the FEDERAL REGISTER.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66–13580; Filed, Dec. 16, 1966; 8:48 a.m.]

PART 907—NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

Early Maturity Allotments

Notice is hereby given of the approval of an amendment, hereinafter set forth, to the rules and regulations (Subpart—Rules and Regulations; 7 CFR 907.100 et seq.) currently in effect pursuant to the marketing agreement, as amended, and Order No. 907, as amended (7 CFR Part 907), regulating the handling of Navel oranges grown in Arizona and designated part of California. This is a regulatory program effective under the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674).

It is hereby found and determined that said amendment of the rules and regulations, which was proposed and submitted for approval by the Navel Orange Administrative Committee, established pursuant to the amended marketing agreement and order as the agency to administer the provisions thereof, is in accordance with the provisions of said amended marketing agreement and order and will tend to effectuate the declared purposes of the Agricultural Marketing Agreement Act of 1937, as amended, and said rules and regulations are hereby amended as follows:

Paragraph (a) *Applications to be filed* of § 907.113 is revised to read as follows:

§ 907.113 Early maturity allotments.

(a) *Applications to be filed.* On or before 12 noon of the day preceding the regular weekly meeting day of the committee, any handler controlling early maturity oranges who desires to receive allotment therefor for use during the following week must request such allotment from the committee by telephone or telegram, or by an application on N.O.A.C. Form No. 9 delivered to the committee at any of its designated offices. Telephone and telegram requests shall be confirmed either by (1) delivering to the committee not later than the day preceding the regular weekly meeting day a duly executed N.O.A.C. Form No. 9 or (2) mailing to the committee such N.O.A.C. Form No. 9 postmarked not later than the day preceding the regular weekly meeting day. Requests for early maturity allotment, or for changes in requests previously made, shall not be considered by the committee if received subsequent to 12 noon of the day preceding the regular weekly meeting day of the committee. Each application, and each confirmation, on N.O.A.C. Form No. 9 shall indicate the name and address of the applicant, the general location of early maturity oranges for which allotment is desired, the number of cartons of allotment desired, and such other pertinent information as the committee may from time to time request.

* * * * *

It is hereby further found that it is impracticable, unnecessary and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date hereof until 30 days after publication in the FEDERAL REGISTER (5 U.S.C. 553(1966)) in that (1) shipments of Navel oranges are currently in progress and subject to allotment and handlers may presently file official requests for early maturity allotment only by filing an official application form with the committee before noon of the day preceding the regular committee meeting; (2) the earliest possible receipt by the committee of handler's requests for early maturity allotments is necessary to facilitate the timely computation of all such requests by committee personnel for consideration by the committee members at its regular meetings; (3) the amendment does not require any special preparation for compliance therewith which cannot be completed by the effective time hereof; and (4) the amendment relieves restrictions on handlers by making it easier to transmit applications for early maturity allotments to the committee. Therefore, to be of maximum benefit this amendment should be made effective as soon as possible.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated December 14, 1966, to become effective upon publication in the FEDERAL REGISTER.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66–13581; Filed, Dec. 16, 1966; 8:48 a.m.]

[Navel Orange Reg. 117]

PART 907—NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

Limitation of Handling

§ 907.417 Navel Orange Regulation 117.

(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 907, as amended (7 CFR Part 907), regulating the handling of Navel oranges grown in Arizona and designated part of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the recommendations and information submitted by the Navel Orange Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such Navel oranges, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication hereof in the FEDERAL REGISTER (5 U.S.C. 553 (1966) because the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective as hereinafter set forth. The committee held an open meeting during the current week, after giving due notice thereof, to consider supply and market conditions for Navel oranges and the need for regulation; interested persons were afforded an opportunity to

submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such Navel oranges; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period herein specified; and compliance with this regulation will not require any special preparation on the part of persons subject hereto which cannot be completed on or before the effective date hereof. Such committee meeting was held on December 15, 1966.

(b) *Order.* (1) The respective quantities of Navel oranges grown in Arizona and designated part of California which may be handled during the period beginning at 12:01 a.m., P.s.t., December 18, 1966, and ending at 12:01 a.m., P.s.t., December 25, 1966, are hereby fixed as follows:

(i) District 1: 300,000 cartons;

(ii) District 2: 57,455 cartons;

(iii) District 3: 50,000 cartons;

(iv) District 4: 15,000 cartons.

(2) As used in this section, "handled," "District 1," "District 2," "District 3," "District 4," and "carton" have the same meaning as when used in said amended marketing agreement and order.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated: December 16, 1966.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66–13653; Filed, Dec. 16, 1966; 11:44 a.m.]

[Lemon Reg. 246]

PART 910—LEMONS GROWN IN CALIFORNIA AND ARIZONA

Limitation of Handling

§ 910.546 Lemon Regulation 246.

(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 910, as amended (7 CFR Part 910), regulating the handling of lemons grown in California and Arizona, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the recommendations and information submitted by the Lemon Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such lemons, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication hereof in the FEDERAL REGISTER (5 U.S.C. 553 (1966)) because the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective as hereinafter set forth. The committee held an open meeting during the current week, after giving due notice thereof, to consider supply and market conditions for lemons and the need for regulation; interested persons were afforded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such lemons; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period herein specified; and compliance with this section will not require any special preparation on the part of persons subject hereto which cannot be completed on or before the effective date hereof. Such committee meeting was held on December 13, 1966.

(b) *Order.* (1) The respective quantities of lemons grown in California and Arizona which may be handled during the period beginning at 12:01 a.m., P.s.t., December 18, 1966, and ending at 12:01 a.m., P.s.t., December 25, 1966, are hereby fixed as follows:

(i) District 1: 27,900 cartons;

(ii) District 2: 65,100 cartons;

(iii) District 3: 116,250 cartons.

(2) As used in this section, "handled," "District 1," "District 2," "District 3," and "Carton" have the same meaning as when used in the said amended marketing agreement and order.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated: December 15, 1966.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66–13602; Filed, Dec. 16, 1966; 8:49 a.m.]

Title 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

SUBCHAPTER E—VIRUSES, SERUMS, TOXINS, AND ANALOGOUS PRODUCTS; ORGANISMS AND VECTORS

PART 131—HANDLING OF ANTI-HOG-CHOLERA SERUM AND HOG-CHOLERA VIRUS

Termination of Marketing Agreement and Marketing Order

A notice was issued by the Deputy Administrator for Agricultural Research Service, and published in the FEDERAL REGISTER of September 16, 1966 (31 F.R. 12102), in which was announced a proposal to terminate, effective midnight on December 31, 1966, the provisions of the Marketing Agreement Regulating Handling of Anti-Hog-Cholera Serum and Hog-Cholera Virus, as amended, and the Marketing Order Regulating Handling of Anti-Hog-Cholera Serum and Hog-Cholera Virus, as amended (9 CFR Part 131).

The notice also stated that consideration would be given to any written data, views, or arguments concerning the proposal to terminate which were filed with the Director, Veterinary Biologics Division, Agricultural Research Service, U.S. Department of Agriculture, not later than 60 days after publication of the aforesaid notice in the FEDERAL REGISTER.

Within the prescribed time 22 such communications were received, of which 10 are in support of the proposed termination and 12 opposed. It is noted that only 8 of the 32 producers of anti-hog-cholera serum and hog-cholera virus, and 12 of the 153 wholesaler handlers of anti-hog-cholera serum and hog-cholera virus products submitted written data, views, and arguments. After careful consideration of all the written communications received, the ratio of producers and wholesaler handlers submitting views to the number eligible to comment and all other relevant matters, it is hereby found and determined that the aforesaid Marketing Agreement, as amended, and Marketing Order, as amended, no longer tend to effectuate the declared policy of Congress in section 56 of Public Law 320, 74th Congress, approved August 24, 1935 (sec. 56, 49 Stat. 781; 7 U.S.C. 851), and are no longer needed in the light of the progress of the National Hog-Cholera Eradication Program.

It is therefore ordered, That the Marketing Agreement Regulating Handling of Anti-Hog-Cholera Serum and Hog-Cholera Virus, as amended, and the Marketing Order Regulating Handling of Anti-Hog-Cholera Serum and Hog-Cholera Virus, as amended (9 CFR Part 131), effective pursuant to the provisions of sections 56–60 of Public Law

320, 74th Congress, approved August 24, 1935, as amended (sec. 56–60, 49 Stat. 781, as amended; 7 U.S.C. 851–855), and all rules and regulations issued pursuant thereto, be, and they are hereby terminated effective at midnight, e.s.t., on December 31, 1966, except the provisions thereof concerning liquidation of the affairs of the Control Agency (9 CFR 131.113). The proceedings after termination shall be in accordance with the said liquidation provisions contained in the aforesaid Marketing Agreement and Marketing Order, as amended (9 CFR 131.113), and the Control Agency shall liquidate the business of the Control Agency, and such liquidation proceedings shall continue until completed and the members of the Control Agency, or such other persons as the Secretary may from time to time designate to liquidate the business of the Control Agency, have been discharged by the Secretary.

The said Marketing Agreement, as amended, and Marketing Order, as amended, provide that the Secretary may terminate the provisions thereof by giving at least 7 days notice by means of a press release or in any other manner which the Secretary may determine (9 CFR 131.112). Termination of the aforesaid Marketing Agreement, as amended, and Marketing Order, as amended, will relieve restrictions and it is found and determined that good cause exists for making such termination effective at midnight, e.s.t., on December 31, 1966, and that it would be contrary to the public interest to delay the effective date thereof beyond December 31, 1966.

It is hereby further ordered, That the provisions dealing with nominations for Control Agency members on December 1 of each year and the selection of the Control Agency members and their alternates by the Secretary, set forth in the aforesaid Marketing Agreement, as amended, and Marketing Order, as amended (9 CFR 131.22, 131.23), be, and they are hereby suspended, effective immediately. Notice of proposed rule making and public procedure regarding suspension of the said provisions concerning nominations and selection of Control Agency members under the said Marketing Agreement, as amended, and Marketing Order, as amended (9 CFR 131.22, 131.23), are impracticable, unnecessary, and contrary to the public interest in view of the termination of said Marketing Agreement and Marketing Order, as amended, and good cause exists for making such suspension effective immediately.

(Sec. 56–60, 49 Stat. 781, as amended; 7 U.S.C. 851–855)

Issued at Washington, D.C., this 13th day of December 1966, to be effective as aforesaid.

GEORGE L. MEHREN,
Assistant Secretary.

[F.R. Doc. 66–13565; Filed, Dec. 16, 1966; 8:47 a.m.]

Title 15—COMMERCE AND FOREIGN TRADE

Chapter II—National Bureau of Standards, Department of Commerce

SUBCHAPTER A—TEST FEE SCHEDULES

PART 204—RADIATION PHYSICS

Miscellaneous Amendments

Under the provisions of 15 U.S.C. 275 (a) and 277, the test fee schedules of the National Bureau of Standards, Department of Commerce, pertaining to the calibration of gamma-emitting radioactive samples, alpha-emitting radioactive samples and beta-emitting radioactive samples (§§204.201, 204.202, 204.203) are revised as provided herein.

This revision, effective upon publication in the FEDERAL REGISTER, supersedes Title 15, Chapter II, Subchapter A, §§ 204.201, 204.202, and 204.203 of Part 204—Radiation Physics.

The fees have generally been revised upward to assure full recovery of the cost of providing calibration services.

§ 204.201 Calibration of gamma-emitting radioactive samples.

Calibration of gamma-emitting radioactive samples that conform to the physical, chemical, and activity level specifications for measurement in the National Bureau of Standards calibrated $4\pi\gamma$-ionization chamber.

Item	Description	Fee
204.201a	(1) 100 to 300 micrograms radium	$110.00
	(2) Chemically stable solutions of the following radionuclides in the specified activity ranges can be measured	110.00
	i. 50 to 100 microcuries sodium-22, sodium-24, scandium-46, cobalt-60, yttrium-88.	
	ii. 150 to 300 microcuries manganese-54, iron-59, zinc-65, strontium-85, niobium-95, iodine-131, cesium-137, tantalum-182, gold-198, mercury-203.	
	iii. 300 to 600 microcuries potassium-42, cobalt-57, cerium-139, cerium-141.	
	Solutions should be 5 ml in volume and flame-sealed in glass vials or ampoules of O.D. 16.0±0.5 mm, wall thickness approximately 0.5 mm.	
204.201b	Chemically stable solutions of the following radionuclides in the specified activity ranges can be measured	135.00
	i. 10 to 20 microcuries sodium-22, sodium-24, scandium-46, cobalt-60, yttrium-88.	
	ii. 30 to 60 microcuries manganese-54, iron-59, zinc-65, strontium-85, niobium-95, iodine-131, cesium-137, tantalum-182, gold-198, mercury-203.	
	iii. 60 to 100 microcuries potassium-42, cobalt-57, cerium-139, cerium-141.	
	Solutions should be 5 ml in volume and flame-sealed in glass vials or ampoules of O.D. 16.0±0.5 mm, wall thickness approximately 0.5 mm.	
204.201z	For tests not covered by the above schedule, fees will be charged dependent on the time involved in making the tests.	

§ 204.202 Calibration of alpha-emission rate of sources.

Calibration of alpha-emitting radioactive samples that conform to the physical and activity level specifications for measurement in the National Bureau of Standards $2\pi\alpha$-proportional counter.

Item	Description	Fee
204.202a	Chemically stable samples that conform to the physical and activity level specifications listed below can be measured	$88.00
	i. Source diameter should not exceed 10 cm.	
	ii. Source thickness should be such that more than 99.5— of the emitted alpha particles have an energy greater than 400 keV.	
	iii. Emission rate should not exceed 5×10^5 aps.	
204.202z	For tests not covered by the above schedule, fees will be charged dependent on time involved in making the tests.	

§ 204.203 Calibration of beta-emitting radioactive samples.

Calibration of beta-emitting radioactive samples that conform to the physical, chemical, and activity level specifications for measurement in the National Bureau of Standards calibrated $2\pi\beta$-windowless proportional flow counter, or in the National Bureau of Standards calibrated $2\pi\beta$-ionization chamber.

Item	Description	Fee
204.203a	Chemically stable solutions of the following radionuclides in the specified activity ranges can be measured in the National Bureau of Standards $2\pi\beta$-windowless proportional flow counter	$285.00
	i. 1 to 10 microcuries/milliliter chlorine-36, strontium-yttrium-90.	
	ii. 2 to 20 microcuries/milliliter thallium-204.	
	iii. 5 to 50 microcuries/milliliter calcium-45, promethium-147.	
	iv. 10 to 100 microcuries/milliliter sulfur-35.	
	Solutions should be approximately 5 ml in volume and flame-sealed in glass vials or ampoules.	
204.203b	Chemically stable solutions of the following radionuclides in the specified activity ranges can be measured in the National Bureau of Standards $2\pi\beta$-ionization chamber	150.00
	i. 2 to 20 microcuries/milliliter phosphorus-32. Solution should be neutral or weak acid with not more than 0.2 mg/ml total solids.	
	ii. 2 to 20 microcuries/milliliter strontium-89, strontium-yttrium-90. Solution should be weak HCl (1N or less) with not more than 0.2 mg/ml total solids.	
	Solutions should be approximately 5 ml in volume and flame-sealed in glass vials or ampoules.	
204.203z	For tests not covered by the above schedule, fees will be charged dependent on the time involved in making the tests.	

Dated: December 6, 1966.

A. V. ASTIN,
Director.

[F.R. Doc. 66–13533; Filed, Dec. 16, 1966; 8:45 a.m.]

Title 20—EMPLOYEES' BENEFITS

Chapter V—Bureau of Employment Security, Department of Labor

PART 602—COOPERATION OF U.S. EMPLOYMENT SERVICE AND STATES IN ESTABLISHING AND MAINTAINING A NATIONAL SYSTEM OF PUBLIC EMPLOYMENT OFFICES

Hearings

Pursuant to authority contained in section 12 of the Wagner-Peyser Act (29 U.S.C. 49k), Reorganization Plan No. 2 of 1949 (3 CFR, 1949–1953 Comp., p. 998), and 20 CFR 602.21, I hereby revoke 20 CFR 602.23 entitled, "Notice and opportunity for hearing to State agency prior to withdrawal of Federal funds," because these matters are adequately provided for in 20 CFR Part 601.

As this amendment only concerns agency procedure, notice of proposed rule making, public participation, and delay in effective date are not required by section 4 of the Administrative Procedure Act (5 U.S.C. 553). I do not believe such participation and delay will serve a useful purpose here. Accordingly, the revocation shall become effective upon publication in the FEDERAL REGISTER.

Signed at Washington, D.C., this 12th day of December 1966.

ROBERT C. GOODWIN,
Administrator,
Bureau of Employment Security.

[F.R. Doc. 66–13576; Filed, Dec. 16, 1966; 8:48 a.m.]

Title 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 550—PAY ADMINISTRATION (GENERAL)

Coverage

Section 550.701 is amended to provide that severance pay regulations apply to a seasonal employee with a regularly prescheduled tour of duty within each administrative workweek during the season for which his services are required. Effective on publication in the FEDERAL REGISTER, paragraph (b) of § 550.701 is amended as set out below.

§ 550.701 Coverage.

* * * * *

(b) *Employees.* (1) Except as provided by subparagraph (2) of this paragraph and section 9(b) of the act, this subpart applies to each full-time and part-time employee of a department, with a regularly prescheduled tour of duty within each administrative workweek, to each seasonal employee with a regularly prescheduled tour of duty within each administrative workweek during the season for which he is employed, and to each hourly employee in the postal field service, who is serving (i) under a career or career-conditional appointment in the competitive service or under their equivalent in the excepted service; (ii) under an indefinite appointment in the competitive service made under the indefinite-appointment system that preceded the career-conditional appointment system; (iii) under an indefinite appointment without time limitation in the excepted service; (iv) under an overseas limited appointment without time limitation; (v) as a status quo employee including one who becomes an indefinite employee upon promotion, demotion, or reassignment.

(Sec. 9(c) of P.L. 89–301, 79 Stat. 1119 and E.O. 11257)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] JAMES C. SPRY,
Acting Executive Assistant to the Commissioners.

[F.R. Doc. 66–13569; Filed, Dec. 16, 1966; 8:48 a.m.]

Title 24—HOUSING AND HOUSING CREDIT

Chapter II—Federal Housing Administration, Department of Housing and Urban Development

MISCELLANEOUS AMENDMENTS TO CHAPTER

The following miscellaneous amendments have been made to this chapter:

SUBCHAPTER C—MUTUAL MORTGAGE INSURANCE AND INSURED HOME IMPROVEMENT LOANS

PART 203—MUTUAL MORTGAGE INSURANCE AND INSURED HOME IMPROVEMENT LOANS

Subpart B—Contract Rights and Obligations

Section 203.405 is amended to read as follows:

§ 203.405 Debenture interest rate.

Debentures shall bear interest from the date of issue, payable semiannually on the first day of January and the 1st day of July of each year at the rate in effect as of the date the commitment was issued, or as of the date the mortgage was endorsed for insurance, whichever rate is the higher. The following interest rates are effective for the dates listed:

Effective rate (percent)	On or after—	Prior to—
4½	Jan. 1, 1964	Jan. 1, 1966
4⅜	Jan. 1, 1966	July 1, 1966
4½	July 1, 1966	Jan. 1, 1967
4¾	Jan. 1, 1967	

Section 203.479 is amended to read as follows:

§ 203.479 Debenture interest rate.

Debentures shall bear interest from the date of issue, payable semiannually on the 1st day of January and the 1st day of July of each year at the rate in effect as of the date the commitment was issued, or as of the date the loan was endorsed for insurance, whichever rate is the higher. The following interest rates are effective for the dates listed:

Effective rate (percent)	On or after—	Prior to—
4½	Jan. 1, 1964	Jan. 1, 1966
4⅜	Jan. 1, 1966	July 1, 1966
4½	July 1, 1966	Jan. 1, 1967
4¾	Jan. 1, 1967	

(Sec. 211, 52 Stat. 23; 12 U.S.C. 1715b. Interpret or apply sec. 203, 52 Stat. 10, as amended; 12 U.S.C. 1709)

SUBCHAPTER D—RENTAL HOUSING INSURANCE

PART 207—MULTIFAMILY HOUSING MORTGAGE INSURANCE

Subpart B—Contract Rights and Obligations

In § 207.259 paragraph (e)(6) is amended to read as follows:

§ 207.259 Insurance benefits.

* * * * *

(e) *Issuance of debentures.* * * *

(6) Bear interest from the date of issue, payable semiannually on the 1st day of January and the 1st day of July of each year at the rate in effect as of the date the commitment was issued, or as of the date of initial insurance endorsement of the mortgage, whichever rate is the higher. The following interest rates are effective for the dates listed:

Effective rate (percent)	On or after—	Prior to—
4½	Jan. 1, 1964	Jan. 1, 1966
4⅜	Jan. 1, 1966	July 1, 1966
4½	July 1, 1966	Jan. 1, 1967
4¾	Jan. 1, 1967	

(Sec. 211, 52 Stat. 23; 12 U.S.C. 1715b. Interprets or applies sec. 207, 52 Stat. 16, as amended; 12 U.S.C. 1713)

SUBCHAPTER F—URBAN RENEWAL HOUSING INSURANCE AND INSURED IMPROVEMENT LOANS

PART 220—URBAN RENEWAL MORTGAGE INSURANCE AND INSURED IMPROVEMENT LOANS

Subpart D—Contract Rights and Obligations—Projects

Section 220.830 is amended to read as follows:

§ 220.830 Debenture interest rate.

Debentures shall bear interest from the date of issue, payable semiannually on the 1st day of January and the 1st day of July of each year at the rate in effect as of the date the commitment was issued, or as of the date the loan was endorsed for insurance, whichever rate

is the higher. The following interest rates are effective for the dates listed:

Effective rate (percent)	On or after—	Prior to—
4½	Jan. 1, 1964	Jan. 1, 1966
4⅜	Jan. 1, 1966	July 1, 1966
4⅝	July 1, 1966	Jan. 1, 1967
4¾	Jan. 1, 1967	

(Sec. 211, 52 Stat. 23; 12 U.S.C. 1715b. Interprets or applies sec. 220, 68 Stat. 596, as amended; 12 U.S.C. 1715k)

Issued at Washington, D.C., December 13, 1966.

[SEAL] PHILIP N. BROWNSTEIN,
Federal Housing Commissioner.

[F.R. Doc. 66-13578; Filed, Dec. 16, 1966; 8:48 a.m.]

Title 32—NATIONAL DEFENSE

Chapter I—Office of the Secretary of Defense

SUBCHAPTER B—PERSONNEL; MILITARY AND CIVILIAN

PART 80—PERMANENT-RESIDENCE ALIENS SERVING IN ARMED FORCES OF UNITED STATES TO FULFILL NATURALIZATION REQUIREMENTS; SEPARATION OF

The Deputy Secretary of Defense has approved the following policy on November 19, 1966.

Sec.
80.1 Purpose and applicability.
80.2 Definitions.
80.3 Policy.

AUTHORITY: The provisions of this Part 80 issued under sec. 301, 80 Stat. 379; 5 U.S.C. 301.

§ 80.1 Purpose and applicability.

This part reissues Assistant Secretary of Defense (Manpower) and Deputy Assitant Secretary of Defense (Manpower) memoranda to Secretaries of Military Departments, "Permanent-Residence Aliens Serving on Enlistments of Three or More Years," January 30, 1959, and May 12, 1966, and furnishes policy guidance to the Secretaries of the military departments governing discharge or release from active duty in the armed forces of the United States of permanent-residence aliens who desire to be naturalized as U.S. citizens under the provisions of the Act of June 27, 1952, section 328 (66 Stat. 249; 8 U.S.C. 1439).

§ 80.2 Definitions.

(a) Permanent-residence aliens are aliens admitted into the United States under an immigration visa for permanent residence; or aliens who, after admission without an immigrant visa, have had their status adjusted to that of aliens lawfully admitted for permanent residence.

(b) Armed forces of the United States denotes collectively all components of the Army, Navy, Air Force, Marine Corps, and Coast Guard.

§ 80.3 Policy.

(a) Under the provisions of the Act of June 27, 1952, section 328 (66 Stat. 249; 8 U.S.C. 1439) an alien who has served in the armed forces of the United States for a period(s) totaling three (3) years may be naturalized if he:

(1) Has been lawfully admitted to the United States for permanent residence;

(2) Was separated from the military service under honorable conditions;

(3) Files a petition while still in the military service, or within six (6) months after the termination of such service; and

(4) Can comply in all other respects with the Immigration and Nationality Act of 1952, except that (i) no period of residence or specified period of physical presence in the United States or the State in which the petition for naturalization is filed is required, and (ii) residence within the jurisdiction of the court is not required.

(b) The prescribed 3-year period may be satisfied by a combination of active duty and inactive duty in a reserve status.

(c) Alien personnel desiring to fulfill naturalization requirements through military service shall not be separated prior to completion of three (3) full years of active duty unless:

(1) Their performance or conduct does not justify retention, in which case they shall be separated in accordance with the provisions of DoD Directive 1332.14, "Administrative Discharges," dated December 20, 1965, or Chapter 47, Title 10, U.S.C. (Uniform Code of Military Justice), as appropriate; or

(2) They are to be transferred to inactive duty in a reserve component in order to—

(i) Complete a reserve obligation under the provisions of DoD Directive 1200.13, "Ready Reservists Involuntarily Ordered to Active Duty, Delay; Exemption; Early Release of," dated May 21, 1962, or

(ii) Attend a recognized institution of higher learning under the early release program, as provided in DoD Directive 1332.15, "Early Release of Military Enlisted Personnel for College Enrollment," dated December 8, 1959.

(d) Caution shall be exercised to insure that an alien's affiliation with the armed forces of the United States, whether on active duty or on inactive duty in a reserve status, is not terminated even a few days short of the 3-year statutory period, since failure to comply with the exact 3-year requirement of the Act of June 27, 1952, section 328 (66 Stat. 249; 8 U.S.C. 1439) will automatically preclude a favorable determination by the Immigration and Naturalization Service on any petition for naturalization based on an alien's military service.

MAURICE W. ROCHE,
Director, Correspondence and Directives Division, OASD (Administration).

[F.R. Doc. 66-13536; Filed, Dec. 16, 1966; 8:45 a.m.]

SUBCHAPTER D—SECURITY

PART 155—INDUSTRIAL PERSONNEL SECURITY CLEARANCE PROGRAM

The Deputy Secretary of Defense approved the following revision of Part 155 on December 7, 1966:

Sec.
155.1 Purpose.
155.2 Definitions.
155.3 Applicability and scope.
155.4 Policy.
155.5 Criteria.
155.6 Administration.
155.7 Procedures.
155.8 Suspension actions in security violation cases.
155.9 Reimbursement for loss of earnings.
155.10 Pending and reopened cases.

AUTHORITY: The provisions of this Part 155 issued under R.S. 161, sec. 202, 61 Stat. 500, as amended; 5 U.S.C. 22, 171a. E.O. 10501, Nov. 5, 1953, 18 F.R. 7049; 3 CFR (1953 Supp.) 115; E.O. 10865, Feb. 20, 1960, 25 F.R. 1583, as amended by E.O. 10909, Jan. 17, 1961, 26 F.R. 508.

§ 155.1 Purpose.

In accordance with Executive Order 10865 as amended by Executive Order 10909 this part establishes the standard and criteria for making security clearance determinations when persons employed in private industry require access to classified defense information, and sets forth procedures which shall be followed for cases arising under the Department of Defense Industrial Personnel Security Clearance Program (hereinafter referred to as the Program).

§ 155.2 Definitions.

(a) "Department of Defense components" includes the Military Departments and Defense Agencies and, as appropriate, their subordinate organizations.

(b) "Agencies" refers to Executive Departments and agencies outside of the Department of Defense which have agreed to process industrial personnel security clearances under this part.

(c) Agency case: A case arising out of the release of classified information to or within industry by any agency.

(d) Agency head: The head of any of the Agencies in paragraph (b) of this section.

(e) Applicant: A person eligible to have the status of his clearance determined under this part.

(f) Contractor: An industrial, educational, commercial, or other organization which has executed a Department of Defense Security Agreement.

(g) Examiner: An official designated by the Department of Defense to conduct hearings and make determinations under the program.

(h) Hearing: A proceeding convened and conducted by an Examiner in accordance with this part for the purpose of determining an applicant's eligibility for a clearance.

(i) Security clearance or clearance: An authorization for a contractor or person employed by a contractor to have access to specified levels of classified de-

fense information provided his duties so require.

(j) Statement of reasons: A statement issued by the Department of Defense setting out the reasons why an applicant's security clearance should be denied, suspended, or revoked.

§ 155.3 Applicability and scope.

(a) The provisions of this part are applicable to all Department of Defense components.

(b) By mutual agreement, the provisions of this part also extend to other agencies. These agencies include the Department of State, Department of Treasury, Department of Commerce, General Services Administration, National Science Foundation, Small Business Administration, Federal Aviation Agency, National Aeronautics and Space Administration, and such other agencies as may agree to process industrial security clearance cases under this part.

(c) All applicants in private industry who require access to classified defense information shall as a minimum be investigated in accordance with the standards set forth in Department of Defense Directive 5210.8, Policy on Investigation and Clearance of Department of Defense Personnel for Access to Classified Defense Information, dated February 15, 1962.

(d) This part applies to cases in which the applicant is eligible to be considered for a clearance, and a Department of Defense activity has recommended either (1) that such clearance be denied or revoked, or (2) that such clearance be suspended under § 155.8(a).

(e) In cases where an applicant's clearance has been suspended or a statement of reasons issued, the subsequent termination of employment will not affect the applicant's right to pursue these procedures.

(f) The program may be extended to other cases at the direction of the Assistant Secretary of Defense (Administration).

(g) The program does not extend to cases involving access to communications analysis material or information, to cases in which a clearance is administratively withdrawn without prejudice upon a finding that the applicant is not eligible, or to cases in which an interim clearance is withdrawn during an investigation.

§ 155.4 Policy.

(a) Access to classified information shall be granted or continued only to those individuals who have been determined eligible based upon a finding that to do so is clearly consistent with the national interest.

(b) In the course of an investigation, interrogation, examination, or hearing, the applicant may be requested to answer relevant questions, or to authorize others to release relevant information about himself. The applicant is expected to give full, frank, and truthful answers to such questions, and to authorize others to furnish relevant information. The applicant may elect on constitutional or other grounds not to comply. However, such a willful failure or refusal to furnish or to authorize the furnishing of relevant and material information may prevent the Department of Defense from reaching the affirmative finding required by Executive Order 10865 as amended by Executive Order 10909 in which event any security clearance then in effect shall be suspended by the Assistant Secretary of Defense (Administration), or his designee, and the further processing of his case discontinued.

(c) Inquiries concerning an applicant will be limited to matters relevant to a determination whether granting access to classified information is clearly consistent with the national interest, and shall not be directed to the applicant's opinions about: (1) Religious beliefs and affiliations; (2) racial matters; (3) political candidates or parties other than those included in § 155.5(d); (4) the constitutionality or wisdom of legislative policies.

(d) Determinations under this part shall be in terms of the national interest and shall in no sense be determinations as to the loyalty of the applicant; nor shall they be considered a bar to employment in a position not requiring access to classified information.

(e) The conduct described in § 155.5 may, in the light of all the surrounding circumstances, be the basis for denying or revoking a clearance. The conduct varies in implication, degree of seriousness, and significance depending upon all the factors in a particular case. Therefore, the ultimate determination must be an overall common sense one based upon all the information which may properly be considered under this part including, but not limited to, such factors as the following: The seriousness of the conduct, its implications, its recency, the motivations for it, the extent to which it was voluntary and undertaken with knowledge of the circumstances involved and, to the extent that it can be estimated and is appropriate in a particular case, the probability that it will continue in the future.

§ 155.5 Criteria.

The criteria for determining eligibility for a clearance shall relate, but not be limited to, the following:

(a) The attempt or commission of any act of sabotage, espionage, treason, or sedition, or conspiring with, or aiding or abetting, another to commit or attempt to commit any act of sabotage, espionage, treason, or sedition.

(b) Establishing or continuing a sympathetic association with a saboteur, spy, traitor, seditionist, anarchist, or with an espionage agent or other representative of a foreign nation whose interests may be inimical to the interests of the United States, or with any person who advocates the use of force or violence to overthrow the Government of the United States or the alteration of the form of Government of the United States by unconstitutional means.

(c) Advocacy of use of force or violence to overthrow the Government of the United States, or of the alteration of the form of Government of the United States by unconstitutional means.

(d) Membership in, or affiliation or sympathetic association with, or participation in the activities of any foreign or domestic organization, association, movement, group, or combination of persons which is totalitarian, Fascist, Communist, or subversive, or which has adopted or shows, a policy of advocating or approving the commission of acts of force or violence to deny other persons their rights under the Constitution of the United States, or which seeks to alter the form of Government of the United States by unconstitutional means.

(e) International, unauthorized disclosure to any person of classified information, or of other information, disclosure of which is prohibited by law.

(f) Performing or attempting to perform his duties, or otherwise acting, so as to serve the interests of another government in preference to the interests of the United States.

(g) Participation in the activities of an organization established as a front for an organization referred to in paragraph (d) of this section under circumstances indicating that his personal views were sympathetic to the subversive purposes of such organization.

(h) Participation in the activities of an organization with knowledge that it had been infiltrated by members of subversive groups under circumstances indicating that the individual was a part of, or sympathetic to, the infiltrating element or sympathetic to its purposes.

(i) Sympathetic interest in totalitarian, Fascist, Communist, or similar subversive movements.

(j) Sympathetic association with a member, or members, or an organization referred to in paragraph (d) of this section. Ordinarily, this will not include chance or occasional meetings nor contacts limited to normal business or official relations.

(k) Currently maintaining a close continuing association with a person who has engaged in activities or associations of the type referred to in paragraphs (a) through (j) of this section. A close continuing association may be deemed to exist where the individual lives at the same premises as, frequently visits, or frequently communicates with, such person.

(l) Close continuing association of the type described in paragraphs (a) through (k) of this section even though later separated by distance, where the circumstances indicate that renewal of the association is probable.

(m) Willful violation or disregard of security regulations.

(n) Any behavior, activities, or associations which tend to show that the individual is not reliable or trustworthy.

(o) Any deliberate misrepresentations, falsifications, or omission of material facts from a Personnel Security Questionnaire, Personal History Statement, or similar document.

(p) Any criminal, infamous, dishonest, immoral, or notoriously disgraceful conduct, habitual use of intoxicants to

excess, drug addiction, or sexual perversion.

(q) Acts of a reckless, irresponsible, or wanton nature which indicate such poor judgment and instability as to suggest that the individual might disclose classified information to unauthorized persons, or otherwise assist such persons, whether deliberately or inadvertently, in activities inimical to the national interest.

(r) Any illness, including any mental condition, of a nature which, in the opinion of competent medical authority, may cause significant defect in the judgment or reliability of the employee, with due regard to the transient or continuing effect of the illness and the medical finding in such cases.

(s) Any facts or circumstances which furnish reason to believe that the individual may be subjected to coercion, influence, or pressure which may be likely to cause action contrary to the national interest. Such facts may include: The presence of a close relative of the applicant or of the applicant's spouse in a nation whose interests may be inimical to the interests of the United States, or in satellites or occupied areas of such a nation, under circumstances permitting coersion or pressure to be brought on the individual through such relatives which may be likely to cause action contrary to the national interest. The term close relative includes parents, brothers, sisters, offspring, and spouse.

(t) Excessive indebtedness, recurring financial difficulties, unexplained affluence or repetitive unexplained absences.

(u) Refusal by the individual, without satisfactory subsequent explanation, to answer questions before a Congressional Committee, Federal or State court, or Federal administrative body, regarding charges of his alleged disloyalty or other conduct relevant to his security eligibility.

§ 155.6 Administration.

(a) The Assistant Secretary of Defense (Administration) shall provide overall policy guidance for the program and is responsible for its administration, including the organization and composition of the various boards and staffs, and the establishment of field offices. The Assistant Secretary of Defense (Administration), or his designee, may issue such supplemental instructions and guidance as may be desirable for efficient and equitable operation of the program or to accomplish the objectives set out in Executive Order 10865 as amended by Executive Order 10909.

(b) An Office shall be established in the Office of the Assistant Secretary of Defense (Administration), to administer the program and shall include an Administrative Staff, Department Counsel, Screening Board, Field Offices, and an Appeal Board.

(c) Department of Defense components designated to support boards, staffs, and field offices will provide, from resources available to the designated Department of Defense component, financing, personnel, and personnel spaces, office facilities, and related administrative support.

(d) The Assistant Secretary of Defense (Administration), or his designee, is authorized to issue in appropriate cases, invitations and travel orders to persons to appear and testify who have provided oral or written statements adverse to the applicant relating to a controverted issue. The Assistant Secretary of Defense (Administration), or his designee, is authorized to issue instructions regarding the issuance of travel orders, payment of travel expenses, and reimbursement for actual expenses as provided by section 6 of Executive Order 10865 as amended by Executive Order 10909.

(e) Screening Board members will be designated by the Assistant Secretary of Defense (Administration), or his designee. The Screening Board will be divided into panels of three members each; one member of each panel will be designated as chairman. In an agency case, the Agency Head may appoint one member from his agency to such a panel.

(f) Examiners, who must be qualified civilian attorneys, will be designated by the Assistant Secretary of Defense (Administration), or his designee. A single Examiner will be assigned to each case. Examiners will be assigned to such locations as will best serve the needs of the program.

(g) Qualified attorneys will be designated by the Assistant Secretary of Defense (Administration), or his designee, to act as counsel for the Department of Defense in cases in which hearings are held. Department Counsel will present the Department's case at the hearing and will conduct examinations and cross-examinations of those persons testifying, as appropriate. Other functions of Department Counsel include (1) providing advice and assistance to the Screening Board as required, and (2) taking appeals to and arguing cases before the Appeal Board on behalf of the Department. Department Counsel will not participate in the deliberations or determinations of any of the Boards, nor present any argument or other representation to an Examiner or to the Appeal Board with respect to any case pending before such Examiner or Board unless the applicant involved is provided with advance notice of intention and reasonable opportunity to be heard.

(h) Appeal Board members will be designated by the Assistant Secretary of Defense (Administration), or his designee. The Appeal Board will be divided into panels of three members each. One member of each panel will be designated as chairman. In an agency case, the Agency Head may appoint one member from his agency to such a panel.

(i) The Screening Board, the Examiners, and the Appeal Board shall operate under the authority, direction, and control of the Assistant Secretary of Defense (Administration).

§ 155.7 Procedures.

(a) *Screening Board.* (1) Where a Department of Defense component recommends that an industrial security clearance be denied or revoked, the applicant's case and the recommendation of the Defense component will be referred to the Screening Board. As an interim measure, where a determination is made that the applicant's continued access to classified information, pending action by the Screening Board, would constitute an immediate threat to the national interest, an existing clearance will be suspended. This interim suspension authority, however, is limited to statutory appointees, and the Deputy Director for Contract Administration Services, Defense Supply Agency; where there is significant evidence of espionage or sabotage, emergency suspension action may be taken by an authorized subordinate after consulting with appropriate investigative agency officials. The Assistant Secretary of Defense (Administration) shall be notified promptly of all suspension actions taken under this paragraph together with the basis therefor.

(2) With respect to any case pending before it, the Screening Board may direct (i) further investigation, specifying the particular matters to be investigated; (ii) written interrogatories; (iii) interviews with the applicant or other persons; (iv) a medical examination of the applicant; or (v) recommend to the Assistant Secretary of Defense (Administration), or his designee, the suspension of the applicant's clearance pending further proceedings.

(3) Determinations of the Screening Board will be made by majority vote.

(4) Where the Screening Board determines that clearance at the level requested is clearly consistent with the national interest, a written determination will be prepared, the Defense component concerned notified, and any outstanding suspension rescinded.

(5) Where the Screening Board determines that the case does not warrant a favorable determination, it will prepare a statement of reasons informing the applicant of the grounds upon which his clearance may be denied or revoked. This statement of reasons shall be as comprehensive and detailed as the national security permits.

(6) The statement of reasons shall be forwarded to the applicant by the Assistant Secretary of Defense (Administration), or his designee, with a letter of instructions clearly outlining subsequent actions required of the applicant, including information on his right to counsel and right to appeal.

(7) To be entitled to a hearing the applicant must submit within twenty (20) days after receipt of the statement of reasons a detailed written answer under oath or affirmation which shall admit or deny specifically each allegation and each supporting fact contained in the statement of reasons. A general denial or other similar answer is not sufficient. The answer must be sufficiently responsive to permit the Department of Defense to determine the issues that are controverted. Where an applicant is without knowledge or information sufficient to form a belief as to the truth of an allegation contained in the statement of reasons, he may, after setting out fully the circumstances so state, and it may have the effect of a denial, upon a showing that he has made reasonable

inquiries as to the matters alleged and has been unable to obtain the requisite information or knowledge. If the Assistant Secretary of Defense (Administration), or his designee, finds that the applicant's answer does not meet the above requirements, he shall suspend any security clearance then in effect, and shall discontinue further proceedings.

(8) An applicant who answers the statement of reasons as prescribed above is entitled to a hearing before an Examiner at which he may be represented by counsel of his own choosing, and for which he shall have a reasonable time to prepare. At that hearing he may present evidence in his own behalf and may cross-examine adverse witnesses either orally or in writing as hereinafter provided.

(9) Where the applicant answers the statement of reasons but does not request a hearing, the case will be assigned to one of the Examiners for final determination based upon all available information including the applicant's answer.

(10) Should the applicant not answer the statement of reasons, the Department of Defense component which forwarded the case shall be directed to deny or revoke the clearance, and the applicant shall be so advised.

(b) *Examiner and prehearing procedures.* (1) The applicant who requests and is granted a hearing will be notified of the time and place of the hearing by the Examiner to whom the case is referred. Upon request either of the applicant or Department Counsel, postponements may be granted in the discretion of the Examiner. Dilatory postponements will not be allowed. Normally the hearing will be held in the city where the Examiner's office is located. Where the circumstances warrant convening at a different location, the Examiner may schedule the hearing elsewhere.

(2) Department Counsel is authorized to consult directly with the applicant or his counsel for the purpose of reaching agreement with respect to matters in issue. Stipulations entered into shall be binding upon the applicant and the Department of Defense for the purpose of these proceedings.

(3) The applicant is responsible for producing witnesses and other evidence in his own behalf at the hearing. Upon request, the Department Counsel and the Examiner may provide assistance upon a showing that it is practicable and necessary.

(4) Department Counsel is responsible for producing witnesses and information relied upon by the Department to establish those facts alleged in the statement of reasons which have been controverted. All Department of Defense components shall cooperate fully with Department Counsel so that the Department's responsibilities under this paragraph may be fulfilled.

(5) Where an applicant answers the statement of reasons but fails, without good and sufficient cause, to appear at the time and place set for the proceeding, the Examiner shall return the case to the Assistant Secretary of Defense (Administration), or his designee, who will direct the denial or revocation of the clearance, as appropriate, and advise the applicant.

(c) *Hearing.* (1) The purpose of a hearing under the program is to ascertain all the relevant facts in the case in order that a fair and impartial determination may be reached. The rules, including the rules of evidence, governing court proceedings or administrative hearings conducted under the Administrative Procedure Act are not applicable to hearings under this part.

(2) The hearing will be conducted in an orderly manner. It may be attended only by the Examiner, the applicant and his counsel, authorized personnel of the Department of Defense and necessary clerical personnel. Unless the Examiner rules otherwise, a witness may be present only when testifying. Should the conduct of the applicant or counsel impair the orderly progress of the hearing or should the Examiner's ruling be ignored or flouted deliberately, the Examiner is authorized in his discretion to recess the hearing forthwith. Further proceedings may be held only after satisfactory assurances are made to the Assistant Secretary of Defense (Administration), or his designee, that the rulings of the Examiner will be followed. Otherwise the recess will continue indefinitely, during which time the applicant will be ineligible for a clearance.

(3) The Examiner will notify all witnesses testifying that 18 United States Code 1001 makes it a criminal offense punishable by a maximum of 5 years imprisonment, $10,000 fine, or both, knowingly and willfully to make a false statement or representation to any department or agency of the United States as to any matter within the jurisdiction of any department or agency of the United States. Written interrogatories must be sworn to before a notary public or other official authorized to administer oaths.

(4) After a hearing has been convened, and the statement of reasons and the applicant's answer thereto have been entered into the record, the applicant shall have the right to make a general opening statement and to present his case.

(5) The Examiner may require the applicant to respond to relevant questions, to undergo a medical examination, or to authorize the release of relevant information in the possession of other parties. Should the applicant refuse, the Examiner shall refer the case to the Assistant Secretary of Defense (Administration) for action in accordance with the provisions of § 155.4(b).

(6) When appropriate, the Examiner will amend the statement of reasons to make it conform to the information presented and enter the amendment into the record. When such amendments are made, the Examiner will grant the applicant such additional time as the Examiner deems appropriate to answer such amendments and present evidence pertaining thereto.

(7) The Examiner may recess the hearing at the request of the applicant or his counsel, Department Counsel, or upon his own motion.

(8) A verbatim transcript (in triplicate) will be made of the hearing and made a permanent part of the record. The transcript will not include information introduced in accordance with provisions of paragraph (d) (4) and (5) of this section. The applicant will be furnished without cost one copy of the transcript, less the exhibits. Corrections will be allowed by the Examiner solely for the purpose of conforming the transcript to the actual testimony.

(9) Whenever the Examiner concludes that he requires further information in making a determination, he may request that a further investigation or examination be conducted. Information thus developed shall be made available to the Examiner subject to the provisions of thir part.

(d) *The case record.* (1) The record of a case shall consist of all information presented in accordance with this part by the Department of Defense and by or on behalf of the applicant. Irrelevant, immaterial, and unduly repetitious material shall be excluded in the discretion of the Examiner.

(2) Information adverse to the applicant on any controverted issue may not be made a part of the hearing record unless (i) the information or a summary thereof has been made available to the applicant and (ii) he either offers no objection to its presentation, or is afforded an opportunity to cross-examine the persons supplying the information either orally or in writing. The foregoing restrictions do not apply to information received and considered under subparagraphs (3), (4), (5), and (6) of this paragraph.

(3) Records compiled in the regular course of business, or other physical evidence other than investigative reports, may be made a part of the record in the case subject to rebuttal without authenticating witnesses, provided that such information has been furnished by an investigative agency pursuant to its responsibilities in connection with assisting the Secretary of Defense, or the Agency Head concerned, to safeguard classified information within industry pursuant to Executive Order 10865.

(4) Records compiled in the regular course of business or other physical evidence other than investigative reports, relating to a controverted issue, which, because they are classified, may not be inspected by the applicant, may be received and considered provided the Assistant Secretary of Defense (Administration), as designee of the Secretary of Defense, or when applicable, of the Agency Head concerned has (i) made a preliminary determination that such physical evidence appears to be material, and (ii), determines that failure to receive and consider such physical evidence would, in view of the level of access sought, be substantially harmful to the national security. Information as to the authenticity and accuracy of such physi-

cal evidence furnished by the investigative agency involved shall be considered.

(5) A written or oral statement adverse to the applicant on a controverted issue may be received and considered without affording an opportunity to cross-examine the person making the statement only in the circumstances described in either of the following subdivisions:

(i) The head of the department supplying the statement certifies that the person who furnished the information is a confidential informant who has been engaged in obtaining intelligence information for the Government and that disclosure of his identity would be substantially harmful to the national interest.

(ii) The Assistant Secretary of Defense (Administration) as designee of the Secretary of Defense, or when applicable, of the Agency Head, has preliminarily determined, after considering the information furnished by the investigative agency involved as to the reliability of the person and the accuracy of the statement concerned, that the statement concerned appears to be reliable and material, and has determined that failure to receive and consider such statement would, in view of the level of access sought, be substantially harmful to the national security, and that the person who furnished the information cannot appear to testify (*a*), due to death, severe illness, or similar cause, in which case the identity of the person and the information to be considered shall be made available to the applicant, or (*b*), due to some other cause determined by the Secretary of Defense, or, when appropriate, by the Agency Head concerned, to be good and sufficient.

(6) A written or oral statement relating to the characterization in the Statement of Reasons of any organization or individual other than the applicant may be received and considered without affording the applicant an opportunity to cross-examine the person making the statement irrespective of whether the statement is adverse to the applicant or relates to a controverted issue.

(7) Whenever physical evidence or statements are received and considered under subparagraphs (4) and (5) of this section, the applicant will be furnished with as comprehensive and detailed a summary of the information or physical evidence as the national security permits. Certificates evidencing the determinations required by these sections will be entered into the hearing record. Appropriate consideration shall be accorded by officials charged with making determinations under this part to the fact that the applicant did not have an opportunity to cross-examine the person or persons who provided the information, or to inspect the physical evidence.

(e) *Determinations.* (1) Following the hearing, the Examiner will determine whether it is clearly consistent with the national interest to grant or continue the applicant's clearance at a specific level. He will prepare findings of fact for or against the applicant with respect to each allegation in the Statement of Reasons and reasons in support of the said findings of fact. The Examiner's determination shall be based on grounds set out in the Statement of Reasons and upon information placed in the record in conformity with this part. Where the Examiner's determination is adverse to the applicant, the Examiner shall also determine whether any clearance then held by the applicant should be suspended or limited pending appeal under this part.

(2) Where the Examiner's determination is adverse to the applicant, a copy thereof will be furnished to the applicant. Where the determination is favorable to the applicant, a copy thereof will be furnished to the Department Counsel. In the absence of timely appeal under paragraph (f) of this section, this determination constitutes the final decision in the case: *Provided*, In those cases in which information was received and considered under paragraph (d) (4) and (5) of this section, a copy of the determination, less any deletions required in the interests of national security, will be furnished:

(i) To applicant, if adverse to him, with notice that, in the absence of a timely appeal under paragraph (f) of this section, the case record and the Examiner's determination will be forwarded to the Secretary of Defense or an Agency Head, as appropriate, for final determination;

(ii) To Department Counsel, if favorable to applicant, with notice that, in the absence of timely appeal under paragraph (f) of this section, the determination constitutes the final determination in the case.

(f) *Appeals.* (1) Within 10 days after receiving the Examiner's determination, the applicant or Department Counsel may appeal by filing a Notice of Appeal with the Appeal Board. When a Notice of Appeal is filed, a copy of the Examiner's determination will be furnished to the appellee.

(2) Appeals may be made either in person or by filing a brief, and shall be based solely upon the case record. No further testimony or other evidence shall be received. A brief shall state with particularity the specific issues involved in the appeal, cite the relevant portions of the record and set out the reasons why the determination should be reversed. Where an appeal is made in person, the appellant shall file with the Appeal Board, prior to the scheduled appeal hearing, a written statement identifying the issues to be considered before the Appeal Board. Appellant shall send a copy to the appellee who may file a statement in reply.

(3) The Appeal Board may recommend to the Assistant Secretary of Defense (Administration), or his designee, that a case be returned (i) for further investigation, or (ii) to the Examiner with instructions to take further testimony.

(4) Appeal Board deliberations will be made in executive session and the Board's determination arrived at by majority vote. The Board will prepare a written determination setting forth whether it is clearly consistent with the national interest to grant or continue a clearance to a specific level. The determination will include findings for or against the applicant with respect to each allegation in the Statement of Reasons and a separate memorandum of reasons in support of the determination.

(5) In those cases in which information was received and considered under paragraph (d) (4) and (5) of this section, and the Appeal Board's determination is adverse to the applicant, the case record, together with the determinations of the Examiner and the Appeal Board, will be referred to the Secretary of Defense or the appropriate Agency Head, who, following his personal review of the case, will make a final determination. In all other cases, the Appeal Board's determination will be announced as the final determination in the case.

(6) If the final determination is adverse to the applicant, he will be furnished findings with respect to each allegation in the Statement of Reasons. The Appeal Board's memorandum of reasons will not be furnished to the applicant.

(7) No provision of this part shall be construed as conferring a right upon an applicant to appeal from a final decision to the Secretary of Defense, to the Assistant Secretary of Defense (Administration) or to the Agency Head.

(8) Nothing contained in this part shall be deemed to limit or affect the responsibility and powers of the Secretary of Defense or of an Agency Head to deny or revoke a clearance when the security of the Nation so requires. This authority may be exercised only where he determines personally that the provisions of this part cannot be invoked consistently with the national security. Such determinations shall be conclusive.

§ 155.8 Suspension actions in security violation cases.

(a) In any case alleging wilful, unauthorized use or release of classified information or documents, or wilful appropriation or retention of classified documents for personal use or for the use of others, or where the loss or compromise of classified documents or information is wilfully concealed, the Screening Board, irrespective of whether its determination under § 155.7(a) is to grant or continue a clearance, or issue a Statement of Reasons, shall make a separate finding whether the acts are established by a preponderance of the evidence. In each case where it so finds, it shall suspend an existing clearance for a period of 1 year, subject to the provisions of paragraph (b) of this section, and shall set out in writing its reasons therefor.

(b) Where within twenty (20) days after being notified of the Screening Board action, the applicant does not give notice of intent to contest the proposed suspension, it shall be ordered into effect. Where the applicant contests the proposed suspension, the case shall be referred to an Examiner who shall make a final determination following a hearing which shall be governed by the provisions of this part to the extent applicable. A determination by the Examiner under this section shall be final and no further appeal may be taken.

(c) No action taken under this section shall preclude other actions as provided in this part at any stage of the proceedings. Issues under this section shall be heard in the same proceeding as other issues under this part, unless otherwise agreed by the parties.

(d) The Assistant Secretary of Defense (Administration), or his designee, shall order suspensions under this section which shall become effective immediately.

(e) When the suspension has expired the applicant will be eligible for reinstatement of his clearance upon filing the necessary forms.

§ 155.9 Reimbursement for loss of earnings.

(a) An applicant may be reimbursed for a loss of earnings resulting directly from the suspension, revocation, or denial of his clearance provided (1) a final determination thereafter is made that it is clearly consistent with the national interest to grant him a clearance for access to classified information at least equal to that which was suspended, revoked, or denied and (2) it is found to be fair and equitable for the Department of Defense to reimburse the applicant for all or a part of the loss of earnings.

(b) It shall be considered fair and equitable, except as hereinafter provided, to reimburse any applicant who has suffered loss of earnings as a result of suspension, revocation, or denial of clearance when that clearance is, in the course of the timely exhaustion of remedies by the applicant, granted or restored. A claim for reimbursement may be denied when:

(1) The subsequent determination to grant the clearance depends upon material facts withheld by the applicant, or where circumstances have changed since the suspension, revocation, or denial and the grant or restoration of the clearance; or

(2) The suspension, revocation, or denial follows the applicant's failure to comply with procedural requirements.

(c) Claims for reimbursement in Department of Defense cases shall be initiated by a petition filed by the applicant with the Assistant Secretary of Defense (Administration). The petition shall contain a detailed statement why fairness and equity require reimbursement, including the basis for the assertion that the loss of earnings is attributable to the suspension, denial, or revocation of the clearance, and shall identify the alleged errors of fact or judgment involved.

(d) Claims for reimbursement in agency cases shall be initiated by a petition filed by the applicant with the agency concerned. At the request of the Agency Head concerned, the Department of Defense under its procedures will review the petition and furnish that agency with a recommendation with respect to the merits of the petition. However, the Department of Defense is not responsible for payment of such claims.

(e) When a case has been reopened under § 155.10, and thereupon a determination favorable to the applicant is made, a request for reimbursement may be considered only where (1) the applicant exhausted all of the administrative remedies available in the original proceeding, (2) the applicant made a full and complete disclosure during the original proceeding, and (3) the determination to grant or restore the clearance is not based upon circumstances occurring after the final denial or revocation.

(f) The amount of reimbursement shall not exceed the difference between the earnings of the applicant at the time of the suspension, revocation, or denial, whichever is earlier, and the interim net earnings. No reimbursement shall be allowed for any period of undue delay resulting from the applicant's acts or failure to act. Any payment shall be in full satisfaction of any further claim against the United States, the Department of Defense, and the Departments and Agencies referred to in § 155.3(b), arising out of the suspension, revocation, or denial of a clearance. Any claim shall be forever barred unless it is filed within 1 year after the date such claim first accrues, or within 1 year of the final disposition of the case, whichever is later: *Provided*, A claim for reimbursement may be filed under this section within 1 year from the effective date of this part where the applicant filed a claim under Department of Defense Directive 5220.6, Subject: Industrial Personnel Access Authorization Review Regulation, dated July 28, 1960 (25 F.R. 155), but was denied solely on the ground that the clearance determination which resulted in the loss of earnings was not unjustified.

(g) Approved claims against the Department of Defense shall be forwarded to the Department of the Army for payment from "Claims, Defense" Appropriation, in the same manner that Federal tort claims are currently processed under Department of Defense Directive 5515.9, Settlement of Claims Under the Provisions of the Federal Tort Claims Act (28 U.S. Code; secs. 2671–2680) (Delegation to the Secretary of the Army) dated November 15, 1961 (26 F.R. 11089).

§ 155.10 Pending and reopened cases.

(a) All cases pending before the Screening Board and the Field Boards 30 days from the date hereof shall proceed to a final determination under this part. All cases pending before the Central Board on that date, including those in which the applicant has requested a determination on the record, will be referred to an Examiner for determination, notwithstanding a tentative determination has been announced or oral argument heard.

(b) Any person whose clearance has been denied or revoked under this program or any predecessor program, may have his eligibility for a clearance reconsidered upon a showing of newly discovered evidence or other good cause. The request for reconsideration shall set out fully the grounds therfor. The Assistant Secretary of Defense (Administration), or his designee, in his discretion, shall grant or deny such requests for reconsideration.

(c) Where a clearance previously has been granted under this program, and a Department component or agency receives additional derogatory information which was not considered at the time the case was decided, it shall refer the informaton to the Deputy Director for Contract Administration Services, or to the Federal Bureau of Investigation, as appropriate, for appropriate action.

Effective date. Section 155.6 of this part is effective immediately. Other provisions are effective 30 days from the date hereof.

MAURICE W. ROCHE,
Director, Correspondence and Directives Division, OASD (Administration).

[F.R. Doc. 66-13537; Filed, Dec. 16, 1966; 8:45 a.m.]

Chapter VI—Department of the Navy

SUBCHAPTER C—PERSONNEL

PART 711—NAVAL RESERVE OFFICERS TRAINING CORPS

Determination of Date of Rank and Precedence Upon Commissioning

Scope and purpose. Part 711 is under revision because of changes effected by Public Law 88-647. The following is an interim amendment to indicate the determination of date of rank of graduates appointed second lieutenant in the U.S. Marine Corps or U.S. Marine Corps Reserve.

Section 711.316 is amended by adding paragraph (e) to read as follows:

§ 711.316 Determination of date of rank and precedence upon commissioning.

* * * * *

(e) In the case of those graduates appointed second lieutenant in the U.S. Marine Corps or U.S. Marine Corps Reserve, determination of date of rank is as follows:

Date of rank	*Commissioned during—*
January 1	January 1–March 31.
April 1	April 1–April 30.
U.S. Naval Academy graduation date.	May 1–June 30.
July 1	July 1–August 31.
September 1	September 1–October 31.
November 1	November 1–December 31.

(Sec. 5031, 70A Stat. 278, as amended, sec. 2107(e), 78 Stat. 1067, sec. 301, 80 Stat. 379; 5 U.S.C. 301, 10 U.S.C. 2107(e), 5031)

By direction of the Secretary of the Navy.

[SEAL] WILFRED HEARN,
Rear Admiral, U.S. Navy, Judge Advocate General of the Navy.

DECEMBER 12, 1966.

[F.R. Doc. 66-13534; Filed, Dec. 16, 1966; 8:45 a.m.]

PART 733—DECORATIONS AND AWARDS

Miscellaneous Amendments

Scope and purpose. To update Part 733 in accordance with directives which have been distributed to Navy and Marine Corps commands and will be incor-

porated in due course in the Navy and Marine Corps Awards Manual. In addition, § 733.24 is amended to reflect current delegation of authority.

1. Section 733.24 is revised to read as follows:

§ 733.24 Delegation of authority.

(a) The Medal of Honor will be awarded only with the approval of the President of the United States. All other Department of the Navy decorations for which authority is not delegated will be awarded by the Secretary of the Navy. At the present time, authority has been delegated to certain fleet commanders to award combat decorations of the Silver Star Medal and all junior thereto. Authority to award the Purple Heart is also delegated to the Chief of Naval Personnel, the Commandant of the Marine Corps, and at the present time to commanding officers of naval hospitals treating patients returned from Viet-Nam. Further delegation of authority and implementing instructions will be issued from time to time as the need arises.

(b) Authority to award the Joint Service Commendation Medal is delegated by the Secretary of Defense to certain joint commanders, who will furnish the medal and certificate. Such delegation of authority and implementing instructions will be issued by the Secretary of Defense from time to time as the need arises.

2. Section 733.53 is amended by revising paragraphs (a)(1)(x) and (d)(3) and adding a new (a)(1)(xi) to read as follows:

§ 733.53 Attachments.

* * * * *

(a) *Stars*—(1) *Bronze.* * * *

(x) National Defense Service Medal.

(xi) Marine Corps Reserve Ribbon.

* * * * *

(d) *Miscellaneous devices.* * * *

(3) Fleet Marine Force Combat Operations Insignia is authorized for wear by naval personnel attached to Fleet Marine Force units on the suspension ribbon of the medal and the ribbon bar of World War II area campaign medals, the Korean Service Medal, the Armed Forces Expeditionary Medal, and the Viet-Nam Service Medal, and on other appropriate medals authorized for any future wars, conflicts, or insurrections.

(i) *Wearing of Fleet Marine Force Combat Operations Insignia on suspension ribbons and bars of the Armed Forces Expeditionary Medal and the Viet-Nam Service Medal.* On November 13, 1965, the Secretary of the Navy authorized the wearing of the insignia on the suspension ribbons and bars of the Armed Forces Expeditionary Medal and the Viet-Nam Service Medal by Navy personnel attached to Fleet Marine Force units participating in combat operations.

(ii) *Applicability of authorization described in subdivision (i) of this subparagraph.* This authorization applies to Navy personnel who have been or will be attached to Marine Corps units participating in actual combat action at any time subsequent to July 1, 1958, such authorization to be effective for any future combat operations for which the Armed Forces Expeditionary Medal may be authorized.

(a) *Description and manner of wearing.* The insignia is a bronze replica of the official Marine Corps emblem 5/16 inch in height and shall be worn centered on the suspension ribbons and ribbon bars of the Armed Forces Expeditionary Medal and the Viet-Nam Service Medal. Authorized stars for subsequent awards of the Armed Forces Expeditionary Medal shall be arranged symmetrically on the suspension ribbon and the ribbon bar of that medal in relation to the insignia, the first star to the wearer's right, the second to his left, etc. (Stars are not authorized for wear on the Viet-Nam Service Medal.) Only one Fleet Marine Force Combat Operations Insignia will be worn on the Armed Forces Expeditionary Medal, and only one on the Viet-Nam Service Medal.

(b) *Procurement.* Announcement of the availability of this insignia and the method of procurement will be made at a time in the future when a supply is ready for distribution.

(1) *Active duty personnel attached to Marine Corps units.* For Navy personnel who are currently assigned to or are operating with a Marine Corps unit which has been or is currently engaged in actual combat action, commanding officers will make appropriate service record entries authorizing the wearing of the insignia.

(2) *Active duty personnel previously attached to Marine Corps units.* For personnel no longer attached to or operating with Marine Corps units, commanding officers will make appropriate entries certifying eligibility, and will authorize the wearing of the insignia, based upon such evidence of participation in combat with a Marine unit as the individual may be able to furnish, and/or upon his personal affidavit of such participation.

(3) *Inactive personnel.* Inactive or discharged personnel will request authorization from the Chief of Naval Personnel. Evidence of participation in combat with a Marine unit, with dates thereof, or submission of personal affidavits of such participation, should accompany the requests. Notification to such personnel concerning the authorization of this insignia will be made through appropriate news media.

* * * * *

3. Section 733.57 is amended by adding to paragraph (f)(1)(ii), by replacing the note at the end of paragraph (h)(2)(v) with a new (d), and by adding paragraphs (h)(2)(viii), (k), and (l), to read as follows:

§ 733.57 Requirements.

* * * * *

(f) *Expeditionary Medals (Navy and Marine Corps)*—(1) *Navy Expeditionary Medal.* * * *

(ii) *Eligibility requirements.* * * *

(a) Enclosure (1) to Secretary of the Navy Notice 1650 of March 2, 1966, contains the list of Navy ships and units eligible for the Navy Expeditionary Medal for participation in operations in Cuba between January 3, 1961, and October 23, 1962, inclusive.

(b) Personnel who were attached to any of the ships/units in the list referred to in (a) of this subdivision at any time during the respective periods shown, and who actually participated in the action or service for which the Navy Expeditionary Medal was awarded, are eligible for the medal. Members of rear echelons, transients, observers, and personnel assigned for short periods of TAD (temporary additional duty) are normally not eligible for the award. However, in the event that an individual in one of these categories made a particular and significant contribution, consideration will be given to his eligibility by the Chief of Naval Personnel upon receipt of certification by the local commander of such contribution.

(c) Eligibility of unit commander, staff, and embarked aircraft units for the Navy Expeditionary Medal is determined by the eligibility of the ships in which they are embarked.

(d) Marine Corps personnel who may have served with any of the Navy ships/units in the list referred to in (a) of this subdivision during the respective periods shown are eligible for the Marine Corps Expeditionary Medal. (The Navy Expeditionary Medal will be awarded only to Navy personnel and the Marine Corps Expeditionary Medal will be awarded only to Marine Corps personnel.)

(e) Commanding officers shall:

(1) Make appropriate entries in service records concerning eligibility for the Navy Expeditionary Medal/Marine Corps Expeditionary Medal as verified by the list referred to in (a) of this subdivision, and authorize the purchase and wearing of the ribbon bar.

(2) Order, by letter, supplies of the Navy Expeditionary Medal for actual needs. Custodians of officer and enlisted service records shall determine the number of personnel on board who are eligible for the Navy Expeditionary Medal for the Cuban operation as verified by entries in the service records or by other official information on hand. Commanding officers are responsible for insuring that no more medals are ordered than the number of personnel eligible to receive them—one medal for each eligible person.

(3) Where service record entry or other official information is not on hand enabling the command to determine eligibility for the Navy Expeditionary Medal/Marine Corps Expeditionary Medal, forward to the Chief of Naval Personnel/Commandant of the Marine Corps a request for determination of eligibility. Such request should state the full name, file or service number, and the ship or unit, including pertinent dates, for which the award is claimed.

(4) Forward medals for transferred personnel to the commanding officers of

the new duty stations for delivery to personnel concerned.

(f) The purchase price for replacement of Navy Expeditionary Medals lost through neglect, etc., after the initial issue, will be $1 each. Requests for such replacements may be made by letter to the Chief of Naval Personnel. Remittances of funds for these purchases should be made payable to the Bureau of Naval Personnel. For prices and information regarding replacement of Marine Corps Expeditionary Medals, write to the Commandant of the Marine Corps (Code DL).

* * * * *

(h) *Armed Forces Expeditionary* Medal. * * *

(2) *Eligibility requirements.* * * *

(v) *Operations.* * * *

(d) The Armed Forces Expeditionary Medal will not be issued for service performed in Viet-Nam after July 3, 1965. The new Viet-Nam Service Medal, established by Executive Order 11231 of July 8, 1965, will be awarded for service in Viet-Nam beginning July 4, 1965; this medal is not yet available. Implementing regulations for the Viet-Nam Service Medal are published in paragraph (l) of this section. Executive Order 11231 also provided that personnel who earned the Armed Forces Expeditionary Medal for service at any time in Viet-Nam between July 1, 1958, and July 3, 1965, inclusive, may elect to be issued either the Armed Forces Expeditionary Medal or the Viet-Nam Service Medal for such service. No individual may be issued both medals for service in Viet-Nam.

(1) Commanding officers of eligible ships/units shall order, by letter, supplies of the Armed Forces Expeditionary Medal for actual needs—for only those persons who elect this medal for Viet-Nam service and to whom it has not yet been issued. In addition, they shall order supplies of the Armed Forces Expeditionary Medal, limited to actual needs, for those persons whose service records show them to be eligible for this medal for areas other than Viet-Nam, as specified in this paragraph. Custodians of officer and enlisted service records shall determine the number of personnel on board who are eligible for the Armed Forces Expeditionary Medal for all areas, as verified by entries in service records or by other official information on hand. Commanding officers are responsible for insuring that no more medals are ordered than the number of personnel eligible to receive them—one medal for each eligible person.

(2) Where service record entry or other official information is not on hand enabling the command to determine eligibility for the Armed Forces Expeditionary Medal, the command shall forward to the Chief of Naval Personnel or the Commandant of the Marine Corps, as appropriate, requests for determination of eligibility. Such requests should state the full name, file or service number, and the ship or unit, including pertinent dates and area of operation, for which the award is claimed.

(3) See also paragraph (l) (8) (ii)–(iii) of this section for election of the Viet-Nam Service Medal in lieu of the Armed Forces Expeditionary Medal.

* * * * *

(viii) *Replacement of awards.* The purchase price to Navy personnel for replacement of Armed Forces Expeditionary Medals lost through neglect, etc., after the initial issue, will be $1 each. Requests for such replacements for Navy personnel may be made by letter to the Chief of Naval Personnel. Remittances of funds for these purchases should be made payable to the Bureau of Naval Personnel. For prices and information regarding replacement of Armed Forces Expeditionary Medals for Marine Corps personnel, write to the Commandant of the Marine Corps (Code DL).

* * * * *

(k) *National Defense Service Medal*—(1) *Purpose.* To incorporate the revised regulations for the National Defense Service Medal.

(2) *Applicability.* The provisions of Executive Order 10448 of April 22, 1953, as amended by Executive Order 11265 of January 11, 1966, are applicable to personnel of the Army, Navy, Air Force, and Marine Corps and to the Coast Guard when operating as a service in the Navy.

(3) *Policy*—(i) *Eligibility.* (a) Honorable active service as a member of the Armed Forces for any period after June 26, 1950, and before July 28, 1954, or after December 31, 1960, and before a terminal date to be announced. For the purpose of this award, the following persons shall not be considered as performing active service:

(1) Guard and Reserve Forces personnel on short tours of active duty to fulfill training obligations under an inactive-duty training program;

(2) Any person on temporary active duty to serve on boards, courts, commissions, and like organizations;

(3) Any person on active duty for the sole purpose of undergoing a physical examination; and

(4) Any person on active duty for purposes other than for extended active duty.

(b) Items (a)(1) through (4) of this subdivision shall not bar the award of the National Defense Service Medal to any member of the Guard or Reserve Forces who, after December 31, 1960, becomes eligible for the award of the Armed Forces Expeditionary Medal or the Viet-Nam Service Medal under regulations prescribed by paragraph (h) or (l) of this section. Such persons shall be considered to be performing active service for the purpose of eligibility for the National Defense Service Medal.

(ii) *Device for second award.* A bronze star 3/16 inch in diameter shall be worn on the suspension ribbon of the medal and on the ribbon bar by personnel who earned the medal for active duty during the period 1950–54, and again for active duty after December 31, 1960.

(4) *Precedence.* Service medals are worn in the order in which earned. For the purpose of determining the order of wearing, an individual who meets the eligibility requirements is considered to have qualified for this award on the first day eligible.

(5) *Description* — (i) *Medal.* The medal is of bronze, 1¼ inches in diameter. On the obverse is an eagle displayed with inverted wings standing on a sword and palm branch, all beneath the inscription "NATIONAL DEFENSE." On the reverse is a shield taken from the coat of arms of the United States (paly of 13 pieces argent and gules; a chief azure) with an open wreath below it, and the right side of oak leaves and the left side of laurel. The medal is suspended by a ring from a silk moire ribbon 1⅜ inches long and 1⅜ inches wide composed of stripes of red (7/16 inch), white (1/32 inch), blue (1/32 inch), white (1/32 inch), red (1/32 inch), yellow (¼ inch), red (1/32 inch), white (1/32 inch), blue (1/32 inch), white (1/32 inch), red (7/16 inch).

(ii) *Service ribbon.* The service ribbon for this medal shall be silk moire, 1⅜ inches in width and ⅜ inch in vertical length, attached to a bar which is equipped with a suitable attaching device. The design of this ribbon shall be the same as the ribbon described above from which the medal is suspended.

(6) *Procurement.* The National Defense Service Medal is not available for distribution at this time. When an adequate supply is available, information will be published to the service concerning the method of procurement. Meanwhile, eligible personnel may purchase and wear the ribbon bar of the medal, and attach the bronze bar for a second award, if entitled.

(7) *Action.* Commanding officers shall make appropriate entries in service records concerning eligibility for the National Defense Service Medal or bronze star indicative of the second award as verified by entries in service records and other official information available.

(l) *Viet-Nam Service Medal*—(1) *Authorization.* Executive Order 11231 of July 8, 1965, established the Viet-Nam Service Medal.

(2) *Applicability.* (i) Executive Order 11231 authorized the Viet-Nam Service Medal to be awarded to members of the Armed Forces who serve or have served at any time in Viet-Nam or contiguous waters or air space as defined below, between July 4, 1965, and a terminal date to be announced by the Secretary of Defense.

(ii) Executive Order 11231 also provided that personnel who earned the Armed Forces Expeditionary Medal for service at any time in Viet-Nam between July 1, 1958, and July 3, 1965, inclusive, may elect to be issued either the Armed Forces Expeditionary Medal or the Viet-Nam Service Medal for such service. No individual may be issued both medals for service in Viet-Nam.

(3) *Description of Viet-Nam Service Medal*—(i) *Obverse of medal.* On a bronze disc 1¼ inches in diameter, a dragon behind a grove of bamboo trees

above the inscription "Republic of Viet-Nam."

(ii) *Reverse of medal.* On a bronze disc 1¼ inches in diameter, a crossbow surmounted by a torch above the arced inscription "United States of America."

(iii) *Ribbon.* Yellow edged in green with three central red stripes.

(4) *Precedence.* Service medals are worn in the order in which earned.

(5) *Definition of areas for Viet-Nam Service Medal.* Viet-Nam, including contiguous waters, as used herein, is defined as an area which includes Viet-Nam and the waters adjacent thereto within the following specified limits: From a point on the east coast of Viet-Nam at the juncture of Viet-Nam with China southeastward to 21° N. latitude, 108°15′ E. longitude; thence southward to 18° N. latitude, 108°15′ E. longitude; thence southeastward to 17°30′ N. latitude, 111° E. longitude; thence southward to 11° N. latitude, 111° E. longitude; thence southwestward to 7° N. latitude, 105° E. longitude; thence westward to 7° N. latitude, 103° E. longitude; thence northward to 9°30′ N. latitude, 103° E. longitude; thence northeastward to 10°15′ N. latitude, 104°27′ E. longitude; thence northward to a point on the west coast of Viet-Nam at the juncture of Viet-Nam with Cambodia.

(6) *Eligibility requirements for Viet-Nam Service Medal*—(i) *General.* (*a*) All members of the Armed Forces of the United States serving at any time in Viet-Nam, contiguous waters, or airspace thereover, between July 4, 1965, and a terminal date to be announced.

(*b*) All members of the Armed Forces of the United States serving at any time in Viet-Nam, contiguous waters, or airspace thereover, between July 1, 1958, and July 3, 1965, inclusive, who earned the Armed Forces Expeditionary Medal for such service, and who desire to be issued the Viet-Nam Service Medal in lieu of the Armed Forces Expeditionary Medal. No individual may be issued both medals for service in Viet-Nam.

(ii) *Specific*—(*a*) *Permanent duty.* Attached to and regularly serving with a ship or unit participating in or directly supporting military operations in Viet-Nam.

(*b*) *Temporary duty.* Service for 30 consecutive days or 60 nonconsecutive days in Viet-Nam or contiguous areas, except that the time limit may be waived for personnel participating in actual combat operations.

(*c*) *Eligibility limits.* Determination of eligible ships/units will be made by delegated commanders who will authorize the issuance and wearing of the medal or ribbon. Lists of eligible ships/units with dates of participation will be issued from time to time, and will be incorporated in the Navy and Marine Corps Awards Manual in subsequent changes. Eligibility will be based on the following criteria:

(*1*) *Shore duty.* Service for 1 or more days with a unit participating in or directly supporting military operations.

(*2*) *Sea duty.* Service for 1 or more days on board a ship directly supporting military operations. (Service with staffs or units embarked in a ship during a period for which that ship is eligible automatically qualifies for the medal.)

(*3*) *Air duty.* Actual participation as a crew member in one or more aerial flights into air space above Viet-Nam or contiguous waters directly supporting military operations.

(7) *Awarding of Viet-Nam Service Medal.* No person shall be entitled to more than one award of the Viet-Nam Service Medal. There is no authorization to wear a device to indicate battle action.

(8) *Action.* Commanding officers of eligible ships/units shall:

(i) Make appropriate entries in service records concerning eligibility for the Viet-Nam Service Medal, referencing the appropriate delegated command authorization, and authorize the purchase and wearing of the appropriate ribbon bars.

(ii) Canvass the personnel of their ships/units to determine whether those who earned the Armed Forces Expeditionary Medal for service in Viet-Nam between July 1, 1958, and July 3, 1965, inclusive, desire to elect the Viet-Nam Service Medal in lieu thereof. Entries concerning their election shall be made in their service records.

(iii) For those who elect to receive Viet-Nam Service Medals, if Armed Forces Expeditionary Medals have been previously issued, collect the latter medals, and

(*a*) In the case of Navy personnel, forward them to the Commanding Officer, Naval Supply Depot, Philadelphia, Pa.

(*b*) In the case of Marine Corps personnel, forward them to the Commandant of the Marine Corps (Code DL).

(iv) Make appropriate entry in each service record that, in view of the member's election of the Viet-Nam Service Medal, the Armed Forces Expeditionary Medal has been retrieved from the member and forwarded to the Naval Supply Depot or to the Commandant of the Marine Corps, as applicable.

(v) Forward medals for transferred personnel to the commanding officers of the new duty stations for delivery to the personnel concerned.

(9) *Procurement of Viet-Nam Service Medals.* (i) The Viet-Nam Service Medal, which is to be issued for service in Viet-Nam on or after July 4, 1965, is not yet available. When it is ready for distribution, appropriate information will be promulgated concerning the method of procurement. Such announcement will be made to active-duty personnel through the directives systems. Separated personnel will be advised of the method of procurement through all available news media. Orders for this medal should be held in abeyance until its availability has been announced and ordering instructions have been issued.

(ii) In a significant number of instances, commanding officers of ships/units already have sent letter requests to the Bureau of Naval Personnel or the Naval Supply Depot, Philadelphia, Pa., requesting specific numbers of the Viet-Nam Service Medal. The medal has been requested either as a single issue or as a joint issue with other medals such as the Armed Forces Expeditionary Medal, the Antarctica Service Medal, etc. In most cases, the medals requested, other than the Viet-Nam Service Medal, have been shipped to the requesting command. For the Viet-Nam Service Medal, however, it has not been possible to take any positive action on the requests because of the unavailability of the medal. The originators of letter requests for the Viet-Nam Service Medal dated prior to the date that regular distribution instructions are issued are advised that such requests must be considered as canceled because of the lack of an inventory for filling them at this time.

4. Subpart F, dealing with foreign awards and non-U.S. service awards to U.S. personnel, is amended by adding § 733.70 to read as follows:

§ 733.70 Foreign awards to U.S. military personnel for service in Viet-Nam and the Republic of Viet-Nam Campaign Medal with device.

(a) *Authority.* Public Law 89–257 of October 19, 1965.

(1) Authorizes certain members and former members of the Armed Forces of the United States holding any office of profit or trust under the United States to:

(i) Accept from the Government of the Republic of Viet-Nam or from the governments of other foreign nations whose personnel are serving on or after March 1, 1961, in Viet-Nam in the cause of the Government of the Republic of Viet-Nam, any decoration, order, or emblem which such nations confer upon members of their own military forces; and

(ii) Wear such decoration, order, or emblem, subject to the provisions of regulations issued by the Secretaries of the Military Departments, or in the case of the U.S. Coast Guard, by the Secretary of the Treasury.

(2) Grants the consent of Congress to except the decorations described in subparagraph (1) of this paragraph from the provisions of clause 8 of section 9, Article I of the Constitution.

(b) *Policy*—(1) *Decorations which may be retained.* As stated in paragraph (a)(1) of this section, members and former members of the Armed Forces of the United States may accept, retain, and wear only those decorations for service in Viet-Nam which are awarded to members of the conferring governments. The awards which are conferred by the Republic of Viet-Nam upon members of their own Armed Forces, and which, in accordance with the provisions of Public Law 89–257, may therefore be accepted, retained, and worn, are the following:

National Order Medal.
Army Distinguished Service Medal.
Air Force Distinguished Service Medal.
Navy Distinguished Service Medal.
Military Merit Medal.
Army Medal for Meritorious Service.
Navy Medal for Meritorious Service.
Air Force Medal for Meritorious Service.
Special Service Medal.
Gallantry Cross.
Air Gallantry Medal.
Navy Gallantry Medal.
Hazardous Service Medal.

Life Saving Medal.
Staff Service Medal.
Training Service Medal.
Technical Service Medal.
Civil Service Medal.
Air Force North Expeditionary Medal.
Medal of Sacrifice.
Kim Khanh Medal.
Chuong My Medal.

(2) *Decorations which may not be retained.* The following Vietnamese decorations do not fall within the provisions of Public Law 89–257 since they are awarded only to foreigners, and may therefore not be retained by U.S. personnel:

Medal of Honor First Class.
Medal of Honor Second Class.

These decorations may be accepted by the recipients, but the decorations, all appurtenances, and all original documents must be forwarded immediately to the Chief of Naval Personnel/Commandant of the Marine Corps, as prescribed by § 733.65, for eventual approval by Congress.

(3) *Acceptance of decorations for service with Military Assistance Program.* Attention is invited to the provisions of § 733.65(d) regarding the acceptance of foreign decorations by personnel serving with the Military Assistance Program.

(4) *Definition of applicable area.* Viet-Nam and contiguous waters shall be defined in accordance with Executive Order 11216 of April 24, 1965, as follows:

Viet-Nam, including the waters adjacent thereto within the following described limits: From a point on the east coast of Viet-Nam at the juncture of Viet-Nam with China southeastward to 21° N. latitude, 108°15′ E. longitude; thence southward to 18° N. latitude, 108°15′ E. longitude; thence southeastward to 17°30′ N. latitude, 111° E. longitude; thence southward to 11° N. latitude, 111° E. longitude; thence southwestward to 7° N. latitude, 105° E. longitude; thence westward to 7° N. latitude, 103° E. longitude; thence northward to 9°30′ N. latitude, 103° E. longitude; thence northeastward to 10°15′ N. latitude, 104°27′ E. longitude; thence northward to a point on the west coast of Viet-Nam at the juncture of Viet-Nam with Cambodia.

(5) *Foreign service awards.* Foreign service awards, as differentiated from awards and decorations for outstanding personal actions or accomplishments, shall be submitted to the Secretary of the Navy for further referral to the Secretary of Defense for approval.

(6) *Screening of awards.* Personal awards shall be screened, insofar as possible, to insure that the act or service for which the award is offered merits the recognition inherent in the foreign award.

(7) *Subsequent decorations.* The principle that only one foreign decoration will be awarded for the same act, achievement, or service shall be upheld, except that a decoration for a specific act or achievement will not preclude a subsequent decoration based on a period of service, even though the act or achievement occurred during the same period of service.

(c) *Action.* Commanding officers will:

(1) Review the decorations awarded to personnel under their command to insure compliance with the provisions of Public Law 89–257, the Navy and Marine Corps Awards Manual (this part) in general, and, specifically, paragraph (b) of this section.

(2) Make appropriate entries in service records concerning the foreign decorations awarded under the provisions of Public Law 89–257 to personnel under their command.

(3) For record purposes, forward to the Chief of Naval Personnel (Pers–G25) or to the Commandant of the Marine Corps (Code DL), as appropriate, copies of the awarding documents or decrees of those decorations which are accepted and retained, which decorations are listed in paragraph (b)(1) of this section; and insure that decorations, appurtenances, and original documents for those decorations listed in paragraph (b)(2) of this section are forwarded to the Chief of Naval Personnel/Commandant of the Marine Corps as prescribed.

(d) *Republic of Viet-Nam Campaign Medal with Device (1960–).* This paragraph furnishes policy guidance concerning the Republic of Viet-Nam Campaign Medal with Device (1960–), approved by the Secretary of Defense as proposed for award by the Government of the Republic of Viet-Nam on March 24, 1966, to members of the U.S. Armed Forces supporting operations in Viet-Nam.

(1) *Authority.* By Republic of Viet-Nam Armed Forces Order Number 48, dated March 24, 1966, the Republic of Viet-Nam formally authorized subject medal with device for award to members of the U.S. Armed Forces supporting operations in Viet-Nam. This medal and device are also awarded to members of the Republic of Viet-Nam for wartime service.

(2) *Policy.* Public Law 89–257 grants the consent of Congress for the acceptance and wearing of any decoration, order or emblem conferred upon U.S. Armed Forces personnel by the Government of Viet-Nam or other foreign governments whose personnel are serving on or after March 1, 1961, in the cause of the Viet-Nam Republic, and which awards are conferred upon members of their own military forces. Therefore, the provisions of §§ 733.61–733.69 apply to members of U.S. Armed Forces eligible for the award solely by virtue of service performed prior to March 1, 1961. Attention is invited, however, to § 733.65(d) prohibiting the acceptance of foreign awards for service in connection with the Military Assistance Program. This prohibition is applicable to all awards, including the Republic of Viet-Nam Campaign Medal, whether conferred prior or subsequent to March 1, 1961.

(3) *Description of award as authorized by the Republic of Viet-Nam—*(i) *Medal.* Gold plated, 1½ mm. thick with 2 stars, one overlaid on the other; each star composed of 6 points. The star above has a diameter of 42 mm., the points are white-enameled in relief, 14 mm. long with gold border which is 1 mm. wide. The star underneath has a diameter of 37 mm.; the points are carved in relief, gold plated, 7 mm. long with many small brass angles directed toward the center of the medal. In the center of the medal a round frame is shown with a diameter of 18 mm. with gold border which is 2 mm. wide. The inside of this frame is green with the outline of the Vietnamese country of gold placed in a red flame with 3 rays upright in the center. The reverse of the medal contains the words VIET-NAM and CAMPAIGN MEDAL. The medal is connected with the suspension ribbon by 2 trapezoidal rings and a small cylindrical ring.

(ii) *Suspension ribbon.* 37 mm. wide, 50 mm. long with seven stripes; the two stripes near the borders (each side) of this suspension are green 2 mm. wide, then two white stripes (one at each side) 5½ mm. wide. Close to these white stripes are two green stripes 8 mm. wide, and in the center a white stripe 6 mm. wide.

(iii) *Device—*(a) *On the suspension ribbon.* Metal, silver plated, ½ mm. thick, rectangular, 20 mm. long, 5 mm. wide and at the two extremities of this device are the outlines of two small arrows. The border of this device is carved in relief denoting the period of war. For example: (1960–).

(b) *On the ribbon bar.* Similar to that pinned on the suspension ribbon but smaller, 10 mm. in length, 3½ mm. in width, with the figures (60–).

(4) *Precedence.* The RVN Campaign Medal, miniature medal, ribbon bar, and device are authorized to be worn by U.S. naval personnel at the option of the recipient. If worn, the wearing of these items shall be in accordance with the provisions of articles 1025 and 1035 of the Navy Uniform Regulations or paragraph 6102.10a of the Marine Corps Uniform Regulations, as applicable.

(5) *Eligibility criteria.* Personnel who fulfill one or more of the following conditions are eligible for subject award:

(i) Wounded or injured in hostile action.

(ii) Captured by the opposing force during actions or in line of duty, but later rescued or released.

(iii) Killed in action or in line of duty.

(iv) During the period March 1, 1961, to a date to be announced, served 6 months in South Viet-Nam, or 6 months outside the geographical limits of South Viet-Nam but contributing direct combat support to the Republic of Viet-Nam Armed Forces during such period. The 6 months required need not be consecutive. For personnel serving outside the geographical limits of South Viet-Nam, the 6-month requirement will be considered fulfilled if such personnel earn the Armed Forces Expeditionary Medal/Viet-Nam Service Medal, and serve in the eligibility area for these two awards for at least 15 days out of each of these 6 months.

(6) *Action—*(i) *Certification of eligibility.* (a) Commanding officers of active-duty personnel serving in the Viet-Nam area shall make appropriate entries

in enlisted service records and address official letters to officers, certifying eligibility for the award, authorizing the wearing of the ribbon bar with device (60–), and indicating the date of issuance. Copies of the letters to officers shall be forwarded to the Chief of Naval Personnel/Commandant of the Marine Corps (DGH) for filing in the officers' records.

(b) Commanding officers of active-duty personnel serving outside the Viet-Nam area who claim eligibility for the award by reason of prior service on shore in Viet-Nam or within the Armed Forces Expeditionary Medal/Viet-Nam Service Medal eligibility area shall, on the basis of available records, make appropriate entries in enlisted service records and address official letters to officers, certifying eligibility for the award, authorizing the wearing of the ribbon bar with device (60–), and indicating the date of issuance. Copies of the letters to officers shall be forwarded to the Chief of Naval Personnel/Commandant of the Marine Corps (DGH) for record purposes. If evidence of eligibility cannot be verified locally, commanding officers may obtain an affidavit from an individual member concerned. In the affidavit, the member shall state the names of the ships or units to which he was attached, and the dates of qualifying service in these ships or units. If the commanding officer considers that circumstances warrant the action on his part, he may then certify the eligibility of the member and issue authorization for the individual to wear the ribbon bar. Cases in which the commanding officer does not consider that he should make certification of eligibility may be forwarded to the Chief of Naval Personnel/Commandant of the Marine Corps for determination of eligibility.

(c) Discharged and retired personnel and inactive reservists who claim eligibility may request from the Chief of Naval Personnel/Commandant of the Marine Corps certification of eligibility and, if desired, issuance of the ribbon bar furnished by the Republic of Viet-Nam. If a quality-controlled ribbon bar is preferred (see subdivision (ii) (d) and (e) of this subparagraph), the certification will contain authority to purchase such item.

(ii) *Procurement.* (a) Navy and Marine Corps commands currently serving on shore in Viet-Nam, and those subsequently serving there, shall request from the Commander, U.S. Military Assistance Command, Viet-Nam, Attention Adjutant General, the RVN Campaign Medal ribbon bars with device (60–) for issuance to eligible personnel under their commands.

(b) The Commander in Chief, U.S. Pacific Fleet (CINCPACFLT), shall request the ribbon bars with device (60–) from the same source for issuance to personnel afloat or serving under his command outside Viet-Nam. Authority to request the ribbon bars with device (60–) directly from the Commander, U.S. Military Assistance Command, Vietnam (COMUSMACV), may be delegated by CINCPACFLT, who will keep such delegation at a minimum in order to minimize the number of requests made to COMUSMACV. It is suggested that delegation be limited to the level of operating fleet commanders or type commanders.

(c) The Chief of Naval Personnel/Commandant of the Marine Corps will request from COMUSMACV sufficient ribbon bars with device (60–) to supply the next of kin of eligible deceased personnel and those elegible personnel who have returned from Viet-Nam and who make application for such items.

(d) Since the ribbon bars issued by the Republic of Viet-Nam are not compatible with ribbon bars as worn on the U.S. uniform, qualified naval personnel, whether they receive or do not receive the RVN ribbons, may, upon proper authorization, purchase from military shops, post exchanges, or other authorized sources the quality-controlled ribbon bars with device (60–) to be worn on the uniform.

(e) Eligible discharged and retired personnel and inactive reservists may also, upon authorization from the Chief of Naval Personnel/Commandant of the Marine Corps, purchase the quality-controlled ribbon bars from the above sources as applicable.

(f) The RVN Campaign Medal with device (1960–) and the miniature medal will remain items of individual acquisition. These items will be available in the near future from American sources.

(Sec. 5031, 70A Stat. 278, as amended, sec. 133, 76 Stat. 517, 79 Stat. 982, sec. 301, 80 Stat. 379; 5 U.S.C. 301, 10 U.S.C. 133, 5031. E.O. 10448, 11231, 11265, 18 F.R. 2391, 30 F.R. 8665, 31 F.R. 425)

By direction of the Secretary of the Navy.

[SEAL] WILFRED HEARN,
Rear Admiral, U.S. Navy, Judge Advocate General of the Navy.

DECEMBER 12, 1966.

[F.R. Doc. 66-13535; Filed, Dec. 16, 1966; 8:45 a.m.]

Title 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

SUBCHAPTER A—GENERAL

[CGFR 66-63]

PART 2—GENERAL DUTIES AND JURISDICTION

Navigable Waters of United States in Florida, Georgia, and South Carolina

The purpose for this document is to publish the determinations made by the Commandant, U.S. Coast Guard, with respect to certain navigable waters of the United States in Florida, Georgia, and South Carolina.

In the administration and enforcement of various navigation and vessel inspection laws, rules, and regulations, it was necessary to determine whether or not certain bodies of waters were in fact navigable waters of the United States and subject to laws administered by the Coast Guard. The information in this document is intended also to further the development, use, and enjoyment of all the navigable waters within the United States, and to clarify responsibility with respect to laws, rules, and regulations intended to promote safety of life and property on those waters as further described in 33 CFR 2.10–5 and 2.15–1.

A determination has been made that the Oklawaha River and the chain of lakes including Lakes Griffin, Eustis, Harris, Little Lake Harris, Dora, Beauclair, Carlton, Apopka, and John and their connecting waterways in Florida are a part of the navigable waters of the United States. This interpretation is set forth in 33 CFR 2.30–20 in this document. Section 38 of Title 33, U.S. Code, concerns the Oklawaha River and it is grouped under a general heading "Waters Declared Nonnavigable." After reviewing the basic statute (39 Stat. 396), there is no indication, directly or indirectly, that Congress intended to legislate the nonnavigability of the Oklawaha River. Rather, it appears to be a law concerned with appropriating the necessary funds for the public works involved in improving the waterways. This determination represents the opinion of the Coast Guard since the jurisdiction of the United States can be conclusively determined only through judicial proceedings.

Determinations regarding the Savannah River in Georgia and South Carolina have been published as 33 CFR 2.31–10 and 2.63–25, which provided that the Savannah River was navigable to Augusta, Ga. The Savannah River is formed by the junction of the Tugaloo and Seneca Rivers and flows in a southeasterly direction for approximately 297 miles to the sea. The Federal Court in the case of Pan Maryland-Savannah River Bridge, 1952 A.M.C. 1064, 105 F. Supp. 958 (S.D. Ga. 1952) states that the Savannah River is a part of the navigable waters of the United States. The record indicates there has never been a Congressional exception made for the 106 miles of the Savannah River north of Augusta, Ga. Therefore, the interpretations in 33 CFR 2.31–10 and 2.63–25 are amended by this document to show that the Savannah River for its entire distance, including Hartwell Reservoir, forms a part of the navigable waters of the United States. This determination represents the opinion of the Coast Guard since the jurisdiction of the United States can be conclusively determined only through judicial proceedings.

Because the rules in this document are interpretations, it is hereby found that the Coast Guard is exempted from compliance with section 553 of Title 5, U.S. Code, with respect to notice of proposed rule making, public rule making procedures and effective date requirements.

By virtue of the authority vested in me as Commandant, U.S. Coast Guard, by section 632 in Title 14, U.S. Code and Treasury Department Orders 120, dated July 31, 1950 (15 F.R. 6521) and 167–17, dated June 29, 1955 (20 F.R. 4976), to promulgate regulations in accordance with section 552 in Title 5, U.S. Code and section 633 in Title 14, U.S. Code, cited with the regulations below, the following regulations are prescribed and shall be in effect on and after the date of publication in the FEDERAL REGISTER.

1. The authority note for Part 2 is amended to read as follows:

AUTHORITY: The provisions of this Part 2 issued under sec. 3, 60 Stat. 238, as amended, and sec. 633, 63 Stat. 545; 5 U.S.C. 552, 14 U.S.C. 633. Treasury Dept. Orders 120, July 31, 1950, 15 F.R. 6521; 167–17, June 29, 1955, 20 F.R. 4976.

Subpart 2.30—Navigable Waters of the United States—Florida

2. Subpart 2.30 is amended by adding after § 2.30–15 a new § 2.30–20 reading as follows:

§ 2.30–20 Oklawaha River and chain of lakes from Lake Griffin to Lake John.

The Oklawaha River and the chain of lakes including Lakes Griffin, Eustis, Harris, Little Lake Harris, Dora, Beauclair, Carlton, Apopka, and John and their connecting waterways.

Subpart 2.31—Navigable Waters of the United States—Georgia

3. Section 2.31–10 is amended to read as follows:

§ 2.31–10 Savannah River.

The Savannah River for its entire distance, including Hartwell Reservoir.

Subpart 2.63—Navigable Waters of the United States—South Carolina

4. Section 2.63–25 is amended to read as follows:

§ 2.63–25 Savannah River.

The Savannah River for its entire distance, including Hartwell Reservoir.

Dated: December 13, 1966.

[SEAL] W. J. SMITH,
Admiral, U.S. Coast Guard, Commandant.

[F.R. Doc. 66–13585; Filed, Dec. 16, 1966; 8:49 a.m.]

Title 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 17—MEDICAL

Outpatient Treatment and Examination

In § 17.60(a), subparagraph (3) is amended to read as follows:

§ 17.60 Outpatient treatment and examination.

(a) * * *

(3) A veteran who has been found in need of training authorized under 38 U.S.C. ch. 31, and for whom an objective has been selected or who is pursuing vocational rehabilitation training is entitled to such medical services as are medically determined necessary for any of the reasons enumerated in § 17.36(a)(2). A veteran in need of such training may also be furnished in a clinic operated by the Veterans Administration any examination or immunization necessary to qualify him for admission to a training facility, except the Department of Medicine and Surgery may not authorize incidental transportation.

* * * * *

(72 Stat. 1114; 38 U.S.C. 210)

This VA regulation is effective the date of approval.

By direction of the Administrator.

Approved: December 12, 1966.

[SEAL] CYRIL F. BRICKFIELD,
Deputy Administrator.

[F.R. Doc. 66–13563; Filed, Dec. 16, 1966; 8:47 a.m.]

PART 21—VOCATIONAL REHABILITATION AND EDUCATION

Subpart A—Vocational Rehabilitation Under 38 U.S.C. Ch. 31

MEDICAL SERVICES FOR VETERANS PURSUING VOCATIONAL REHABILITATION TRAINING

In § 21.253(a), subparagraph (3) is amended and subparagraph (4) is added to read as follows:

§ 21.253 Additional considerations incident to supervision.

* * * * *

(a) *Medical services for veterans pursuing vocational rehabilitation training.* * * *

(3) Transportation incident to medical services furnished to veterans will be supplied at Veterans Administration expense under the provisions, and subject to the limitations of, applicable Veterans Administration regulations and procedures. (38 U.S.C. 1506)

(4) Any medical examination and immunization needed to qualify a veteran for admission to a training facility will be furnished at Veterans Administration expense. (38 U.S.C. 1501)

* * * * *

(72 Stat. 1114; 38 U.S.C. 210)

This VA regulation is effective the date of approval.

By direction of the Administrator.

Approved: December 12, 1966.

[SEAL] CYRIL F. BRICKFIELD,
Deputy Administrator.

[F.R. Doc. 66–13564; Filed, Dec. 16, 1966; 8:47 a.m.]

Title 41—PUBLIC CONTRACTS AND PROPERTY MANAGEMENT

Chapter 8—Veterans Administration

PART 8–1—GENERAL

Miscellaneous Amendments

1. In § 8–1.302–1, the introductory portion of paragraph (a) preceding subparagraph (1) and paragraph (b) are amended and paragraph (c) is added to read as follows:

§ 8–1.302–1 General.

(a) *General.* Procurement will be effected from the following sources in the descending order of priority indicated:

* * * * *

(b) *Public exigency.* A source lower in priority may be utilized in a public exigency as defined in FPR 1–3.202. Justification for such deviation shall be included in the procurement file.

(c) *Perishable subsistence.* The Veterans Administration and the Defense Supply Agency (DSA) have entered into an agreement whereby DSA is another source of supply to Veterans Administration hospitals for perishable subsistence items through their (DSA) regional supply points. This source of supply, when available, shall be used for purchases regardless of the availability of perishables from a higher priority source, when such purchases will result in increased economy and food service standards will not be adversely affected. Each Veterans Administration installation will make its arrangements with the DSA regional headquarters serving the area in which the station is located.

2. In § 8–1.604–1(a)(7), subdivision (i) is amended to read as follows:

§ 8–1.604–1 Procedural requirements relating to the imposition of debarment.

(a) *General.* * * *

(7) *Notice of debarment.* (i) A written notice imposing debarment will be sent by certified mail, return receipt requested, to the firm or individuals by the Director, Supply Service. It will set forth the scope and period of debarment together with the circumstances upon which the debarment was based.

* * * * *

3. Sections 8–1.605, 8–1.605–1, and 8–1.605–4 are added to read as follows:

§ 8–1.605 Suspension of bidders.

The procedures in FPR 1–1.605 to 1–1.605–4, inclusive, will be used by the Veterans Administration in considering the suspension of a firm or individuals.

§ 8–1.605–1 Causes and conditions under which executive agencies may suspend contractors.

A firm or individuals may be suspended only under the causes and conditions in FPR 1–1.605–1. Only the Director, Supply Service, may suspend a firm or individual.

§ 8–1.605–4 Notice of suspension.

The notice of suspension shall be sent by certified mail, return receipt requested, to the firm or individuals. A suspension may be imposed upon the mailing of such notice. However, the firm or individuals may, at any time, submit information in opposition to such suspension and such information shall be considered.

(Sec. 205(c), 63 Stat. 390, as amended, 40 U.S.C. 486(c); sec. 210(c), 72 Stat. 1114, 38 U.S.C. 210(c))

These regulations are effective upon publication in the FEDERAL REGISTER.

By direction of the Administrator.

Approved: December 12, 1966.

[SEAL] CYRIL F. BRICKFIELD,
Deputy Administrator.

[F.R. Doc. 66–13561; Filed, Dec. 16, 1966; 8:47 a.m.]

PART 8–10—BONDS AND INSURANCE

Insurance and Indemnification Requirements for Ambulance Service Contracts

In § 8–10.451, the introductory portion preceding paragraph (a) is amended and paragraphs (c) and (d) are added to read as follows:

§ 8–10.451 Insurance and indemnification requirements for ambulance service contracts.

Term contracts, or contracts of a continuing nature, for ambulance service, will contain the following requirements, as applicable:

* * * * *

(c) *Exceptions.* The provisions of this § 8–10.451 do not apply to:

(1) Emergency or sporadic ambulance service authorized by VA Manual MP–1, Part II, paragraph 202.17: *Provided,* That such service is not used solely for the purpose of avoiding entering into a continuing contract: *Provided further,* That such services will be obtained from firms known to carry insurance coverage in accordance with State or local requirements.

(2) Contracts for limousine or taxi service: *Provided,* That such limousines or taxis are used to transport ambulatory beneficiaries, and are not equipped for and used in lieu of ambulance service.

(d) *Contracts for limousine and taxi service.* Contracts for limousine and taxi service must contain provisions for insurance coverage in accordance with State or local requirements.

(Sec. 205(c), 63 Stat. 390, as amended, 40 U.S.C. 486(c); sec. 210(c), 72 Stat. 1114, 38 U.S.C. 210(c))

These regulations are effective immediately.

By direction of the Administrator.

Approved: December 12, 1966.

[SEAL] CYRIL F. BRICKFIELD,
Deputy Administrator.

[F.R. Doc. 66–13562; Filed, Dec. 16, 1966; 8:47 a.m.]

Chapter 9—Atomic Energy Commission

PART 9–51—REVIEW AND APPROVAL OF CONTRACT ACTIONS

Contracts and Subcontracts Requiring Clearance With the Bureau of the Budget

1. Section 9–51.000–50 *Policy, cost-type contractor procurement,* is revised to read as follows:

§ 9–51.000–50 Policy, cost-type contractor procurement.

The following portions of this part constitute specific provisions which the contracting officer shall bring to the attention of Class A and Class B cost-type contractors as constituting areas which require appropriate treatment in the development of statements of contractor procurement practices in order to carry out the basic AEC procurement policies set forth in AECPR 9–1.5203:

Sections or subparts	*Subject*
AECPR:	
9–51.001	Definition.
9–51.2	Subcontracts requiring prior authorization by AEC.
9–51.401	Applicability.
9–51.403–1(c)	Method and extent of review.
9–51.5	Contracts or subcontracts requiring advance notice.
9–51.6	Contracts and subcontracts requiring clearance with the Bureau of the Budget.

2. The following subpart is added:

Subpart 9–51.6—Contracts and Subcontracts Requiring Clearance With the Bureau of the Budget

Sec.
9–51.600 Scope of subpart.
9–51.601 Actions requiring clearance.
9–51.602 Procedure for obtaining clearance, extension of clearance, or exemption.

AUTHORITY: The provisions of this Subpart 9–51.6 issued under sec. 161, Atomic Energy Act of 1954, as amended, 68 Stat. 948, 42 U.S.C. 2201; sec. 205, Federal Property and Administrative Services Act of 1949, as amended, 63 Stat. 390, 40 U.S.C. 486.

Subpart 9–51.6—Contracts and Subcontracts Requiring Clearance With the Bureau of the Budget

§ 9–51.600 Scope of subpart.

This subpart sets forth requirements for the clearance of contracts and subcontracts with the Bureau of the Budget.

§ 9–51.601 Actions requiring clearance.

In accordance with the Federal Reports Act of 1942 and Bureau of the Budget Circular A–40, contracts and subcontracts which will result in the collection of information on identical items at the request of or for AEC by the contractor or subcontractor, from 10 or more respondents, require clearance from the Assistant Director of the Bureau of the Budget and inscribing thereon an approval number or notation.

§ 9–51.602 Procedure for obtaining clearance, extension of clearance, or exemption.

Requests for clearance of contracts and subcontracts or material revision or change in previously approved contracts or subcontracts, extension of clearance beyond scheduled expiration date, or exemption from clearance shall be submitted by Managers of Field Offices or Directors, Headquarters Divisions or Offices to the Director, Division of Contracts for coordination with and transmittal by the Controller to the Assistant Director of the Bureau of the Budget. Such requests shall be in the form and contain all of the pertinent information required by paragraphs 4, 5, 6, and 7 of BoB Circular A–40.

Effective date. These amendments are effective upon publication in the FEDERAL REGISTER.

Dated at Germantown, Md., this 12th day of December 1966.

For the U.S. Atomic Energy Commission.

JOSEPH L. SMITH,
Director, Division of Contracts.

[F.R. Doc. 66–13532; Filed, Dec. 16, 1966; 8:45 a.m.]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Agency

[Airspace Docket No. 66–CE–13]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Federal Airways

On August 27, 1966, a notice of proposed rule making was published in the FEDERAL REGISTER (31 F.R. 11398) stating that the Federal Aviation Agency was considering amendments to Part 71 of the Federal Aviation Regulations that would raise the floors of Federal airway segments in the Great Falls, Mont., Air Route Traffic Control Center area.

Interested persons were afforded an opportunity to participate in the rule making through the submission of comments. Due consideration was given to all comments received.

The Air Transport Association of America (ATA) in commenting on the notice stated that several approved air carrier direct routes would no longer be contained in control area at the lower altitudes as a result of the actions proposed therein. They objected to the loss of air traffic control service now provided at these altitudes. A review of the objection disclosed that scheduled air carriers, in serving Glendive, Mont., and Sidney, Mont., traverse the control area associated with V–465 and V–465E alternate. It was also disclosed that scheduled air carriers are authorized to operate along V–439 between Williston, N. Dak., and Dickinson, N. Dak., at 4,100

feet MSL, the minimum obstruction clearance altitude (MOCA). The minimum en route altitude for this airway is 4,500 feet MSL. Accordingly, to assure continued air traffic control service to the IFR operations of the air carriers serving Glendive and Sidney, action is taken herein to designate the floor of the pertinent segment of V–465 and V–465E alternate at 1,200 feet above the surface in lieu of 5,000 feet MSL. No action will be taken to alter the floor of V–439 other than as stated in the notice, as it has been determined that the MOCA is not used operationally for air traffic control purposes.

ATA also expressed concern about the loss of MOCA's that would be placed below the airway floors and outside control area by the actions proposed in the notice. It has been determined that the MOCA's referred to are not used operationally for air traffic control purposes. Accordingly, no action is taken herein to retain these altitudes in control area.

Subsequent to publication of the notice it was determined that additional control area is required for en route climb to minimum en route altitudes on V–536, V–120, and V–2 eastbound over the Mullan Pass, Idaho, VORTAC. To protect this climb, action is taken herein to extend the 1,200 feet AGL floors of V–536, V–120, and V–2 to 5 miles east of the Mullan Pass VORTAC. These floors were originally proposed as 9,500 feet MSL, 9,500 feet MSL and 9,100 feet MSL respectively for the above mentioned airways.

Since the action to alter the floors of V–465 and V–465E alternate as stated herein is in the interest of safety, and since the action to alter the floors of V–536, V–120, and V–2, as stated herein, is minor in nature, the Administrator has determined that notice and public procedure thereon is impractical.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., March 2, 1967, as hereinafter set forth.

Section 71.123 (31 F.R. 2009, 5056, 5686, 5823, 6264, 6484, 6487, 6582, 6791, 6827, 7556, 8117, 10026, 11141, 13315, 14261, 14424) is amended as follows:

1. In V–2 all between "Mullan Pass 260° radials;" and "14 miles, 12 AGL, 62 miles, 34 MSL, 12 AGL Jamestown, N. Dak.," is deleted and "5 miles, 12 AGL, 53 miles, 91 MSL, 12 AGL Missoula, Mont.; 6 miles, 12 AGL, 84 MSL, Drummond, Mont.; 11 miles, 84 MSL, 12 AGL Helena, Mont.; 12 AGL INT Helena 119° and Bozeman, Mont., 338° radials; 12 AGL Bozeman; 12 AGL INT Bozeman 128° and Livingston, Mont., 261° radials; 12 AGL Livingston; 11 miles, 12 AGL, 25 miles, 85 MSL, 12 AGL Billings, Mont., including an N alternate from Helena, 12 miles, 12 AGL, 10 miles, 10,500 feet MSL, 115 MSL INT Helena 089° and Billings 301° radials, 54 miles, 100 MSL, 12 AGL to Billings, excluding the airspace between the main and this N alternate; 19 miles, 12 AGL, 79 miles, 49 MSL, 12 AGL Miles City, Mont., including an N alternate from Billings, 19 miles, 12 AGL, 49 MSL INT Billings 055° and Miles City 269° radials, 42 miles, 49 MSL, 12 AGL to Miles City; 24 miles, 12 AGL, 90 miles, 55 MSL, 12 AGL Dickinson, N. Dak.; 10 miles, 12 AGL, 60 miles, 38 MSL, 12 AGL Bismarck, N. Dak., including an N alternate from Dickinson, 10 miles, 12 AGL, 38 MSL INT Dickinson 078° and Bismarck 290° radials, 28 miles, 38 MSL, 12 AGL to Bismarck;" is substituted therefor.

2. In V–15 "to Minot, N. Dak." is deleted and "12 AGL Minot, N. Dak." is substituted therefor.

3. In V–19 all after "12 AGL Billings, Mont.," is delted and "including an E alternate from Sheridan 21 miles, 12 AGL, 38 miles, 75 MSL, 12 AGL to Billings; 38 miles, 12 AGL, 72 MSL INT Billings 347° and Lewistown, Mont., 104° radials; 12 AGL Lewistown; 12 AGL Great Falls, Mont., including a 12 AGL W alternate via INT Lewistown 274° and Great Falls 122° radials." is substituted therefor.

4. In V–21 all after "12 AGL DuBoise;" is deleted and "12 AGL Dillon, Mont.; 12 AGL Whitehall, Mont.; 12 AGL Helena, Mont.; 12 AGL INT Helena 352° and Great Falls, Mont., 222° radials; 12 AGL Great Falls; 12 AGL Cut Bank, Mont., including a 12 AGL W alternate Helena direct Cut Bank; 12 AGL INT Cut Bank 348° radial and the United States/Canadian border." is substituted therefor.

5. V–86 is amended to read as follows:

V–86 From Butte, Mont., 12 AGL Whitehall, Mont.; 12 AGL Bozeman, Mont.; 12 AGL INT Bozeman 128° and Livingston, Mont., 261° radials; 12 AGL Livingston; 11 miles, 12 AGL, 25 miles, 85 MSL, 12 AGL Billings, Mont.; 32 miles, 12 AGL, 35 miles, 75 MSL, 12 AGL Sheridan, Wyo.; 20 miles, 12 AGL, 45 miles, 70 MSL, 63 miles, 80 MSL, 12 AGL Rapid City, S. Dak.

6. In V–120 all before "60 miles 38 MSL," is deleted and "From Mullan Pass, Idaho, 5 miles, 12 AGL, 55 miles, 95 MSL, 43 miles, 125 MSL, 12 AGL Great Falls, Mont., 12 AGL Lewistown, Mont., including a 12 AGL N alternate INT Great Falls 074° and Lewistown 308° radials; 41 miles, 12 AGL, 72 miles, 85 MSL, 12 AGL Miles City, Mont., 48 miles, 12 AGL, 109 miles, 90 MSL, 38 MSL Dupree, S. Dak." is substituted therefor.

7. In V–169 all after "12 AGL Rapid City, S. Dak.;" is deleted and "12 AGL Dupree, S. Dak.; 12 AGL Bismarck, N. Dak. The airspace within R–4701 is excluded," is substituted therefor.

8. In V–187 all after "12 AGL Boysen Reservoir, Wyo.;" is deleted and "9 miles, 12 AGL, 78 miles, 105 MSL, 12 AGL Billings, Mont.; 40 miles, 12 AGL, 75 MSL INT Billings 317° and Great Falls, Mont., 122° radials; 12 AGL Great Falls." is substituted therefor.

9. V–231 is amended to read as follows:

V–231 From Missoula, Mont., 12 AGL INT Missoula 354° and Kalispell, Mont., 180° radials; 12 AGL Kalispell.

10. In V–257 all after "12 AGL Dubois, Idaho;" is deleted and "12 AGL Dillon, Mont.; 12 AGL Butte, Mont.; 22 miles, 12 AGL, 85 MSL INT Butte 002° and Helena, Mont., 272° radials; 12 AGL INT Helena 272° and Great Falls, Mont., 222° radials; 12 AGL Great Falls. The airspace within R–6401 and R–6403 is excluded." is substituted therefor.

11. In V–430 "From Williston, N. Dak., via Minot, N. Dak.;" is deleted and "From Williston, N. Dak., 12 AGL Minot, N. Dak.;" is substituted therefor.

12. V–439 is amended to read as follows:

V–439 From Dickinson, N. Dak., 13 miles, 12 AGL, 62 miles, 40 MSL, 12 AGL Williston, N. Dak.

13. In V–465 all after "12 AGL Dunoir, Wyo.;" is deleted and "14 miles, 12 AGL, 45 miles, 137 MSL, 12 AGL Billings, Mont. From Miles City, Mont., 12 AGL Williston, N. Dak., including a 12 AGL E alternate." is substituted therefor.

14. In V–536 "Kalispell, Mont.; to Great Falls, Mont." is deleted and "5 miles, 12 AGL, 34 miles, 95 MSL, 12 AGL Kalispell, Mont.; 20 miles, 12 AGL, 41 miles, 115 MSL, 12 AGL Great Falls, Mont." is substituted therefor.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348)

Issued in Washington, D.C., on December 12, 1966.

H. B. HELSTROM,
Chief, Airspace and Air Traffic Rules Division.

[F.R. Doc. 66–13572; Filed, Dec. 16, 1966; 8:48 a.m.]

Title 18—CONSERVATION OF POWER AND WATER RESOURCES

Chapter I—Federal Power Commission

[Docket No. R–276; Order 330]

PART 8—RECREATIONAL OPPORTUNITIES AND DEVELOPMENT AT LICENSED PROJECTS

PART 141—STATEMENTS AND REPORTS (SCHEDULES)

Inventory of Recreational Facilities at Licensed Hydroelectric Projects

DECEMBER 12, 1966.

On July 15, 1965, the Commission gave notice (30 F.R. 9113, July 21, 1965) in this proceeding that it was proposing to prescribe rules providing for an inventory of existing and potential recreational use and development at hydroelectric projects licensed by the Commission pursuant to the Federal Power Act. These projects form a large segment of the Nation's water-based recreation resources, which must be fully utilized if the rapidly expanding recreational needs of our people are to be met.

This proceeding is in furtherance of the Commission's program, more fully described in the notice herein, to insure such utilization. It is being conducted in cooperation with the Bureau of Outdoor Recreation of the Department of the Interior and other interested Federal and State agencies. The information which the report form here prescribed is designed to supply is a necessary part of the program, for only through it will

the Commission and other agencies know how present needs for recreational facilities are being met by the licensees of these projects, and where additional efforts should be made to meet these and future needs.

Of the responses listed below [1] one supported the proposal, three offered no objection, three opposed, and six suggested modification. While we are still of the opinion that the collection of this information is necessary to the progress of the recreational program, the modifications suggested by some of the respondents have enabled us to reduce the reporting burden substantially below that which would have been required by the rule as originally proposed.

More specifically, and of most significance, we have decided not to prescribe the separate Form 80–A which was proposed for use by licensees of projects under minor license. We are instead prescribing only one form (No. 80) [2] which has been adapted to serve a dual purpose. The instructions to that form [2] provide that certain portions thereof (Items F and G in Part 2; Items D and E in Part 3; and Part 8) may be omitted in reports relating to minor projects.

Several respondents having a number of developments under license complained that the regulation would create a substantial burden because of the comparatively short period of time and the frequency of reporting. We recognize that to require reports by a licensee which has several developments to inventory within the 6-month period for the initial inventory might be unnecessarily burdensome. Any licensee who believes he will need additional time may make an application under § 1.13(c) of our rules of practice and procedure for an extension of time, setting forth a schedule which he considers to be reasonable. We disagree, however, with the claim of hardship due to frequency of reporting (biennially) since reports filed subsequent to the initial filing in 1967 need be completed only to the extent necessary to update the data submitted in the original filing. Less frequent reporting, on the other hand, would not enable the Commission to keep abreast of the rapid increase in demand for and use of outdoor recreation facilities.

In response to other comments and suggestions, we have made some changes of a clarifying nature to the rule as proposed and have added a new Part 8 to the form proposed to replace the information previously requested in map form.

Two respondents suggested alternative methods of inventorying; in one system, only existing recreation facilities for projects licensed before June 1, 1963 (effective date of the "Exhibit R" rule, 18 CFR 4.41 Exhibit R) would be inventoried; in the other, only existing facilities would be counted until a Commission-industry task force could develop a superior method of inventorying planned facilities. We consider it necessary to have reasonably complete information on planned recreational development as soon as possible, in order to determine where future needs will be met by presently planned facilities and where still more development than is now contemplated will be needed. Neither of these alternative schemes would accomplish those objectives.

Other objections to the proposal are that the Commission (a) cannot impose on consumers the cost of recreation facilities at licensed projects, and (b) cannot unilaterally change recreation conditions in existing licenses, and consequently can make no use of the information required by the proposed inventory. The objections are misdirected for neither of these actions was proposed nor are they now being taken. We are merely requiring that information with respect to recreational facilities be furnished to assist us in the proper administration of the Federal Power Act as we are authorized to do pursuant to section 304(a).

The Commission finds:

(1) The amendments to the regulations and the prescription of a new report form, FPC Form No. 80, are necessary and appropriate for the administration of the Federal Power Act.

(2) The revisions made in the form originally proposed result from suggestions made in the comments received; and since they neither amount to a substantial departure from the original proposal nor impose further burdens on respondents, no further notice thereof prior to adoption is necessary.

The Commission, acting pursuant to the provisions of the Federal Power Act, and particularly sections 4(g), 10, 304, 309, and 311 thereof (41 Stat. 1065, 1068; 49 Stat. 839, 842, 855, 858, 859; 16 U.S.C. 797, 803, 825c, 825h, 825j), orders:

(A) (1) The title of Part 8, Subchapter B of Chapter I, Title 18 of the Code of Federal Regulations, is amended to read as set forth above:

(2) The table of contents to said Part 8 is amended to include the following:

8.11 Information respecting use and development of public recreational opportunities.

(B) The following new section is added to the said Part 8:

§ 8.11 Information respecting use and development of public recreational opportunities.

(a) Except as provided in paragraph (b) of this section, each licensee of a project under major or minor Commission license shall prepare with respect to each such project owned and file by June 30, 1967, and biennially thereafter, an original and two conformed copies of FPC Form No. 80 prescribed by § 141.14 of this chapter for use by licensees of projects under major and minor license. Forms filed subsequently to the 1967 filing need be completed only to the extent necessary to correct, supplement, update or add to the information supplied in a previously filed form. One copy of the report should be retained by the correspondent in its file.

(b) A licensee or applicant who submits a statement that it has previously filed an acceptable recreational use plan purusant to a special license condition or § 4.41 Exhibit R, of this chapter will not be required to file Form 80 until December 31, 1968, or at such time as may be required by a special license condition. Such statement shall indicate the document previously so filed and its status, i.e., whether approved as being an accepted recreational use plan submitted pursuant to a special license condition, or as an Exhibit R in a pending license application, or as the case may be.

(C) The following new section is added to Part 141, Subchapter D of Chapter I, Title 18 of the Code of Federal Regulations:

§ 141.14 Form No. 80, Licensed Projects Recreation Report.

The form of report, Licensed Projects Recreation Report, designated as FPC Form No. 80, for use by licensees in reporting information with respect to recreational use and development data relating to projects under major and minor license, is approved and prescribed for use as provided in § 8.11 of this chapter.

(D) The effective date of these amendments shall be December 31, 1966.

(E) The Secretary shall cause prompt publication of this order to be made in the FEDERAL REGISTER.

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F.R. Doc. 66–13545; Filed, Dec. 16, 1966; 8:46 a.m.]

[1] Urban America, Inc., Department of Water Resources of the State of California, Montana Power Co., New England Power Co., Pacific Gas & Electric Co., Philadelphia Electric Co., Virginia Electric & Power Co., Wisconsin Michigan Power Co., Appalachian Power Co., Duke Power Co., Georgia Power Co., Warrior River Electric Cooperative Association, and Riegel Textile Corp.

[2] Form and instructions filed as part of the original document.

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4119]

[Anchorage 064488]

ALASKA

Partial Revocation of Executive Order No. 8278

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 8278 of October 28, 1939, as amended by Public Land Order No. 1182 of July 1, 1955, withdrawing the eastern portion of Kodiak

Island for naval purposes, is hereby revoked so far as it affects the following described lands:

TRACT B

Beginning at a point which is the same as corner 5, U.S. Survey 2539 and is the true point of beginning of this description; thence E. 21,713.22 feet along the 5–6 line of U.S. Survey 2539 to a point; N., 9,850 feet to a point; N. 60°00′ E., 7,460 feet to a point offset 50 feet northerly of and parallel to the centerline of Chiniak Road (Alaska State Highway 039101); westerly and northerly, meandering said 50-foot offset to a point of intersection on a tangent with the mean high waterline of the spit leading to Frye Point; N. 25°49′30″ W. 670 feet to a point; S. 85°10′30″ W., 3,960 feet to a point; N. 49°49′30″ W., 6,400 feet to a point on the 3–4 line of U.S. Survey 2539; S. 23°10′30″ W., 12,061.38 feet to corner 4, U.S. Survey 2539; S. 1,900 feet to a point on the 4–5 line of U.S. Survey 2539; E. 1,400 feet to a point; S. 65°00′ E., 2,200 feet to a point; N. 62°00′ E., 2,500 feet to a point; S. 28°00′ E., 800 feet to a point; S. 68°00′ W., 3,300 feet to a point; N. 73°00′ W., 3,060 feet to a point on the 4–5 line of U.S. Survey 2539; S., 12,514.88 feet to corner 5, U.S. Survey 2539, the point of beginning, excepting two tracts aggregating approximately 796 acres, and more particularly described as follows:

TRACT 1

Starting from corner 5, U.S. Survey 2539 go east, 8,440 feet to a point on the 5–6 line of said survey, thence N. 47°09′ E., 4,590 feet to corner 1, which is the point of beginning; thence N. 42°51′ W., 7,636 feet to corner 2; N. 47°09′ E., 3,925 feet to corner 3; S. 42°51′ E., 7,636 feet to corner 4; S. 47°09′ W., 3,925 feet to the point of beginning.

TRACT 2

Beginning at corner 1 from which U.S. Coast and Geodetic Survey Station "Crab" bears S. 79°58′57″ W., 4,819.058 feet; thence S. 68°58′57″ E., 2,600 feet to corner 2; S. 32°01′03″ W., 2,850 feet to corner 3; N. 43°58′57″ W., 800 feet to corner 4; N. 12°58′57″ W., 2,600 feet to corner 5; N. 43°00′11″ E., 327.90 feet to the point of beginning.

The area described contains approximately 9,256 acres.

TRACT C

Considering of two noncontiguous parcels of water area, and more particularly described as follows:

Beginning at corner 6, U.S. Survey 2539, the true point of beginning; thence E. 1,591.26 feet to corner 7, U.S. Survey 2539; N. 40°36′ E., 4,072.20 feet to corner 8, U.S. Survey 2539; westerly and southerly along the line of meanhigh water to the point of beginning. The area described contains approximately 300 acres.

Beginning at corner 9, U.S. Survey 2539, which is the point of beginning of this description; thence N. 40°36′ E., 13,110.24 feet to corner 10, U.S. Survey 2539; N. 7,120 feet to a point on the 10–11 line of U.S. Survey 2539; west, to the most southerly and easterly point of mean high water on Cliff Point; westerly and southerly, meandering the line of mean high water to the point of beginning. The area described contains approximately 1,887 acres.

The areas released from withdrawal by this paragraph total in the aggregate approximately 11,443 acres.

2. Until 10 a.m. on March 14, 1967, the State of Alaska shall have a preferred right to select the lands as provided by section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339), and the regulations in 43 CFR 2222.9. After that time they shall be open to operation of the public land laws generally, including location for nonmetalliferous minerals, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on March 14, 1967, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

The lands have been open to applications and offers under the mineral leasing laws, and to location under the U.S. mining laws for metalliferous minerals.

Inquiries should be addressed to the Manager, Anchorage District and Land Office, Anchorage, Alaska.

CHARLES F. LUCE,
Under Secretary of the Interior.

DECEMBER 13, 1966.

[F.R. Doc. 66-13547; Filed, Dec. 16, 1966; 8:46 a.m.]

Title 46—SHIPPING

Chapter II—Maritime Administration, Department of Commerce

SUBCHAPTER H—TRAINING

[General Order 97, Amdt. 1]

PART 310—MERCHANT MARINE TRAINING

Subpart C—Admission and Training of Cadets at the United States Merchant Marine Academy

TRAINING ON SUBSIDIZED VESSELS; PAY

Section 310.58 *Training on subsidized vessels* is hereby amended by changing the figure and words "$111.15 per month" in paragraph (c) thereof to read "$147.30 per month."

(Sec. 204, 49 Stat. 1987, as amended; 46 U.S.C. 114)

This amendment shall become effective upon date of publication in the FEDERAL REGISTER.

Dated: December 14, 1966.

By order of the Acting Maritime Administrator.

JAMES S. DAWSON, Jr.,
Secretary.

[F.R. Doc. 66-13607; Filed, Dec. 16, 1966; 8:49 a.m.]

Proposed Rule Making

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 1034]

[Docket No. AO-175-A25]

MILK IN DAYTON-SPRINGFIELD, OHIO, MARKETING AREA

Notice of Hearing on Proposed Amendments to Tentative Marketing Agreement and Order

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held at the Stratford House Hotel, 330 West First Street, Dayton, Ohio, beginning at 10 a.m., local time, on January 10, 1967, with respect to proposed amendments to the tentative marketing agreement and to the order, regulating the handling of milk in the Dayton-Springfield, Ohio marketing area.

The public hearing is for the purpose of receiving evidence with respect to the economic and marketing conditions which relate to the proposed amendments, hereinafter set forth, and any appropriate modifications thereof, to the tentative marketing agreement and to the order.

The proposals relative to a redefinition of the marketing area raise the issue whether the provisions of the present order would tend to effectuate the declared policy of the Act, if they are applied to the marketing area as proposed to be redefined and, if not, what modifications of the provisions of the order would be appropriate.

The proposed amendments, set forth below, have not received the approval of the Secretary of Agriculture.

Proposed by Miami Valley Milk Producers Association:

Proposal No. 1.

§ 1034.5 Cooperative association.

"Cooperative association" means any cooperative marketing association which the Secretary determines, after application of the association:

(a) Is qualified under the provisions of the Act of Congress of February 18, 1922, as amended, known as the "Capper-Volstead Act."

(b) Has full authority in the sale of milk of its members and is engaged in making collective sales of, or marketing, milk or its products for its members.

(c) Has its entire activities under the control of its members.

§ 1034.6 Miami Valley marketing area.

"Miami Valley marketing area" hereinafter called the marketing area means all the territory geographically within the perimeter boundaries of the following Ohio counties:

Auglaize.	Mercer.
Champaign.	Miami.
Clark.	Montgomery.
Darke.	Preble.
Greene.	Shelby.
Logan.	

§ 1034.8 Route disposition.

"Route disposition" means a delivery (including that from a plant store, vendor, or vending machine) of Class I milk at retail or wholesale either directly or through any distribution point including another plant located in the marketing area.

§ 1034.9 [Deleted]

§ 1034.___ Plant.

"Plant" means the land and buildings together with their surroundings, facilities, and equipment constituting a single operating unit or establishment which is operated exclusively by one or more persons engaged in the business of handling fluid milk products for resale or manufacture into milk products, and which is used for the handling or processing of milk or milk products.

§ 1034.___ Reload point.

"Reload point" means any location at which milk moved from the farm in a tank truck is comingled with other producer milk before entering a plant. The reloading operation on the premises of a plant shall be considered a part of the plant operation.

§ 1034.___ Distributing plant.

"Distributing plant" means any milk plant:

(a) which is approved by an appropriate health authority for the processing or packaging of Grade A quality milk for human consumption in the marketing area, and

(b) from which any fluid milk (Class I) product is disposed of during the month on a route(s) in the marketing area.

§ 1034.___ Supply plant.

"Supply plant" means a plant from which approved milk is moved during the month to a distributing plant, but from which no packaged Class I milk is disposed of in the marketing area on routes.

§ 1034.10 Pool plant.

"Pool plant" means—

(a) A distributing plant (other than a plant of a producer-handler or a plant which would be subject to the classification and pricing provisions of another order issued pursuant to the Act) from which not less than 50 percent during the months of April thru July, and not less than 60 percent during the months of August thru March of receipts from dairy farms classified as Class I, and of which not less than 10 percent of the packaged Class I milk is disposed of in the marketing area on routes or to distributing plants.

(b) A supply plant from which during the month not less than 65 percent of the receipts from dairy farms is shipped to distributing plants, meeting the conditions of paragraph (a) of this section: *Provided,* That if a supply plant qualifies as a pool plant pursuant to this section in each of the months August through March, such plant shall be a pool plant until the end of the following July, unless the operator requests in writing to the market administrator that such plant not be a pool plant, such nonpool status to be effective the first month following such notice and thereafter until the plant requalifies as a pool plant on the basis of shipments.

(c) A market equalization plant means a plant located in the marketing area (other than a distributing plant) operated by a cooperative association performing marketing services, which plant is approved by a duly constituted health authority for the receipt and disposition of Grade "A" milk and milk products and which plant receives producer milk, or milk products or disposes of Grade "A" milk and milk products to other plants qualified under this section, or to nonpool plants.

§ 1034.11 Nonpool plant.

"Nonpool plant" means any milk receiving, manufacturing or processing plant other than a pool plant. The following categories of nonpool plants are further defined as follows:

(a) "Other order plant" means a plant that is fully subject to the pricing and pooling provisions of another order issued pursuant to the Act.

(b) "Producer-handler plant" means a plant operated by a producer-handler as defined in any order (including this part) issued pursuant to the Act.

(c) "Partially regulated distributing plant" means a nonpool plant that is neither an other order plant nor a producer-handler plant, from which fluid milk products, acceptable by a duly consitituted health authority for fluid consumption in the marketing area, in consumer-type packages or dispenser units are distributed on routes in the marketing area.

(d) "Unregulated supply plant" means a nonpool plant that is a supply plant and is neither an other order plant nor a producer-handler plant.

§ 1034.12 Producer.

"Producer" means any person other than a producer-handler as defined in

any order (including this part) issued pursuant to the Act, who produces milk on a farm which is approved by a duly constituted health authority in the marketing area for fluid consumption which is received at a pool plant or diverted as producer milk pursuant to § 1034.15 (producer milk).

§ 1034.13 Handler.

"Handler" means—

(a) Any person in his capacity as the operator of one or more pool plants;

(b) Any cooperative association with respect to the milk of any producer which is delivered direct from the farm by the cooperative to a pool plant(s) or nonpool plant(s);

(c) Any person who operates a partially regulated distributing plant;

(d) A producer handler; and

(e) Any person who operates an other order plant described in § 1034.64.

§ 1034.14 Producer handler.

"Producer-handler" means any person who is both a dairy farmer and the operator of a distributing plant, and who meets the qualifications specified in paragraphs (a) and (b) of this section.

(a) Receipts of fluid milk products at his plant are solely milk of his own production and from pool plants or other order plants; and

(b) The maintenance, care and management of the dairy animals and other resources necessary to produce the milk and the processing, packaging, and distribution of the milk are the personal enterprise and the personal risk of such person.

§ 1034.15 Producer milk.

"Producer milk" means only the skim milk and butterfat contained in the milk of any producer, not also a producer as defined in another order issued pursuant to the Act, which is:

(a) Received during the month at one or more pool plants from the producer either directly or through a reload point, or caused to be delivered from the producer's farm to a pool plant(s) by a cooperative association. In the event the cooperative association elects to be the receiving handler the cooperative association prior to the first day of the month of delivery, shall notify in writing to the market administrator and the handler to whose plant the milk is delivered, that it will be the handler for the milk.

(b) Diverted by a handler from a pool plant (including through a reload point) to another pool plant.

(c) Diverted by a handler as defined in § 1034.13(b) from a pool plant (including any milk moved through a reload point) to a nonpool plant on not more than one-third of the days of delivery from a producer's farm during the months of August through March, or diverted by a handler as provided in § 1034.13 (a) or (b) on not more than two-thirds of the days of delivery from a producer's farm during the months of April through July: *Provided*, That milk diverted by a handler to a plant located a greater distance from the City Hall in Dayton, Ohio, than the pool plant (or reload point) from which diverted shall be deemed to be received by the handler at the location of the plant to which diverted.

§ 1034.16 Other source milk.

"Other source milk" means all skim milk and butterfat contained in or represented by:

(a) Receipts during the month in the form of fluid milk products except: (1) Producer milk, (2) such products received from other pool plants, and (3) inventory of fluid milk products at the beginning of the month; and

(b) Products other than fluid milk products from any source (including those produced at the plant) which are reprocessed, repackaged or converted to another product during the month or for which other utilization or disposition is not established pursuant to § 1034.33.

§ 1034.22 [Amended]

In § 1034.22:

1. In paragraph (c) delete references to §§ 1034.77 and 1034.78 and substitute §§ 1034.78 and 1034.80, respectively.

2. In paragraph (e) delete present references to §§ 1034.71 and 1034.76 and substitute proposed § 1034.79.

3. In paragraph (j) delete reference to § 1034.70 and substitute § 1034.75.

§ 1034.30 Monthly reports of receipts and utilization.

On or before the 7th day of each month the following handlers shall report for the preceding month to and in detail on forms prescribed by the market administrator as follows:

(a) Each handler who operates a pool plant(s) shall report for each such plant:

(1) The total pounds of skim milk and butterfat contained in or represented by:

(i) Producer milk;

(ii) Fluid milk products received from other pool plants;

(iii) Other source milk;

(iv) Each producer moved through a reload point to a plant; and

(v) Inventories of fluid milk products at the beginning and end of the month;

(2) The utilization in each class of all skim milk and butterfat required to be reported pursuant to this section;

(3) (i) The name and address of each producer.

(ii) The producer payroll, which shall show for each producer:

(*a*) The total pounds of milk with the average butterfat test thereof,

(*b*) The amount of the advance payment of such producer made pursuant to § 1034.70 and the nature and amount of deductions and charges authorized by the producer; and

(4) Such other information with respect to receipts and utilization as the market administrator may request;

(b) Each cooperative association shall report with respect to milk which it is the handler pursuant to § 1034.13(b):

(1) The quantities of skim milk and butterfat received from producers;

(2) The utilization of skim milk and butterfat for which it is the handler pursuant to § 1034.13(b);

(3) The quantities of skim milk and butterfat delivered to each pool plant or nonpool plant pursuant to § 1034.13(b);

(4) The name and address of each producer from whom milk was received with statements showing dates on which such producer started shipping and the date on which milk shipments stopped; and

(5) Such other information with respect to the receipts and utilization of milk as the market administrator may request; and

(c) Each handler who operates a partially regulated distributing plant shall report as required in paragraph (a) of this section, except that receipts of Grade A milk shall be reported in lieu of those in producer milk. Such report shall include a separate statement showing the respective pounds of skim milk and butterfat disposed of on routes in the marketing area as Class I milk.

§ 1034.31 Payroll reports.

(a) Each handler pursuant to § 1034.13 (a) or (b) shall submit to the market administrator on or before the 20th day after the end of the month his producer payroll for that month which shall show for each producer:

(1) The daily and total pounds of milk received from such producer with the average butterfat test thereof; and

(2) The net amount of such handler's payments to such producer with the price, deductions and charges involved.

(b) The pounds of milk and butterfat for each producer moved through a reload point to a plant.

(c) Each handler operating a partially regulated distributing plant shall report to the market administrator on or before the 20th day after the end of the month the same information as is required of handlers operating pool plants pursuant to paragraph (a) of this section if he wishes his obligation under § 1034.61 to be computed according to § 1034.61(a). In such report payments to dairy farmers delivering Grade A milk shall be reported in lieu of payments to producers.

§ 1034.32 Other reports.

Each producer-handler (and each handler exempt from regulations pursuant to §§ 1034.61(b) and 1034.64) shall make reports to the market administrator at such time and in such manner as the market administrator may request.

§ 1034.33 Records and facilities.

[Change from § 1034.32]

§ 1034.34 Retention of records.

[Change from § 1034.33]

In § 1034.41 Classes of utilization, renumber paragraph (a)(2) as (a)(3), add new paragraph (a)(2) as follows:

(2) In inventory of fluid milk products in packaged form on hand at the end of the month,

and add to paragraph (b)(4) the word "bulk" between the words "of" and "fluid".

Delete present (a) in § 1034.43 and substitute the following:

§ 1034.43 Transfers.

(a) At the utilization indicated by the operators of both plants, except Class I shall be limited to the excess of receipts

of an equal volume of skim milk and butterfat from such other pool plant; subject in either event to the following conditions:

* * * * *

§ 1034.46 Allocation of skim milk and butterfat classified.

After making the computations pursuant to § 1034.44, the market administrator shall determine the classification of producer milk received at each pool plant each month as follows:

(a) Skim milk shall be allocated in the following manner:

(1) Subtract from the total pounds of skim milk in Class II the pounds of skim milk classified as Class II pursuant to § 1034.41(b)(5);

(2) Subtract from the remaining pounds of skim milk in each class the pounds of skim milk in fluid milk products received in packaged form from other order plants as follows:

(i) From Class II milk, the lesser of the pounds remaining or two percent of such receipts; and

(ii) From Class I milk, the remainder of such receipts;

(3) Except for the first month this order is effective, subtract from the remaining pounds of skim milk in Class I, the pounds of skim milk in inventory of fluid milk products in packaged form on hand at the beginning of the month;

(4) Subtract successively from the pounds of skim milk remaining in each class in series beginning with Class II, the pounds of skim milk in each of the following:

(i) Other source milk in a form other than that of a fluid milk product;

(ii) Receipts of fluid milk products for which Grade A certification is not established or which are from unidentified sources; and

(iii) Receipts of fluid milk products from a producer-handler, as defined under this or any other Federal order;

(5) Subtract, in the order specified below, from the pounds of skim milk remaining in Class II:

(i) The pounds of skim milk in receipts of fluid milk products from unregulated supply plants for which the handler requests Class II utilization, but not in excess of the pounds of skim milk remaining in Class II;

(ii) The pounds of skim milk remaining in receipts of fluid milk products from unregulated supply plants which are in excess of the pounds of skim milk determined as follows:

(*a*) Multiply the pounds of skim milk remaining in Class I milk (excluding Class I transfers between pool plants of the handler) at all pool plants of the handler by 1.25;

(*b*) Subtract from the result the sum of the pounds of skim milk at all such plants in producer milk, in receipts from other pool handlers and in receipts from other pool handlers and in receipts in bulk from other order plants; and

(*c*) (*1*) Multiply any resulting plus quantity by the percentage that receipts of skim milk in fluid milk products from unregulated supply plants remaining at this plant is of all such receipts remaining at all pool plants of such handler, after any deductions pursuant to subdivision (i) of this subparagraph;

(2) Should such computation result in a quantity to be subtracted from Class II, which is in excess of the pounds of skim milk remaining in Class II, the pounds of skim milk in Class II shall be increased to the quantity to be subtracted and the pounds of skim milk in Class I shall be decreased a like amount. In such case the utilization of skim milk at other pool plant(s) of such handler shall be adjusted in the reverse direction by an identical amount in sequence beginning with the nearest other pool plant of such handler at which such adjustment can made;

(iii) The pounds of skim milk in receipts of fluid milk products in bulk from an other order plant in excess of similar transfers to such plant, but not in excess of the pounds of skim milk remaining in Class II milk, if Class II utilization was requested by the operator of such plant and the handler;

(6) Subtract from the pounds of skim milk remaining in each class, in series beginning with Class II, the pounds of skim milk in inventory of bulk fluid milk products (and for the first month the order is effective the pounds of fluid milk products in packaged form) on hand at the beginning of the month;

(7) Add to the remaining pounds of skim milk in Class II milk, the pounds subtracted pursuant to subparagraph (1) of this paragraph;

(8) (i) Subtract from the pounds of skim milk remaining in each class, prorata to the total pounds of skim milk remaining in each class in all pool plants of the receiving handler, the pounds of skim milk in receipts of fluid milk products from unregulated supply plants that were not subtracted pursuant to subparagraph (5) (i) or (ii) of this paragraph;

(ii) Should such proration result in the amount to be subtracted from any class exceeding the pounds of skim milk remaining in such class in the pool plant at which such skim milk was received, the pounds of skim milk in such class shall be increased to the amount to be subtracted and the pounds of skim milk in the other class shall be decreased a like amount. In such case the utilization of milk at other pool plant(s) of such handler shall be adjusted in the reverse direction by an identical amount in sequence beginning with the nearest other pool plant of such handler at which such adjustment can be made;

(9) Subtract from the pounds of skim milk remaining in each class the pounds of skim milk in receipts of fluid milk products in bulk from an other order plant, in excess in each case of similar transfers to the same plant, that were not subtracted pursuant to subparagraph (5)(iii) of this paragraph pursuant to the following procedure:

(i) Subject to the provisions of subdivisions (ii) and (iii) of this subparagraph, such subtraction shall be pro rata to whichever of the following represents the higher proportion of all Class II milk.

(*a*) The estimated utilization of skim milk in each class, by all handlers, as announced for the month pursuant to § 1034.22(k); or

(*b*) The pounds of skim milk in each class remaining at all pool plants of the handler;

(ii) Should proration pursuant to subdivision (i) of this subparagraph result in the total pounds of skim milk to be subtracted from Class II at all pool plants of the handler exceeding the pounds of skim milk remaining in Class II at such plants, the pounds of such excess shall be subtracted from the pounds of skim milk remaining in Class I after such proration at the pool plants at which received;

(iii) Except as provided in subdivision (ii) of this subparagraph, should proration pursuant to either subdivision (i) or (ii) of this subparagraph result in the amount to be subtracted from any class exceeding the pounds of skim milk remaining in such class in the pool plant at which such skim milk was received, the pounds of skim milk in such class shall be increased to the amount to be subtracted and the pounds of skim milk in the other class shall be decreased a like amount. In such case the utilization of milk at other pool plant(s) of such handler shall be adjusted in the reverse direction by an identical amount in sequence beginning with the nearest other pool plant of such handler at which such adjustment can be made;

(10) Subtract from the pounds of skim milk remaining in each class the pounds of skim milk received in fluid milk products from pool plants of other handlers according to the classification assigned pursuant to § 1034.43(a); and

(11) If the pounds of skim milk remaining in both classes exceed the pounds of skim milk in producer milk, subtract such excess from the pounds of skim milk remaining in each class in series beginning with Class II. Any amount so subtracted shall be known as "overage."

(b) Butterfat shall be allocated in accordance with the procedure outlined for skim milk in paragraph (a) of this section; and

(c) Combine the amounts of skim milk and butterfat determined pursuant to paragraphs (a) and (b) of this section into one total for each class and determine the weighted average butterfat content of producer milk in each class.

§ 1034.52 Class II milk prices.

Subject to the provisions of § 1034.53, the price to be paid by each handler f.o.b. his plant for producer milk which is classified as Class II milk during the month shall be computed by the market administrator as follows:

(a) The basic formula price for the month computed pursuant to § 1034.50 except that in no event shall such price exceed the price computed from the sum of subparagraphs (1) and (2) of this paragraph rounded to nearest cent, plus 10 cents:

(1) From the Chicago butter price subtract 3 cents and multiply by 4.2; and

(2) From the weighted average of carlot prices per pound of spray process nonfat dry milk for human consumption f.o.b. manufacturing plants in the Chicago area, as published for the period from the 26th day of the preceding month through the 25th day of the current month by the Department, deduct 5.5 cents and multiply by 8.2.

(b) The skim milk and butterfat used to produce cottage cheese shall be the Class II price for the month plus 25 cents.

Delete present paragraphs (a) and (b) in § 1034.53 and substitute the following:

§ 1034.53 Butterfat differential to handlers.

* * * * *

(a) *Class I price.* Multiply the Chicago butter price for the immediately preceding month by 0.120.

(b) *Class II price.* Multiply the Chicago butter price for the month by 0.115.

§ 1034.54 Location adjustment to handlers.

(a) The price for Class I milk at a plant or reload point located more than 70 miles by the shortest hard-surface highway distance as determined by the market administrator from the City Hall in Dayton, Ohio, shall be the price computed pursuant to § 1034.51(a) reduced at the rates set forth in the following schedule:

Distance of miles from City Hall	*Rate per hundredweight (cents)*
0 to 70	0.0
More than 70 but less than 80	12.
For each additional 10 miles or fraction thereof	.015

(b) For purposes of calculating location adjustments to handlers, receipts of fluid milk products from pool plants and reload points shall be assigned to Class I disposition at the transferee plant in excess of the sum of receipts at such plant directly from producers and the volume assigned as Class I to receipts from other order plants and unregulated supply plants at which no location adjustment credit is applicable and then in sequence beginning with the plant or reload point at which the least location adjustment would apply.

§ 1034.55 Use of equivalent prices.

If for any reason a price quotation required by this part for computing class prices or for other purposes is not available in the manner described, the market administrator shall use a price determined by the Secretary to be equivalent to the price which is required.

§ 1034.60 Computation of the net pool obligation of each pool handler.

The net pool obligation of each pool handler during each month shall be a sum of money computed by the market administrator as follows:

(a) (1) Multiply the quantity of producer milk in each class as computed pursuant to § 1034.46(c) by the applicable class prices (adjusted pursuant to § 1034.53) and add the resulting amounts.

(2) Subtract the location differential credits calculated pursuant to § 1034.54.

(b) Add the amount obtained from multiplying the pounds of overage deducted from each class pursuant to § 1034.46(a)(11) and the corresponding step of § 1034.46(b) by the applicable class prices.

(c) Add the amount obtained from multiplying the difference between the Class II price for the preceding month and the Class I price for the current month by the hundredweight of skim milk and butterfat subtracted from Class I pursuant to § 1034.46(a)(6) and the corresponding step of § 1034.46(b).

(d) Add an amount determined by multiplying the difference between the Class I price for the preceding month and the Class I price for the current month by the hundredweight of skim milk and butterfat subtracted from Class I pursuant to § 1034.46(a)(3) and the corresponding step of § 1034.46(b). If the Class I price for the current month is less than the Class I price for the preceding month the result shall be a minus amount.

(e) Add an amount equal to the difference between the value of the Class I price and the value of the Class II price, with respect to skim milk and butterfat subtracted from Class I pursuant to § 1034.46(a)(4) and the corresponding step of § 1034.46(b).

(f) Add an amount equal to the value at the Class I price adjusted for location (in the manner provided pursuant to § 1034.53) of the nearest nonpool plant(s) from which an equivalent volume was received, with respect to skim milk and butterfat subtracted from Class I pursuant to § 1034.46(a)(8) and the corresponding step of § 1034.46(b).

§ 1034.61 Obligation of a handler operating a partially regulated distributing plant.

Each handler who operates a partially regulated distributing plant shall pay to the market administrator for the producer-settlement fund on or before the 14th day after the end of the month either of the amounts (at the handler's election) calculated pursuant to paragraph (a) or (b) of this section. If the handler fails to report pursuant to paragraph (c) of §§ 1034.30 and 1034.31 the information necessary to compute the amount specified in paragraph (a) of this section, he shall pay the amount computed pursuant to paragraph (b) of this section.

(a) An amount computed as follows:

(1) (i) The obligation that would have been computed pursuant to § 1034.60 at such plant shall be determined as though such plant were a pool plant. For purposes of such computation, receipts at such nonpool plant from a pool plant or an other order plant shall be assigned to the utilization at which classified at the pool plant or other order plant, and transfers from such nonpool plant to a pool plant or an other order plant shall be classified as Class II milk if allocated to such class at the pool plant or other order plant and be valued at the weighted average price of the respective order if so allocated to Class I milk. There shall be included in the obligation so computed a charge in the amount specified in § 1034.60(e) and a credit in the amount specified in § 1034.74(b) with respect to receipts from an unregulated supply plant, unless an obligation with respect to such plant is computed as specified below in this subparagraph.

(ii) If the operator of the partially regulated distributing plant so requests, and provides with his reports pursuant to § 1034.30 (a) and (b) similar reports with respect to the operations of any other nonpool plant which serves as a supply plant for such partially regulated distributing plant by shipments of such plant during the month equivalent to the requirements of § 1034.__ (supply plant), with agreement of the operator of such plant that the market administrator may examine the books and records of such plant for purposes of verification of such reports, there will be added the amount of the obligation computed at such nonpool supply plant in the same manner and subject to the same conditions as for the partially regulated distributing plant.

(2) From this obligation there will be deducted the sum of—

(i) The gross payments made by such handler for Grade A milk received during the month from dairy farmers at such plant and like payments made by the operator of a supply plant(s) included in the computations pursuant to subparagraph (1) of this paragraph, and

(ii) Any payments to the producer-settlement fund of another order under which such plant is also a partially regulated distributing plant.

(b) An amount computed as follows:

(1) Determine the respective amounts of skim milk and butterfat disposed of as Class I on routes (other than to pool plants) in the marketing area;

(2) Deduct the respective amounts of skim milk and butterfat received as Class I milk at the partially regulated distributing plant from pool plants and other order plants, except that deducted under a similar provision of another order issued pursuant to the Act;

(3) Combine the amounts of skim milk and butterfat remaining into one total and determine the weighted average butterfat content; and

(4) From the value of such milk at the Class I price applicable at the location of the nonpool plant, subtract its value at the weighted average price applicable at such location not to be less than the Class II price.

Delete present § 1034.61 "Notification" and substitute the following:

§ 1034.61 Notification.

On or before the 12th day after the end of each month, the market administrator shall notify each handler of his net obligation pursuant to §§ 1034.60, 1034.61, 1034.74(b), and any adjustments pursuant to § 1034.79.

§ 1034.64 Plants subject to other Federal orders.

The provisions of this part shall not apply to a milk plant during any month in which the milk at such plant would be subject to the classification and pric-

ing provisions of another order issued pursuant to the Act unless such plant meets the requirements for a pool plant pursuant to § 1034.10 and a greater volume of fluid milk products is disposed of from such plant to retail or wholesale outlets and to other pool plants in the Miami Valley marketing area than in the marketing area regulated pursuant to such other order during the current month and each of the 3 months immediately preceding, unless the Secretary determines that the applicable order shall be determined on some other basis: *Provided*, That the operator of a plant which is exempted from the provisions of this order pursuant to this section shall, with respect to the total receipts and utilization or disposition of skim milk and butterfat at the plant, make reports to the market administrator at such time and in such manner as the market administrator may require and allow verification of such reports by the market administrator.

§ 1034.70 [Deleted]

§ 1034.71 [Deleted]

§ 1034.70 Partial payment.

(a) On or before the 27th day of each month each handler shall make payment to each producer for all milk received from such producer during the first 15 days of such month. Prices at which such payment shall be made shall be the Class II price for the preceding month computed to the nearest 50 cents.

(b) Provided, that a total amount not less than the sum of the amounts payable to individual producers from which a cooperative association has received written authorization to collect payment shall be paid to such association on or before the 26th day of each month.

(c) Partial payment may be reduced by the amount of assignments authorized by the producer.

§ 1034.73 [Amended]

Under paragraph (a) of § 1034.73 delete the words "to handlers".

§ 1034.74 Payment to producer settlement fund.

On or before the 14th day after the end of each month each handler shall pay to the market administrator his obligation for milk for such month of which he is notified pursuant to § 1034.63, which shall consist of the amount specified in paragraph (a) of this section minus the amount of the credit in paragraph (b) of this section less the amount paid out to each producer in accordance with § 1034.70 (partial payments) and less the amount of the deduction and charges authorized by such producer which are itemized on the handler's producer payroll.

(a) The total of the net pool obligation computed pursuant to § 1034.60 or § 1034.61 for such handler.

(b) The value of the weighted average price(s) applicable at the location of the plant(s) from which received (not to be less than the value of the Class II price), with respect to other source milk for which a value is computed pursuant to § 1034.60(e). In the calculation of the total amount of the deductions and charges to be subtracted, the deductions and charges to be considered with respect to each individual producer shall not be greater than an amount which, when added to the payment made to such producer in accordance with § 1034.70 (inclusive of the deductions and charges authorized by § 1034.70) will not exceed the total value of the milk received from such producer.

§ 1034.75 Payments from producer-settlement fund.

(a) The market administrator shall compute the payment due producers for milk received during the month from such producers by a handler(s) who made the payments for such month pursuant to § 1034.74 by multiplying the hundredweight of such milk by the uniform price computed pursuant to § 1034.62 adjusted by the location differential pursuant to § 1034.77 and the butterfat differential pursuant to §1034.76 and subtracting any charges and deductions made pursuant to § 1034.74.

(b) On or before the 16th day after the end of each month the market administrator shall pay subject to the provisions of § 1034.80.

(1) Direct to each producer who has not authorized a cooperative association to receive payments for such producer the amount of the payment calculated for such producer pursuant to paragraph (a) of this section; and

(2) To each cooperative association authorized to receive payments due producers who market their milk through such cooperative association, the aggregate of payments calculated pursuant to paragraph (a) of this section for all producers certified to the market administrator by such cooperative association as having authorized such cooperative association to receive such payments.

§ 1034.76 Butterfat differential to producers.

[Change from § 1034.72]

§ 1034.77 Location differentials to producers and on nonpool milk.

(a) For the purposes of § 1034.75, the uniform price at a pool plant or reload point shall be reduced on the basis of the applicable amount or rate for the location of such pool plant or reload point pursuant to § 1034.54;

(b) For the purpose of computations pursuant to § 1034.74(b) the weighted average price shall be adjusted on the basis of the applicable amount or rate pursuant to § 1034.54, applicable at the location of the nonpool plant from which the milk was received.

§ 1034.78 Expense of administration.

[Change from § 1034.77]

Delete § 1034.76 "Adjustment of errors," and substitute the following:

§ 1034.79 Adjustments of errors.

Whenever audit by the market administrator of any handler's reports, books, records, or accounts discloses adjustments to be made, for any reason, which results in monies due (a) the market administrator from such handler, (b) such handler from the market administrator, or (c) any producer or cooperative association from such handler, the market administrator shall promptly notify such handler of any such amount due, and payment thereof shall be made on or before the next date for making payment set forth in the provision under which such error occurred following the 5th day after such notice.

§ 1034.80 Marketing service.

[Change from § 1034.78].

Proposal No. 2. Make conforming changes to § 1034.62 *Computation of uniform prices*, and any other section of the order as they relate to the proposed amendments.

Proposed by The Borden Co., et al:

Proposal No. 3. Amend § 1034.6 to:

§ 1034.6 Miami Valley marketing area.

The present Dayton-Springfield, Ohio marketing area, plus the additional Ohio counties of Clinton, Highland, and Ross.

Proposal No. 4. Amend § 1034.7 *Fluid milk product*, as follows:

§ 1034.7 Fluid milk product.

"Fluid milk product" means the fluid form of milk, skim milk, buttermilk, concentrated milk, milk drinks (plain or flavored, prepared milk shake mixes containing 15 percent or less of total milk solids), sweet or sour cream, or any mixture in fluid form of milk, skim milk, or cream (except storage cream, aerated cream products, eggnog, ice cream mix, cultured sour mixtures which are not labeled "Grade A," evaporated or condensed milk and sterilized products packaged in hermetically sealed containers.)

Proposed by certain milk producers (Walter Albers, et al.):

Proposal No. 5. Amend Federal Order No. 34 to discontinue the spring "take-off" and fall "pay-back" pricing plan and go to a straight line payment plan.

Copies of this notice of hearing and the order may be procured from the Market Administrator, 434 Third National Bank Building, Dayton, Ohio 45402, or from the Hearing Clerk, Room 112–A, Administration Building, U.S. Department of Agriculture, Washington, D.C. 20250 or may be there inspected.

Signed at Washington, D.C., on December 14, 1966.

ROY W. LENNARTSON,
Associate Administrator.

[F.R. Doc. 66–13582; Filed, Dec. 16, 1966; 8:49 a.m.]

FEDERAL AVIATION AGENCY

[14 CFR Part 71]

[Airspace Docket No. 66–SW–50]

CONTROL ZONE

Proposed Alteration

The Federal Aviation Agency is considering an amendment to Part 71 of the Federal Aviation Regulations, which would alter controlled airspace in the Altus, Okla., terminal area.

The Altus, Okla., control zone is presently designated as that airspace within a 5-mile radius of the Altus AFB (latitude 34°39'40" N., longitude 99°16'30" W.); within 2 miles each side of the Altus AFB ILS localizer S course, extending from the 5-mile radius zone to 1.5 miles S of the OM; and within 2 miles each side of the Altus AFB TACAN 185° radial, extending from the 5-mile radius zone to 9 miles S of the TACAN.

The Federal Aviation Agency proposes to alter the controlled airspace in the Altus, Okla., terminal area as follows:

ALTUS, OKLA.

Redesignate the Altus, Okla., control zone as that airspace within a 5-mile radius of the Altus AFB (latitude 34°39'40" N., longitude 99°16'30" W.); within 2 miles each side of the Altus AFB ILS localizer S course, extending from the 5-mile radius zone to 1.5 miles S of the OM; and within 2 miles each side of the Altus AFB TACAN 185° radial (175° magnetic), extending from the 5-mile radius zone to 9 miles S of the TACAN, excluding that airspace within a 1½-mile radius of the Altus, Okla., Municipal Airport (latitude 34°41'57" N., longitude 99°20'21" W.).

The proposed alteration would remove the Altus Municipal Airport from the existing Altus, Okla., control zone, but would retain sufficient controlled airspace for the protection of prescribed approach/departure procedures at Altus AFB.

Interested persons may submit such written data, views, or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Southwest Region, Federal Aviation Agency, Post Office Box 1689, Fort Worth, Tex. 76101. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Division. Any data, views, or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Office of the Regional Counsel, Southwest Region, Federal Aviation Agency, Fort Worth, Tex. An informal Docket will also be available for examination at the Office of the Chief, Air Traffic Division.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Fort Worth, Tex., on December 8, 1966.

HENRY L. NEWMAN,
Director, Southwest Region.

[F.R. Doc. 66-13573; Filed, Dec. 16, 1966; 8:48 a.m.]

[14 CFR Part 73]

[Airspace Docket No. 66-WE-55]

RESTRICTED AREA

Proposed Alteration

The Federal Aviation Agency is considering an amendment to Part 73 of the Federal Aviation Regulations that would alter the Las Vegas, Nev., Restricted Area R-4806.

Interested persons may participate in the proposed rule making by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Director, Western Region, Attention: Chief, Air Traffic Division, Federal Aviation Agency, 5651 West Manchester Avenue, Post Office Box 90007, Airport Station, Los Angeles, Calif. 90009. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. The proposal contained in this notice may be changed in the light of comments received.

An official docket will be available for examination by interested persons at the Federal Aviation Agency, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20553. An informal docket also will be available for examination at the office of the Regional Air Traffic Division Chief.

The U.S. Air Force (USAF) has requested that R-4806 be enlarged by extending the southwest boundaries to include that airspace west of the Indian Springs Air Force Auxiliary Field (AFAF), north of U.S. Highway 95, and extending west to longitude 115°56'00".

The U.S. Air Force stated that this additional restricted airspace is required to encompass tactical operations which are hazardous to nonparticipating aircraft in the area immediately south of the Nellis Air Force Base Close Air Support (CAS) Range. Although no targets will be located in this new area, CAS aircraft crews operating therein must devote their entire attention to combat tactics requiring maximum performance from pilots, aircraft, and weapons. Previously, CAS training was conducted at comparatively moderate speeds of from 300 to 400 m.p.h. Modern aircraft capabilities and recent combat experience now require training at speeds frequently in excess of 600 m.p.h. This increase in speed requires a larger tactical operations area around the target. Aircraft employed in CAS training will be F-100's, F-104's, and F-105's.

Activities to be conducted within this proposed area include (a) formation flights maneuvering in response to directions from a Forward Air Controller while attempting to identify a specific ground target, (b) aircraft maneuvering into attack position after target identification, (c) arming of weapons and weapons delivery systems just prior to attack and dearming after attack, (d) use as a rendezvous area for rejoining of flights after mission completion, (e) orbiting for in-flight evaluation of aircraft sustaining damage from hung stores, flying debris, ricochets, etc., and (f) positioning for recovery to Indian Springs AFAF in event of aircraft damage, hung stores or unexpended live ordnance which cannot be deactivated from the cockpit.

Activities conducted on the CAS range include low-angle strafing, low-level bombing, dive bombing, and rocketry.

If this action is taken, Restricted Area R-4806, Las Vegas, Nev., would be altered by deleting the present geographic boundaries and substituting therefor the following:

Beginning at latitude 37°17'00" N., longitude 115°18'00" W.; to latitude 36°26'00" N., longitude 115°18'00" W.; to latitude 36°26'00" N., longitude 115°23'00" W.; to latitude 36°35'00" N., longitude 115°37'00" W.; to latitude 36°35'00" N., longitude 115°53'00" W.; to latitude 36°36'00" N., longitude 115°56'00" W.; to latitude 37°06'00" N., longitude 115°56'00" W.; to latitude 37°06'00" N., longitude 115°35'00" W.; to latitude 37°17'00" N., longitude 115°35'00" W. to point of beginning.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Washington, D.C., on December 13, 1966.

H. B. HELSTROM,
Chief, Airspace and Air Traffic Rules Division.

[F.R. Doc. 66-13574; Filed, Dec. 16, 1966; 8:48 a.m.]

SMALL BUSINESS ADMINISTRATION

[13 CFR Part 121]

[Rev. 6]

SMALL BUSINESS SIZE STANDARDS

Definition of Small Business Retail Grocery Concern for Purpose of Receiving Financial Assistance

Notice is hereby given that the Administrator of the Small Business Administration proposes to amend the Small Business Size Standards Regulation (Rev. 6) by establishing a new definition of a small business concern primarily engaged in making retail sales of groceries and fresh meats, for the purpose of receiving financial assistance.

The present definition of a small business concern primarily engaged in making retail sales of groceries and fresh meats, for the purpose of receiving financial assistance, is a concern which is independently owned and operated, is not dominant in its field of operation and together with its affiliates, has annual sales not exceeding $2 million.

On January 26, 1966, the SBA held a public hearing on the definition of a retail grocery and fresh meat concern for the purpose of receiving financial assistance. Information obtained at the hearing, together with other available in-

formation, indicates that the present size standard is too low for the following reasons: (1) The trend in the retail grocery industry is toward fewer and larger stores (supermarkets) with greater sales volume, (2) cost-price increases and an increase in the sale of nonfood items have caused greater sales volume per establishment, and (3) effective competition against industry giants is furnished by single unit establishment supermarkets which are retail cooperative store members, wholesaler-sponsored voluntary retail groups, and small local multiunit chains. For these reasons, SBA finds that it is necessary to amend the present definition to cover the small local multiunit chains which are an important segment of the small business community furnishing effective competition in the retail grocery industry.

Size data tabulated by the Bureau of the Census for grocery stores that do not sell fresh meats and butcher shops that do not sell groceries show that retail food stores of this type are much smaller than those that sell both groceries and fresh meats. Therefore, it is not proposed to increase the $1 million annual receipts size standard presently applicable to such concerns.

Based on the foregoing it is proposed to increase the financial assistance size standard applicable to a concern primarily engaged in making retail sales of groceries and fresh meats from annual sales not exceeding $2 million to annual sales not exceeding $5 million.

Interested persons may file with the Small Business Administration within 30 days after publication of this proposal in the FEDERAL REGISTER, written statements of facts, opinions, or arguments concerning the new definition.

All correspondence shall be addressed to:

Associate Administrator for Procurement and Management Assistance, Small Business Administration, 811 Vermont Avenue N., Washington, D.C. 20416, Attention: Size Standards Staff.

It is proposed to amend the Small Business Size Standards Regulation (Revision 6), as follows:

The Small Business Size Standards Regulation (Revision 6) (31 F.R. 9721), as amended (31 F.R. 10114, 11651, 11973, 12479, 12572, 14311, 14351, 14516, 14544, 15145, 15737) is hereby amended by revising § 121.3–10(c)(2) to read as follows:

§ 121.3–10 Definition of small business for SBA loans.

* * * * *

(c) *Retail.* * * *

(2) As small if it is primarily engaged in making retail sales of groceries and fresh meats and its annual sales do not exceed $5 million.

* * * * *

Dated: December 5, 1966.

BERNARD L. BOUTIN,
Administrator.

[F.R. Doc. 66–13558; Filed, Dec. 16, 1966; 8:47 a.m.]

Notices

DEPARTMENT OF STATE

Office of the Secretary

MEXLINE, INC.

Notice of Application for Presidential Permit

The Department of State has received an application dated November 14, 1966, from Mexline Inc., a Texas corporation, for a Presidential permit to construct, operate, and maintain a pipeline for crude, residual, and other unfinished oils at the international boundary line between the United States and Mexico, specifically at a point near Brownsville, Tex., and Matamoros, Tamaulipas.

Notice is hereby given that copies of this application are available to the public and that written comments thereon will be received by the Department of State for 30 days from the date of publication of this notice.

For the Secretary of State.

CARL F. SALANS,
Deputy Legal Adviser.

[F.R. Doc. 66-13570; Filed, Dec. 16, 1966; 8:48 a.m.]

DEPARTMENT OF THE INTERIOR

National Park Service

LAVA BEDS NATIONAL MONUMENT, CALIF.

Proposed Wilderness Establishment; Hearing

Notice is hereby given in accordance with the provisions of the Act of September 3, 1964 (78 Stat. 890, 892; 16 U.S.C. 1131, 1132), that a public hearing will be held for Lava Beds National Monument beginning at 9 a.m. on February 17, 1967, in the Home Economics Building, Tulelake-Butte Valley Fairgrounds, South Main Street, Tulelake, Calif., for the purpose of receiving comments and suggestions as to the appropriateness of a proposal for the establishment of a wilderness area comprising about 8,300 acres within the Lava Beds National Monument. The proposed wilderness area is located in Siskiyou County, Calif.

A packet containing a map depicting the preliminary boundaries of the proposed wilderness area and providing additional information about the proposal may be obtained from the Superintendent, Lava Beds National Monument, Tulelake, Calif. 96134, or the Regional Director, National Park Service, 450 Golden Gate Avenue, Post Office Box 36063, San Francisco, Calif. 94102.

A description of the preliminary boundaries and a larger map of the area proposed for establishment as wilderness are available for review in the above offices, and in Room 1013 of the Department of the Interior Building at 18th and C Streets NW., Washington, D.C. The master plan for this monument, likewise, may be inspected at these three locations.

Interested individuals, representatives of organizations, and public officials are invited to express their views in person at the aforementioned public hearing, provided they notify the hearing officer in care of the Superintendent, Lava Beds National Monument, Tulelake, Calif. 96134, by February 15, 1967. Those not wishing to appear in person may submit written statements on the wilderness proposal to the hearing officer at that address for inclusion in the official record concerning the proposal which will be held open for 10 days following conclusion of the hearings.

Time limitations may make it necessary to limit the length of oral presentations and to restrict to one person the presentation made in behalf of an organization. An abbreviated oral statement may, however, be supplemented by a more complete written statement which should be submitted to the hearing officer at the time of presentation of the oral statement. Written statements presented in person at the hearing will be considered for inclusion in the transcribed hearing record. However, all materials so presented at the hearing shall be subject to determinations that they are appropriate for inclusion in the transcribed record. To the extent that time is available after presentation of oral statements by those who have given the required advance notice, the hearing officer will give others present an opportunity to be heard.

After an explanation of the proposals by a representative of the National Park Service, the hearing officer, insofar as possible, will adhere to the following order in calling for the presentation of oral statements:

1. Governor of the State or his representative.
2. Members of Congress.
3. Members of the State Legislature.
4. Official representatives of the county in which the proposed wilderness area is located.
5. Officials of other Federal agencies or public bodies.
6. Organizations in alphabetical order.
7. Individuals in alphabetical order.
8. Others not giving advance notice, to the extent there is remaining time.

A. C. STRATTON,
Acting Director,
National Park Service.

DECEMBER 10, 1966.

[F.R. Doc. 66-13548; Filed, Dec. 16, 1966; 8:46 a.m.]

SMALL BUSINESS ADMINISTRATION

[Delegation of Authority 30-6 (Rev. 1); Southwestern Area, Dallas, Tex., Disaster 7]

ASSISTANT REGIONAL DIRECTOR FOR DISASTER LOANS, DISASTER FIELD OFFICE, NEW ORLEANS, LA.

Rescission of Delegation of Authority

Notice is hereby given that Delegation of Authority No. 30-6 (Rev. 1), Disaster No. 7, 31 F.R. 8657, dated June 22, 1966, is hereby rescinded in its entirety.

Effective date: November 28, 1966.

ROBERT E. WEST,
Area Administrator, Southwestern Area Office, Dallas, Tex.

[F.R. Doc. 66-13559; Filed, Dec. 16, 1966; 8:47 a.m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

ALABAMA AND MISSISSIPPI

Designation of Areas for Emergency Loans

For the purpose of making emergency loans pursuant to section 321 of the Consolidated Farmers Home Administration Act of 1961 (7 U.S.C. 1961), it has been determined that in the hereinafter-named counties in the States of Alabama and Mississippi natural disasters have caused a need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

ALABAMA

Blount.	Lamar.
Butler.	Lauderdale.
Calhoun.	Lawrence.
Cherokee.	Limestone.
Chilton.	Madison.
Clay.	Marion.
Cleburne.	Marshall.
Colbert.	Morgan.
Cullman.	Pickens.
DeKalb.	Randolph.
Etowah.	St. Clair.
Fayette.	Shelby.
Franklin.	Talladega.
Greene.	Tallapoosa.
Hale.	Tuscaloosa.
Jackson.	Walker.
Jefferson.	Winston.

MISSISSIPPI

Choctaw.	Hinds.
Coahoma.	Lawrence.
Copiah.	Tunica.
Clay.	Winston.

Pursuant to the authority set forth above, emergency loans will not be made in the above-named counties after June 30, 1967, except to applicants who previously received emergency or special livestock loan assistance and who can qualify under established policies and procedures.

Done at Washington, D.C., this 13th day of December 1966.

ORVILLE L. FREEMAN,
Secretary.

[F.R. Doc. 66-13566; Filed, Dec. 16, 1966; 8:47 a.m.]

NORTH DAKOTA

Designation of Area for Emergency Loans

For the purpose of making emergency loans pursuant to section 321 of the Consolidated Farmers Home Administration Act of 1961 (7 U.S.C. 1961), it has been determined that in the hereinafter-named county in the State of North Dakota natural disasters have caused a need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

NORTH DAKOTA

Grand Forks.

Pursuant to the authority set forth above, emergency loans will not be made in the above-named county after June 30, 1967, except to applicants who previously received emergency or special livestock loan assistance and who can qualify under established policies and procedures.

Done at Washington, D.C., this 13th day of December 1966.

ORVILLE L. FREEMAN,
Secretary.

[F.R. Doc. 66-13567; Filed, Dec. 16, 1966; 8:47 a.m.]

PENNSYLVANIA

Designation and Extension of Areas for Emergency Loans

For the purpose of making emergency loans pursuant to section 321 of the Consolidated Farmers Home Administration Act of 1961 (7 U.S.C. 1961), it has been determined that in the hereinafter-named counties in the State of Pennsylvania a natural disaster has caused a need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

PENNSYLVANIA

Cameron.	Jefferson.
Crawford.	Lancaster.
Elk.	McKean.
Huntingdon.	Mercer.

It also has been determined that in the hereinafter-named counties in the State of Pennsylvania the above-mentioned natural disaster has caused a continuing need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

Pennsylvania	Original designation	Present extension
Adams	30 F.R. 13968	
Allegheny	30 F.R. 13968	
Bedford	29 F.R. 19265	30 F.R. 14533
Berks	29 F.R. 19265	30 F.R. 14533
Blair	30 F.R. 13968	
Bradford	29 F.R. 19265	30 F.R. 14533
Bucks	29 F.R. 19265	30 F.R. 14533
Cambria	30 F.R. 13968	
Carbon	29 F.R. 19265	30 F.R. 14533
Centre	29 F.R. 19265	30 F.R. 14533
Clarion	30 F.R. 13968	
Clearfield	30 F.R. 13968	
Clinton	30 F.R. 849	30 F.R. 14533
Columbia	29 F.R. 19265	30 F.R. 14533
Cumberland	30 F.R. 13968	
Dauphin	29 F.R. 19265	30 F.R. 14533
Delaware	29 F.R. 19265	30 F.R. 14533
Fayette	30 F.R. 13968	
Forest	30 F.R. 13968	
Franklin	29 F.R. 19265	30 F.R. 14533
Fulton	29 F.R. 19265	30 F.R. 14533
Greene	30 F.R. 13968	
Indiana	30 F.R. 13968	
Juniata	29 F.R. 19265	30 F.R. 14533
Lackawanna	29 F.R. 19265	30 F.R. 14533
Lebanon	30 F.R. 13585	
Lehigh	29 F.R. 19265	30 F.R. 14533
Luzerne	29 F.R. 19265	30 F.R. 14533
Lycoming	30 F.R. 849	30 F.R. 14533
Mifflin	29 F.R. 19265	30 F.R. 14533
Monroe	29 F.R. 19265	30 F.R. 14533
Montgomery	29 F.R. 19265	30 F.R. 14533
Montour	29 F.R. 19265	30 F.R. 14533
Northampton	29 F.R. 19265	30 F.R. 14533
Northumberland	29 F.R. 19265	30 F.R. 14533
Perry	29 F.R. 19265	30 F.R. 14533
Potter	30 F.R. 2827	30 F.R. 14533
Schuylkill	29 F.R. 19265	30 F.R. 14533
Snyder	29 F.R. 19265	30 F.R. 14533
Somerset	30 F.R. 13968	
Sullivan	29 F.R. 19265	30 F.R. 14533
Susquehanna	29 F.R. 19265	30 F.R. 14533
Tioga	29 F.R. 19265	30 F.R. 14533
Union	29 F.R. 19265	30 F.R. 14533
Venango	30 F.R. 13968	
Washington	30 F.R. 13968	
Wayne	29 F.R. 19265	30 F.R. 14533
Westmoreland	30 F.R. 13968	
Wyoming	29 F.R. 19265	30 F.R. 14533
York	30 F.R. 13968	

Pursuant to the authority set forth above, emergency loans will not be made in the above-named counties after June 30, 1967, except to applicants who previously received emergency or special livestock loan assistance and who can qualify under established policies and procedures.

Done at Washington, D.C., this 13th day of December 1966.

ORVILLE L. FREEMAN,
Secretary.

[F.R. Doc. 66-13568; Filed, Dec. 16, 1966; 8:47 a.m.]

FEDERAL POWER COMMISSION

[Docket No. CP67-159]

BACA GAS GATHERING SYSTEM, INC.

Notice of Application

DECEMBER 9, 1966.

Take notice that on December 6, 1966, Baca Gas Gathering System, Inc. (Applicant), Hartford Building, Dallas, Tex. 75201, filed in Docket No. CP67-159 an application pursuant to section 7(c) of the Natural Gas Act for a certificate of public convenience and necessity authorizing the construction and operation of gas gathering facilities and for the sale for resale of natural gas, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant seeks authorization to install approximately 17.6 miles of 8-inch, 4-inch, and 3-inch pipeline in order to extend its existing gathering and transmission system to permit the receipt of gas from the Northwest Flank Field and the Playa Field in Baca County, Colo., which gas is to be sold to Panhandle Eastern Pipe Line Co. for resale.

The total estimated cost of the proposed facilities is $260,000, which is to be financed on an interim basis from bank loans and later by the sale of 12-year notes and 15-year debentures.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before January 6, 1967.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-13539; Filed, Dec. 16, 1966; 8:45 a.m.]

[Docket No. CP67-57]

CITY OF MOSS POINT, MISS., AND UNITED GAS PIPE LINE CO.

Notice of Date of Hearing

DECEMBER 9, 1966.

On September 13, 1966, the Secretary of the Federal Power Commission issued a notice of the application filed herein, which was published in the FEDERAL REGISTER on September 21, 1966 (31 F.R. 12491). By its application, the city of Moss Point (Applicant) requests the Commission to issue an order directing United Gas Pipe Line Co. to establish physical connection of its transportation facilities with the distribution facilities of Applicant and to sell and deliver to Applicant certain volumes of natural gas for resale and distribution to the City's consumers.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on January 24, 1967, at 10 a.m., e.s.t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D.C., concerning the matters involved in and the issues presented by said application.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-13541; Filed, Dec. 16, 1966; 8:45 a.m.]

[Docket Nos. CI65-974, etc.]

GEORGE DESPOT ET AL.

Order Consolidating Proceedings

DECEMBER 12, 1966.

George Despot, agent (Operator) et al., Docket Nos. CI65-974, etc.; the Superior Oil Co., Docket No. CI67-287.

On September 14, 1966, an order to show cause was issued by the Commission directing the Superior Oil Co. (Superior) to appear and show cause, if any there be, at a public hearing commencing November 15, 1966, why it should not be required to apply for and obtain nunc pro tunc a certificate of public convenience and necessity authorizing it to make the sale of gas to Tenneco which it has been making without authorization from the South Bon Air field, Calcasieu Parish, La., and whether the initial price for such sale should not be fixed at the appropriate in-line price for South Louisiana as of the date delivery was commenced, and why it should not be required to refund the difference between the lawful initial price and the price actually charged for the related deliveries of gas. The order to show cause further provided that the date from which refunds shall be made by Superior shall be determined in this proceeding, and evidence may be offered by any party as to the appropriate amount of refunds and the date from which liability for such refunds should be fixed.

Subsequently, by a letter of the Secretary of the Commission, dated October 13, 1966, the hearing date was postponed until January 10, 1967, and the date for filing Superior's case-in-chief was likewise postponed until December 10, 1966.

The order to show cause issued September 14, 1966, also required Superior to respond on or before October 14, 1966, by filing with the Commission an answer in writing in accord with the provisions of § 1.9(c) of the Commission's rules of practice and procedure. On October 6, 1966, Superior responded to the specific inquiries of paragraph (B) of the Commission's order to show cause by furnishing information as to the terms of its agreement pursuant to which it has sold natural gas to Tenneco from the South Bon Air field.

It appears that the above-captioned Docket No. CI67-287 involves issues of law and fact similar to the issues in the dockets consolidated in George Despot, agent (Operator) et al., Docket Nos. CI 65-974 et al. The issues raised by Docket No. CI67-287 will be most expeditiously disposed of by consolidating the order to show cause against Superior heretofore issued on September 14, 1966, with the orders to show cause against the various respondents in Docket Nos. CI65-974 et al.

The Commission finds: It is appropriate and in the public interest that the above-captioned matters be consolidated for hearing and decision as hereinafter ordered.

The Commission orders:

(A) Docket No. CI67-287 is hereby consolidated with Docket Nos. CI65-974 et al. for hearing and decision.

(B) The date heretofore set by the Examiner for the filing of exhibits and testimony by respondents in Docket Nos. CI65-974 et al., i.e., November 23, 1966, shall, in the case of Superior, be extended to January 13, 1967.

(C) In lieu of the hearing date of January 10, 1967, Superior shall comply with the procedures for hearing set up by the Examiner in Docket Nos. CI65-974 et al., with the exception provided in paragraph (B) above.

(D) All parties to the above-captioned proceedings shall serve Superior with copies of their testimony and exhibits as well as motions and other documents heretofore filed in the consolidated proceedings in Docket Nos. CI65-974 et al.

By the Commission.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-13542; Filed, Dec. 16, 1966; 8:45 a.m.]

[Docket Nos. CI65-974 etc.]

GEORGE DESPOT ET AL.

Order To Show Cause and Order Consolidating Proceedings

DECEMBER 12, 1966.

George Despot, agent (Operator) et al., Docket Nos. CI65-974 etc.; Gulf Oil Corp., Docket Nos. CI67-477 and CI60-322.

Gulf Oil Corp., successor in interest to the British-American Oil Producing Co., has filed an application in Docket No. CI67-477 to abandon service heretofore commenced to Tennessee Gas Pipeline Co. under a restricted use (compression fuel) contract similar to the contracts which were the subject of the Supreme Court's decision in California v. Lo Vaca Gathering Co. et al., 379 U.S. 366. In Docket No. CI60-322, Gulf Oil Corp. has filed an amendment which seeks authority to continue the sale to Tennessee Gas Pipeline Co. under a new standard gas sales contract comprising its FPC Gas Rate Schedule No. 349. Gulf Oil Corp. has not heretofore sought nor has it obtained from the Commission authority to make the above-mentioned compressor fuel sale to Tennessee Gas Pipeline Co.

The above-captioned dockets involve issues of law and fact similar to the issues in the dockets consolidated in George Despot (Operator) et al., Docket No. CI65-974 et al. It may also be noted that Docket No. CI66-68, heretofore consolidated with George Despot (Operator) et al., Docket No. CI65-974 et al., is an application filed by Gulf Oil Corp. involving issues of law and fact similar to the issues arising out of Docket Nos. CI60-322 and CI67-477. Gulf Oil Corp. has participated in the proceeding thus far held in Docket Nos. CI65-974 et al.

The issues raised by Docket Nos. CI60-322 and CI67-477 will be most expeditiously disposed of by directing an order to show cause to Gulf Oil Corp. in these dockets similar to the orders to show cause heretofore issued in Docket Nos. CI65-974 et al., and by consolidating Docket Nos. CI60-322 and CI67-477 with Docket Nos. CI65-974 et al. Thus the common questions of law and fact arising out of these dockets will be resolved without needless duplication of trial record.

The Commission finds:

(1) It is necessary and appropriate to carry out the provisions of the Natural Gas Act that the above-captioned Applicant appear and show cause, if any, as hereinafter ordered, why it should not be required to apply for and obtain, nunc pro tunc, certificate of public convenience and necessity authorizing the sale of gas which it has been making without authorization.

(2) It is necessary and appropriate in the public interest and to carry out the provisions of the Natural Gas Act that the request to abandon the original restricted use sale be determined herein.

(3) It is appropriate and in the public interest that Docket Nos. CI60-322 and CI67-477 be consolidated with Docket Nos. CI65-974 et al., for hearing and decision as hereinafter ordered.

The Commission orders:

(A) The above-entitled Applicant shall appear and show cause, if any there be, why it should not be required to apply for, and obtain, nunc pro tunc, a certificate of public convenience and necessity authorizing it to make the sale specified in its application which it has previously made without authorization, and whether the initial price for such sale should not be fixed at the appropriate in-line price prevailing at the date delivery commenced for the area in which such sale is being made.

(B) The above-named applicant shall also appear and show cause why it should not be required to refund the difference between the initial price determined in accordance with paragraph (A) above and the price actually charged for the related deliveries of gas. The date from which refunds shall be made, if any, by the Applicant shall be determined in this proceeding and evidence may be offered as to the appropriate amount of refunds, if any, and the date from which liability for such refunds should be fixed.

(C) Docket Nos. CI60-322 and CI67-477 are hereby consolidated with Docket Nos. CI65-974 et al. for hearing and decision. Gulf Oil Corp. shall respond to the order to show cause directed to it in paragraphs (A) and (B) hereof and shall also comply with the procedures set

up by the Examiner in Docket Nos. CI65–974 et al.

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F.R. Doc. 66–13543; Filed, Dec. 16, 1966; 8:45 a.m.]

[Docket Nos. CS67–24 etc.]

J. CLEO THOMPSON ET AL.

Notice of Applications for "Small Producer" Certificates [1]

DECEMBER 9, 1966.

Take notice that each of the Applicants listed herein has filed an application pursuant to section 7(c) of the Natural Gas Act and section 157.40 of the regulations thereunder for a "small producer" certificate of public convenience and necessity authorizing the sale for resale and delivery of natural gas in interstate commerce from the Permian Basin area of Texas and New Mexico, all as more fully set forth in the applications which are on file with the Commission and open to public inspection.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before December 30, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on all applications in which no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter believes that a grant of the certificates is required by the public convenience and necessity. Where a protest or petition for leave to intervene is timely filed, or where the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicants to appear or be represented at the hearing.

JOSEPH H. GUTRIDE, *Secretary.*

[1] This notice does not provide for consolidation for hearing of the several matters covered herein, nor should it be so construed.

Docket No.	Date filed	Name of applicant
CS67–24	11– 7–66	J. Cleo Thompson, et al., 4500 Republic Bank Tower, Dallas, Tex. 75221.
CS67–25	11– 9–66	Parker and Parsley, Operator, 416 Gulf Bldg., Midland, Tex. 79701.
CS67–26	8–15–66	J. O. Fox, 711 Citizens National Bank Bldg., Abilene, Tex. 79604.
CS67–27	11–25–66	Jess Lynch d.b.a. Savage Oil Co. et al., 4606 Andrews Highway, Midland, Tex. 79701.

[F.R. Doc. 66–13546; Filed, Dec. 16, 1966; 8:46 a.m.]

[Docket Nos. RI67–142 etc.]

THOMAS E. BERRY ET AL.

Order Accepting Contract Amendment, Providing for Hearings on and Suspension of Proposed Changes in Rates; Correction

DECEMBER 1, 1966.

Thomas E. Berry, agent (Operator) et al., Docket No. RI67–142, etc.; Thomas E. Berry (Operator) et al., Docket No. RI67–143; Ashland Oil & Refining Co., Docket No. RI67–144.

In the order accepting contract amendment, providing for hearings on and suspension of proposed changes in rates, issued November 18, 1966, and published in the FEDERAL REGISTER November 29, 1966 (F.R. Doc. 66–12788, 31 F.R. 14999), in the chart change the suspended date to read "4–26–67" in lieu of "4–26–66" after Docket Nos. RI67–142, RI67–143, RI67–144.

JOSEPH H. GUTRIDE, *Secretary.*

[F.R. Doc. 66–13540; Filed, Dec. 16, 1966; 8:45 a.m.]

[Docket Nos. G–6548 etc.]

FINANCE AND SERVICE CO. ET AL.

Notice of Applications for Certificates, Abandonment of Service and Petitions To Amend Certificates; Correction

DECEMBER 5, 1966.

Finance and Service Co. et al., Docket Nos. G–6548 etc.; Monsanto Co. (Operator) et al., Docket No. CI67–123; Thomas A. Dugan, Docket No. CI67–652.

In the notice of applications for certificates, abandonment of service, and petitions to amend certificates, issued November 29, 1966, and published in the FEDERAL REGISTER December 8, 1966 (F.R. Doc. 66–13123, 31 F.R. 15504), delete the price "12.25¢" and pressure base "14.65" shown after the description for Docket No. CI67–123.

Add Docket No. "G–17019" under CI67–652 and change filing code to "F" in lieu of "A".

JOSEPH H. GUTRIDE, *Secretary.*

[F.R. Doc. 66–13544; Filed, Dec. 16, 1966; 8:45 a.m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 1–3421]

CONTINENTAL VENDING MACHINE CORP.

Order Suspending Trading

DECEMBER 13, 1966.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock, 10 cents par value of Continental Vending Machine Corp., and the 6 percent convertible subordinated debentures due September 1, 1976, otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period December 14, 1966, through December 23, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66–13549; Filed, Dec. 16, 1966; 8:46 a.m.]

[812–1952]

INVESTORS DIVERSIFIED SERVICES, INC., AND INVESTORS SYNDICATE OF AMERICA, INC.

Notice of Filing of Application for Order Exempting Transactions Between Affiliates

DECEMBER 13, 1966.

Notice is hereby given that Investors Diversified Services, Inc. ("IDS"), Investors Building, Minneapolis, Minn., a registered face-amount certificate company, and its wholly owned subsidiary, Investors Syndicate of America, Inc. ("ISA"), Investors Building, Minneapolis, Minn., a registered face-amount certificate company, have filed a joint application purusant to section 17(b) of the Investment Company Act of 1940 ("Act") for an order of the Commission exempting from the provisions of section 17(a) of the Act the sale by IDS to ISA of certain mortgage loans now owned by IDS. All interested persons are referred to the application as amended on file with the Commission for a statement of applicants' representations which are summarized below.

IDS proposes to sell, and ISA proposes to purchase, all or a number of VA guaranteed and FHA insured residential mortgage loans, presently owned by IDS aggregating approximately $3 million unpaid principal balance. IDS also proposes to sell, and ISA proposes to purchase, commercial mortgage loans,

presently owned by IDS aggregating approximately $880,220 of unpaid balance as of March 31, 1966.

IDS has not issued face-amount certificates since 1940, and represents that its face-amount certificate liabilities are now declining quite rapidly and that it desires to sell the subject mortgages because it can use the proceeds more advantageously for other corporate purposes.

The investment of a substantial part of ISA's funds in real estate mortgages is a basic policy of ISA as recited in its registration statement filed under the Act. ISA represents that it has funds allocated for real estate mortgages and that the subject loans represent qualified investments under section 28(a) of the Act for a face-amount certificate company.

Under an order of the Commission dated July 2, 1956, in the matter of Investors Diversified Services, Inc., and Investors Syndicate of America, Inc. (File No. 812–102) the sale and purchase of certain of the present mortgages at amortized cost of such mortgages plus accrued interest were exempted from section 17(a) of the Act. Other mortgages presently proposed to be transferred were not covered by the provisions of the 1956 order. The Applicants now seek an order which would exempt such sales and purchases at prices reflecting current market yields on such mortgages. At present, prices based on current market yields are lower than the amortized cost plus accrued interest price set in the first order.

IDS and ISA have obtained market quotations from two independent sources with respect to the residential mortgages and proposes to establish the price of the mortgages at an average of the quotations which have been obtained, as follows:

Interest rate (percent)	Maturity (years)	Sale price (percent)
4	10	90
4¼	9	91⅝
4½	20	86
4¾	21	87⅜
5	10	93¼
5¼	28	89¼

IDS and ISA assert that they have also obtained market quotations on all six of the commercial mortgages from one independent source, and quotations on three of the six mortgages from a separate independent source. They propose to transfer the mortgages at the following prices which represent an average of these quotations on the mortgages on which two bids were obtained, and single bid quotations on the other mortgages:

Interest rate (percent)	Maturity (years)	Sale price (percent)
5	6	95¾
5½	12	[1] 95
5	6	[1] 96
5	1	[1] 98
3¾	6	95¾
	7	92

[1] Single bid quotations.

A number of the residential and commercial mortgage loan properties are located within the State of Minnesota, and the proposed transaction will keep within the corporate family, assets which, as Minnesota mortgages, can be used as a deduction in the computation of applicable State taxes.

In addition to its ownership of all the outstanding capital stock of ISA, IDS acts as the principal underwriter and investment manager of ISA. Accordingly, each of the two companies is an affiliated person of the other under the Act.

Section 17(a) of the Act, insofar as here pertinent, prohibits an affiliated person of a registered investment company from selling securities to our purchasing securities from such registered company unless the Commission, upon application pursuant to section 17(b), grants an exemption from section 17(a) upon a finding that the terms of the proposed transaction, including the consideration to be paid, are reasonable and fair and do not involve overreaching on the part of any person concerned, that the proposed transaction is consistent with the policy of each registered investment company concerned, as recited in its registration statement and reports filed under the Act, and is consistent with the general purposes of the Act.

Notice is further given that any interested person may, not later than December 27, 1966, submit to the Commission in writing a request for a hearing on the matter accompanied by a statement as to the nature of his interest, the reason for such request, and the issues of fact or law proposed to be controverted, or he may request that he be notified if the Commission shall order a hearing thereon. Any such communication should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request shall be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon applicants at the address stated above. Proof of such service (by affidavit or, in case of an attorney at law, by certificate) shall be filed contemporaneously with the request. At any time after said date, as provided by Rule 0–5 of the rules and regulations promulgated under the Act, an order disposing of the application herein may be issued by the Commission upon the basis of the information stated in said application, unless an order for hearing upon said application shall be issued upon request or upon the Commission's own motion.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F.R. Doc. 66–13550; Filed, Dec. 16, 1966; 8:46 a.m.]

[812–1953]

INVESTORS DIVERSIFIED SERVICES, INC., AND INVESTORS SYNDICATE TITLE & GUARANTY CO.

Notice of Filing of Application for Order Exempting Transactions Between Affiliates

DECEMBER 13, 1966.

Notice is hereby given that Investors Diversified Services, Inc. ("IDS"), Investors Building, Minneapolis, Minn., a registered face-amount certificate company, and its wholly owned subsidiary, Investors Syndicate Title & Guaranty Co. ("Title"), 250 Park Avenue, New York, N.Y., have filed a joint application pursuant to section 17(b) of the Investment Company Act of 1940 ("Act") for an order of the Commission exempting from the provisions of section 17(a) of the Act the purchase by Title from IDS of certain mortgages now owned by IDS. All interested persons are referred to the application as amended on file with the Commission for a full statement of applicants' representations which are summarized below.

Title proposes to purchase from IDS all or a number of VA guaranteed and FHA insured residential mortgage loans, presently owned by IDS, aggregating approximately $3 million unpaid principal balance.

IDS has not issued face-amount certificates since 1940, and represents that its face-amount certificate liabilities are now declining quite rapidly and that it desires to sell the subject mortgages because it can use the proceeds more advantageously for other corporate purchases.

Under an order of the Commission dated July 2, 1956, in the matter of Investors Diversified Services, Inc., and Investors Syndicate Title & Guaranty Co. (File 812–296) the purchase of the present mortgages by Title at amortized cost of such mortgages plus accrued interest was exempted from section 17(a) of the Act. The Applicants now seek an order which would exempt such purchases at prices reflecting current market yields on such mortgages. At present, prices based on current market yields are lower than the amortized cost plus accrued interest price set in the first order.

IDS and Title have obtained from two independent sources market quotations with respect to the mortgages and propose to establish the price of the mortgages at an average of the quotations which have been obtained. The proposed sale prices of the loans are as follows:

Interest rate (percent)	Maturity (years)	Sale price (percent)
4	10	90
4¼	9	91⅝
4½	20	86
4¾	21	87⅜
5	10	93¼
5¼	28	89¼

Section 17(a) of the Act, insofar as here pertinent, prohibits an affiliated

person of a registered investment company from purchasing securities from such registered company unless the Commission, upon application pursuant to section 17(b), grants an exemption from section 17(a) upon a finding that the terms of the proposed transaction, including the consideration to be paid, are reasonable and fair and do not involve overreaching on the part of any person concerned, that the proposed transaction is consistent with the policy of each registered investment company concerned, as recited in its registration statement and reports filed under the Act, and is consistent with the general purposes of the Act. By virtue of the ownership by IDS of all of Title's outstanding stock, Title is an affiliated person of IDS.

Notice is further given that any interested person may, not later than December 27, 1966, submit to the Commission in writing a request for a hearing on the matter accompanied by a statement as to the nature of his interest, the reason for such request, and the issues of fact or law proposed to be controverted or he may request that he be notified if the Commission shall order a hearing thereon. Any such communication should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request shall be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon applicants at the address stated above. Proof of such service (by affidavit or, in case of an attorney at law, by certificate) shall be filed contemporaneously with the request. At any time after said date, as provided by Rule 0–5 of the rules and regulations promulgated under the Act, an order disposing of the application herein may be issued by the Commission upon the basis of the information stated in said application, unless an order for hearing upon said application shall be issued upon request or upon the Commission's own motion.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66–13551; Filed, Dec. 16, 1966; 8:46 a.m.]

[File No. 1–1686]

LINCOLN PRINTING CO.

Order Suspending Trading

DECEMBER 13, 1966.

The common stock, 50 cents par value, and the $3.50 cumulative preferred stock, no par value, of Lincoln Printing Co., being listed and registered on the Midwest Stock Exchange pursuant to the provisions of the Securities Exchange Act of 1934 and the 8 percent convertible debenture bonds due March 13, 1968, being traded otherwise than on a national securities exchange; and

It appearing to the Securities and Exchange Commission that the summary suspension of trading in such securities on such Exchange and otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to sections 15(c)(5) and 19(a)(4) of the Securities Exchange Act of 1934, that trading in such securities on the Midwest Stock Exchange and otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period December 14, 1966, through December 23, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66-13552; Filed, Dec. 16, 1966; 8:46 a.m.]

PINAL COUNTY DEVELOPMENT ASSOCIATION

Order Suspending Trading

DECEMBER 13, 1966.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the 5⅞ percent Industrial Development Revenue Bonds of Pinal County Development Association due April 15, 1989, otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934 that trading in such bonds be summarily suspended this order to be effective for the period December 14, 1966, through December 23, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66–13553; Filed, Dec. 16, 1966; 8:46 a.m.]

UNDERWATER STORAGE, INC.

Order Suspending Trading

DECEMBER 13, 1966.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock of Underwater Storage, Inc., otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period December 14, 1966, through December 23, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66–13554; Filed, Dec. 16, 1966; 8:47 a.m.]

UNITED SECURITY LIFE INSURANCE CO.

Order Suspending Trading

DECEMBER 13, 1966.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock, $1 par value, of United Security Life Insurance Co., Birmingham, Ala., otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period December 14, 1966, through December 23, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66–13555; Filed, Dec. 16, 1966; 8:47 a.m.]

[File No. 1–4371]

WESTEC CORP.

Order Suspending Trading

DECEMBER 13, 1966.

The common stock, 10 cents par value, of Westec Corp., being listed and registered on the American Stock Exchange pursuant to provisions of the Securities Exchange Act of 1934 and all other securities of Westec Corp., being traded otherwise than on a national securities exchange; and

It appearing to the Securities and Exchange Commission that the summary suspension of trading in such securities on such Exchange and otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to sections 15(c)(5) and 19(a)(4) of the Securities Exchange Act of 1934, that trading in such securities on the American Stock Exchange and otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period December 14, 1966, through December 23, 1966, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66–13556; Filed, Dec. 16, 1966; 8:47 a.m.]

[File No. 1–1384]

WOODWARD & LOTHROP, INC.

Notice of Application To Withdraw From Listing and Registration

DECEMBER 13, 1966.

The above-named issuer has filed an application with the Securities and Exchange Commission pursuant to section

12(d) of the Securities Exchange Act of 1934 and Rule 12d2–2(d) promulgated thereunder, to withdraw the specified security from listing and registration on the Philadelphia-Baltimore-Washington Stock Exchange.

The reasons alleged in the application for withdrawing this security from listing and registration include the following:

The reasons advanced by the Board of Directors for the application are as stated in the Company's proxy statement dated October 21, 1966, which is on file with the Commission and has been disseminated to stockholders. The delisting of the common and preferred stock of the Company was approved by stockholders on November 21, 1966, in accordance with the rules of the Exchange.

Any interested person may, on or before December 28, 1966, submit by letter to the Secretary of the Securities and Exchange Commission, Washington 25, D.C., facts bearing upon whether the application has been made in accordance with the rules of the Exchange and what terms, if any, should be imposed by the Commission for the protection of investors. An order granting the application will be issued after the date mentioned above, on the basis of the application and any other information furnished to the Commission, unless it orders a hearing on the matter.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 66–13557; Filed, Dec. 16, 1966; 8:47 a.m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

DECEMBER 14, 1966.

Protests to the granting of an application must be prepared in accordance with Rule 1.40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA 40824—*Perlite rock from Grants, N. Mex.* Filed by Trans-Continental Freight Bureau, agent (No. 440), for interested carriers. Rates on perlite rock, crude, not further processed than broken, crushed, or ground, in carloads, from Grants, N. Mex., to Philadelphia, Pa.

Grounds for relief—Carrier competition.

Tariff—Supplement 64 to Trans-Continental Freight Bureau, agent, tariff ICC 1738.

FSA 40825—*Chlorine to Naheola, Ala.* Filed by O. W. South, Jr., agent (No. A4970), for interested carriers. Rates on chlorine, in tank carloads, from Redstone Arsenal, Ala., to Naheola, Ala.

Grounds for relief—Market competition.

Tariff—Supplement 51 to Southern Freight Association, agent, tariff ICC S–600.

FSA 40826—*Chlorine to Franklin, Va.* Filed by O. W. South, Jr., agent (No. A4971), for interested carriers. Rates on chlorine, in tank carloads, from Nixon, Ga., to Franklin, Va.

Grounds for relief—Market competition.

Tariff—Supplement 51 to Southern Freight Association, agent, tariff ICC S–600.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66–13583; Filed, Dec. 16, 1966; 8:49 a.m.]

[Ex Parte No. MC 1 (Sub–No. 2)]

AMERICAN MOVERS CONFERENCE ET AL.

Payment of Rates and Charges of Motor Carriers Credit Regulations; Household Goods

NOVEMBER 28, 1966.

Notice is hereby given that the American Movers Conference, Household Goods Carriers' Bureau, and Movers' & Warehousemen's Association of America, Inc., by their attorney, Russell S. Bernhard, 1625 K Street NW., Washington, D.C. 20006, has filed a petition with the Interstate Commerce Commission, on behalf of their members, praying that the Commission amend Part 188 of its general rules and regulations (49 CFR Part 188) by adding the following new section thereto:

§ 188.6. *Late payment penalty charge—household goods carriers.* Household goods carriers by motor vehicle are authorized to provide in their tariffs for a reasonable late-payment penalty or interest charge to be assessed against shippers who fail to pay freight bills for transportation charges within the period specified in § 188.1. A household goods carrier, whose tariff contains such a provision, shall not be deemed in violation of § 188.1, if such carrier extends further credit to a shipper in default on payment of such charges, provided the carrier has taken reasonable precautions to establish that such shipper is a sound credit risk.

Any persons interested in said petition, may, on or before January 16, 1967, file replies to the petition. Copies of the petition may be obtained from said attorney. An original and 14 copies of such replies must be filed with the Commission and must show service of two copies upon the petitioner's attorney at the above address.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 66–13584; Filed, Dec. 16, 1966; 8:49 a.m.]

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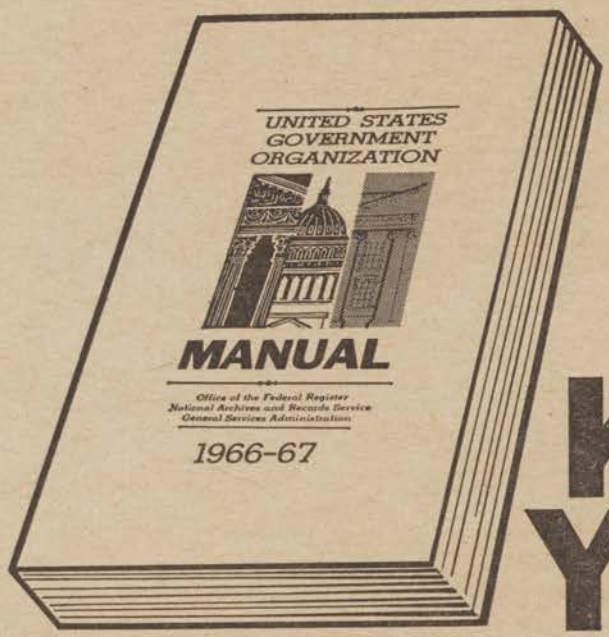
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